

MYSTERIES *of* *the* MISSING



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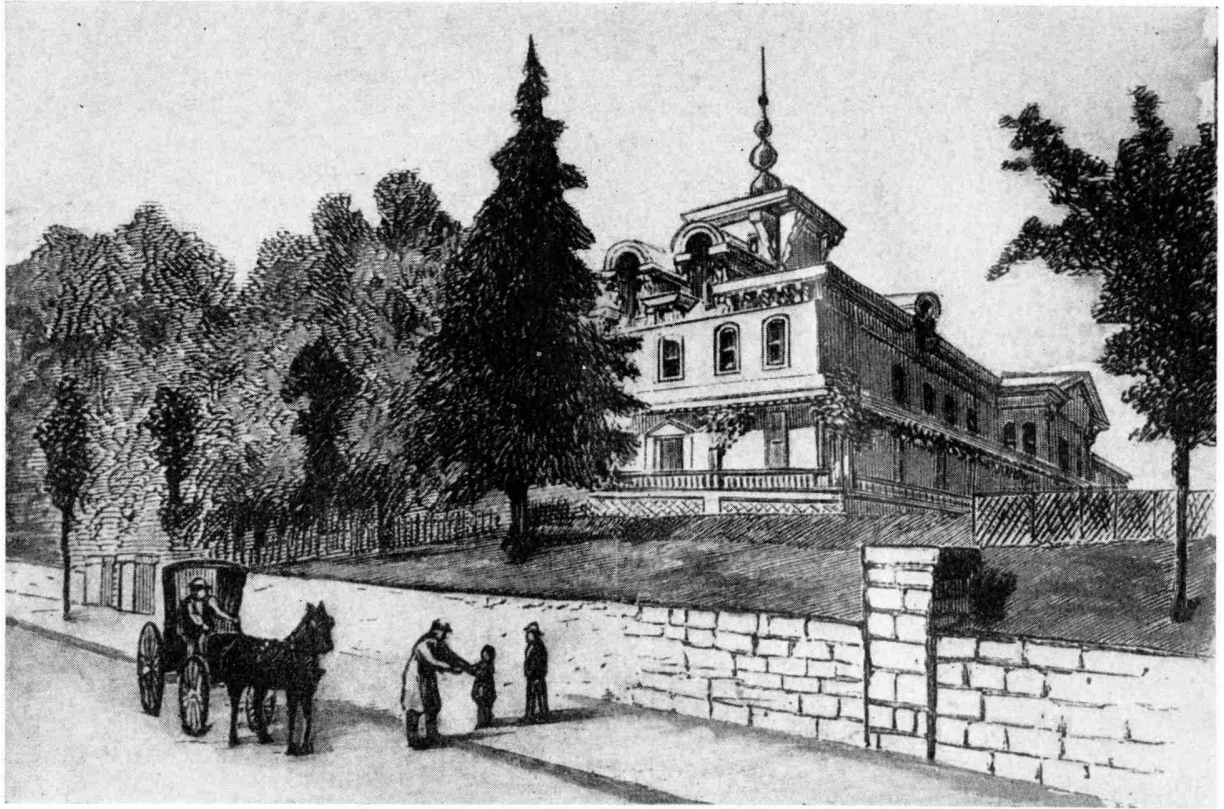
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THE MISSING ***

MYSTERIES OF THE MISSING



~~ SCENE OF THE ABDUCTION OF CHARLIE ROSS ~~

The Ross house, Washington Lane, Germantown, Pa.

From a sketch by W. P. Snyder

MYSTERIES OF THE MISSING

By EDWARD H. SMITH

Author of "Famous Poison Mysteries," etc.



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To

JOSEPH A. FAUROT

A GREAT FINDER OF WANTED MEN

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*And lo, between the sundawn and the sun,
His day's work and his night's work are undone;
And lo, between the nightfall and the light,
He is not, and none knoweth of such an one.*

—Laus Veneris.

A NOTE ON DISAPPEARING

“... but whosoever of them ate the lotus’ honeyed fruit wished to bring tidings back no more and never to leave the place; there with the lotus eaters they desired to stay, to feed on lotus and forget the homeward way.”

THE ODYSSEY, Book IX.

The Lotophagi are gone from the Libyan strand and the Sirens from their Campanian isle, but still the sons of men go forth to strangeness and forgetfulness. What fruit or song it is that calls them out and binds them in absence, we must try to read from their history, their psyche and the chemistry of their wandering souls. Some urgent whip of that divine vice, our curiosity, drives us to the exploration and will not relent until we discover whether they have been devoured by the Polyphemus of crime, bestialized by some profane Circe or simply made drunk with the Lethe of change and remoteness.

The unreturning adventurer—the man whose destiny is hid in doubt—has tormented the imagination in every century. In life the lost comrade wakes a more poignant curiosity than the returning Odysseus. What of the true Smerdis and the false? Was it the great Aeneas the Etruscans slew, and where does Merlin lie? Did Attila die of apoplexy in the arms of Hilda or shall we believe the elder Eddas, the Nibelungen and Volsunga sagas or the Teutonic legends of later times? Was it the genuine Dmitri who was murdered in the Kremlin, and what of the two other pseudo-Dmitris? What became of Dandhu Panth after he fled into Nepal in 1859; did he perish soon or is there truth in the tale of the finger burial of Nana Sahib? And was it Quantrill who died at Louisville of his wounds after Captain Terrill’s siege of the barn at Bloomfield?

These enigmas are more lasting and irritating than any other minor facet of history, and the patient searching of scholars seems but to add to the popular confusion and to the charm of our doubts. Even where research seems to arrive at positive results, the general will cling to their puzzlement, for a romantic mystery is always sweeter than a sordid fact.

Even in the modern world, so closely organized, so completely explored and so prodigiously policed, those enigmas continue to pile up. In our day it is an axiom that nothing is harder to lose sight of than a ship at sea or a man on land. This sounds, at first blush, like a paradox. It ought, surely, to be easy to scrape the name from a vessel, change her gear and peculiarities a little, paint a fresh word upon her side and so conceal her. Simpler still, why can't any man, not too conspicuous or individual, step out of the crowd, alter the cut of his hair and clothes, assume another name and immediately be draped in a fresh ego? Does it not take a huge annual expenditure for ship registry and all sorts of marine policing on the one side, and an even greater sum for the land police, on the other, to prevent such things? Truly enough, and it is the police power of the earth, backed by certain plain or obscure motivations in mankind, that makes it next to impossible for a ship or a man to drop out of sight, as the phrase goes.

Leaving aside the ships, which are a small part of our argument, we may note that, for all the difficulty, thousands of human beings try to vanish every year. Plainly there are many circumstances, many crises in the lives of men, women and children, that make a complete detachment and forgottenness desirable, nay, imperative. Yet, of the twenty-five thousand persons reported missing to the police of the City of New York every year, to take an instance, only a few remain permanently undiscovered. Most are mere stayouts or young runaways and are returned to their inquiring relatives within a few hours or days. Others are deserting spouses—husbands who have wearied or wives who have found new loves. These sometimes lead long chases before they are reported and identified, at which time the police have no more to do with the matter unless there is action from the domestic courts. A number are suicides, whose bodies soon or late rise from the city-engirdling waters and are, almost without fail, identified by the marvelously efficient police detectives in charge of the morgues. Some are pretended amnesics and a few are true ones. But in the end the police of the cities clear up nearly all these cases. For instance, in the year 1924, the New York police department had on its books only one male and one female uncleared case originating in the year of 1918, or six years earlier. At the same time there were four male and six female cases dating from 1919, three male and one female cases that had originated in 1920, no male and three female cases that originated in 1921, three male and two female cases of the date of 1922, but in 1924 there were still

pending, as the police say, twenty-eight male and sixty-three female cases of the year preceding, 1923.

The point here is that only one man and one woman could stay hid from the searching eyes of the law as long as six years. Evidently the business of vanishing presents some formidable difficulties.

However, it is not even these solitary absentees that engage our interest most sharply, for usually we know why they went and have some indication that they are alive and merely skulking. There is another and far rarer genus of the family of the missing, however, that does strike hard upon that explosive chemical of human curiosity. Here we have those few and detached inexplicable affairs that neither astuteness nor diligence, time nor patience, frenzy nor faith can penetrate—the true romances, the genuine mysteries of vanishment. A man goes forth to his habitual labor and between hours he is gone from all that knew him, all that was familiar. There is a gap in the environment and many lives are affected, nearly or remotely. No one knows the why or where or how of his going and all the power of men and materials is hopelessly expended. Years pass and these tales of puzzlement become legends. They are then things to brood about before the fire, when the moving mind is touched by the inner mysteriousness of life.

Again, there are those strange instances of the theft of human beings by human beings—kidnappings, in the usual term. Nothing except a natural cataclysm is so excitant of mass terror as the first suggestion that there are child-stealers abroad. What fevers and rages of the public temper may result from such crimes will be seen from some of what follows. The most celebrated instance is, of course, the affair of Charlie Ross of Philadelphia, which carries us back more than half a century. We have here the classic American kidnapping case, already a tradition, rich in all the elements that make the perfect abduction tale.

This terror of the thief of children is, to be sure, as old as the races. From the Phoenicians who stole babes to feed to their bloody divinities, the Minoans who raped the youth of Greece for their bull-fights, and the priests of many lands who demanded maidens to satisfy the wrath of their gods and the lust of their flesh, down to the European Gypsies, who sometimes steal, or are said to steal, children for bridal gifts, we have this dread vein running

through the body of our history. We need, accordingly, no going back into our phylogeny or biology, to understand the frenzy of the mother when the shadow of the kidnapper passes over her cote. The women of Normandy are said still to whisper with trembling the name of Gilles de Rais (or Retz), that bold marshal of France and comrade in arms of Jeanne d'Arc, who seems to have been a stealer and killer of children, instead of the original of Perrault's Bluebeard, as many believe. What terror other kidnappers have sent into the hearts of parents will be seen from the text.

This volume is not intended as a handbook of mysteries, for such works exist in numbers. The author has limited himself to problems of disappearance and cases of kidnapping, thereby excluding many twice-told wonders—the wandering Ahasuerus, the Flying Dutchman, Prince Charles Edward, the Dauphin, Gosselin's *Femme sans nom*, the changeling of Louis Philippe and the Crown Prince Rudolf and the affair at Mayerling.

Neither have I attempted any technical exploration of the conduct and motives of vanishers and kidnappers. It must be sufficiently clear that a man unpursued who flees and hides is out of tune with his environment, ill adjusted, nervously unwell. Nor need we accent again the fact that all criminals, kidnappers included, are creatures of disease or defect.

A general bibliography will be found at the end of the book. The information to be had from these volumes has been liberally supported and amplified from the files of contemporary newspapers in the countries and cities where these dramas of doubt were played. The records of legal trials have been consulted in instances where trials took place and I have talked with the accessible officials having knowledge of the cases or persons here treated.

E. H. S.

New York, August, 1927.

MYSTERIES OF THE MISSING

I

THE CHARLIE ROSS ENIGMA

Late on the afternoon of the twenty-seventh of June, 1874, two men in a shabby-covered buggy stopped their horse under the venerable elms of Washington Lane in Germantown, that sleepy suburb of Philadelphia, with its grave-faced revolutionary houses and its air of lavendered maturity. All about these intruders was historic ground. Near at hand was the Chew House, where Lord Howe repulsed Washington and his tattered command in their famous encounter. Yonder stood the old Morris Mansion, where the British commander stood cursing the fog, while his troops retreated from the surprise attack. Here the impetuous Agnew fell before a backwoods rifleman, and there Mad Anthony Wayne was forced to decamp by the fire of his confused left. Not far away the first American Bible had been printed, and that ruinous house on the ridge had once been the American Capitol. The whole region was a hive of memories.

Strangely enough, the men in the buggy gave no sign of interest in all these things. Instead, they devoted their attention to the two young sons of a grocer who happened to be playing among the bushes on their father's property. The children were gradually attracted to confidence by the strangers, who offered them sweets and asked them who they were, where their parents were staying, how old they might be, and how they might like to go riding.

The older boy, just past his sixth birth anniversary, tried to respond manfully, as his parents had taught him. He said that he was Walter Ross, and that his companion was his brother, Charlie, aged four. His mother, he related, had gone to Atlantic City with her older daughters, and his father was busy at the store in the business section of the settlement. Yes, that big, white house on the knoll behind them was where they lived. All this and a good deal more the little boy prattled off to his inquisitors, but when it came to getting into their buggy he demurred. The men got pieces of candy from their pockets, filled the hands of both children, and drove away.

When the father of the boys came home a little later, he found his sons busy with their candy, and he was told where they had got it. He smiled and felt that the two men in the buggy must be very fond of children. Not the least suspicion crossed his mind. Yet this harmless incident of that forgotten summer afternoon was the prelude to the most famous of American abduction cases and the introduction to one of the abiding mysteries of disappearance. What followed with fatal swiftness came soon to be a matter of almost worldwide notoriety—a case of kidnapping that stands firm in popular memory after the confusions of fifty-odd years.

On the afternoon of July 1, the strangers came again. This time they had no difficulty in getting the children into their wagon.^[1] Saying that they were going to buy fire crackers for the approaching Fourth of July, they carried the little boys to the corner of Palmer and Richmond Streets, Philadelphia, where Walter Ross was given a silver quarter and told to go into a shop and buy what he wanted. At the end of five or ten minutes the boy emerged to find his brother, his benefactors and their buggy gone.

[1] Walter Ross, then 7 years old, testified at the Westervelt trial, the following year, that he had seen the men twice before, but this seems unlikely.

Little Walter Ross, abandoned eight miles from his home in the toils of a strange city, stood on the curb and gave childish vent to his feelings. The sight of the boy with his hands full of fireworks and his eyes full of tears, soon attracted passers-by. A man named Peacock finally took charge of the youngster and got from him the name and address of his father. At about eight o'clock that evening he arrived at the Ross dwelling and delivered the child, to find that the younger boy had not been brought home, and that the father was out visiting the police stations in quest of his sons.

In spite of the obvious facts, the idea of kidnapping was not immediately conceived, and it even got a hostile reception when the circumstances forced its entertainment. The father of the missing Charlie was Christian K. Ross, a Philadelphia retail grocer who was popularly supposed to be wealthy, and was in fact the owner of a prosperous business at Third and Market streets, and master of a competence. His flourishing trade, the big house in which he lived with his wife and seven children, and the fine grounds about his home naturally caused many to believe that he was a man of large means. In view of these facts alone the theory of abduction should have been considered at once. Again, Walter Ross recited the details of his

adventure with the men in a faithful and detailed way, telling enough about the talk and manner of the men to indicate criminal intent. Moreover, Mr. Ross was aware of the previous visit of the strangers. Finally, the manœuver of deserting the older boy and disappearing with his brother should have been sufficiently suggestive for the most lethargic policeman. Nevertheless, the Philadelphia officials took the skeptical position. Their early activities expressed themselves in the following advertisement, which I take from the *Philadelphia Ledger* of July 3:

“Lost, on July 1st, a small boy, about four years of age, light complexion, and light curly hair. A suitable reward will be paid on his return to E. L. Joyce, Central Station, corner of Fifth and Chestnut streets.”

The advertisement was worded in this fashion to conceal the fact of the child’s vanishment from his mother, who was not called from her summer resort until some days later.

The police were, however, not long allowed to rest on their comfortable assumption that the boy had been lost. On the fifth, Mr. Ross received a letter which had been dated and posted on the day before in Philadelphia. It stated that Charlie Ross was in the custody of the writer, that he was well and safe, that it was useless to look for him through the police, and that the father would hear more in a few days. The note was scrawled by some one who was trying to conceal his natural handwriting and any literate attainments he may have possessed. Punctuation and capitals were almost absent, and the commonest words were so crazily misspelled as to betray purposiveness. The unfortunate father was addressed as “Mr. Ros,” a formal appellation which was later contracted to “Ros.” This missive and some of those that followed were signed “John.”

Even this communication did not mean much to the police, though they had not, at that early stage of the mystery, the troublesome flood of crank letters to plead as an excuse for their disbelief. As a matter of fact, this first letter came before there had been anything but the briefest and most conservative announcements in the newspapers, and it should have been apparent to any one that there was nothing fraudulent about it. Yet the police officials dawdled. A second message from the mysterious John awakened them at last to action.

On the morning of July 7, Mr. Ross received a longer communication, unquestionably from the writer of the first, in which he was told that his appeal to the detectives would be vain. He must meet the terms of the ransom, twenty thousand dollars, or he would be the murderer of his own child. The writer declared that no power in the universe would discover the boy, or restore him to his father, without payment of the money, and he added that if the father sent detectives too near the hiding place of the boy he would thereby be sealing the doom of his son. The letter closed with most terrifying threats. The kidnappers were frankly out to get money, and they would have it, either from Ross or from others. If he failed to yield, his child would be slain as an example to others, so that they would act more wisely when their children were taken. Ross would see his child either alive or dead. If he paid, the boy would be brought back alive; if not, his father would behold his corpse. Ross' willingness to come to terms must be signified by the insertion of these words into the *Ledger*: "Ros, we be willing to negotiate."

Such an epistle blew away all doubts, and the Charlie Ross terror burst upon Philadelphia and surrounding communities the following morning in full virulence. The police surrounded the city, guarded every out-going road, searched the trains and boats, went through all the craft lying in the rivers, spread the dragnet for all the known criminals in town and immediately began a house-to-house search, an almost unprecedented proceeding in a republic. The newspapers grew more inflammatory with every fresh edition. At once the mad pack of anonymous letter writers took up the cry, writing to the police and to the unfortunate parents, who were forced to read with an anxious eye whatever came to their door, a most insulting and disheartening array of fulminations which caused the collapse of the already overburdened mother.

In the fever which attacked the city any child was likely to be seized and dragged, with its nurse or parent, to the nearest police station, there to answer the suspicion of being Charlie Ross. Mothers with golden-haired boys of the approximate age of Charlie resorted to Christian Ross in an unending stream, demanding that he give them written attestation of the fact that their children were not his, and the poor beladen man actually wrote hundreds of such testimonials. The madness of the public went to the absurdest lengths. Children twice the age and size of the kidnapped boy

were dragged before the officials by unbalanced busybodies. Little boys with black hair were apprehended by the score at the demand of citizens who pleaded that they might be the missing boy, with his blond curls dyed. Little girls were brought before the scornful police, and some of the self-appointed seekers for the missing boy had to be driven from the station houses with threats and blows.

Following the command of the child snatchers with literal fidelity, Mr. Ross had published in the *Ledger* the words I have quoted. The result was a third epistle from the robbers. It recognized his reply, but made no definite proposition and gave no further orders, save the command that he reply in the *Ledger*, stating whether or not he was ready to pay the twenty thousand dollars. On the other hand, the letter continued the ferocious threats of the earlier communication, laughed at the police efforts as “children’s play,” and asked whether “Ros” cared more for money or his son. In this letter was the same labored effort to appear densely unlettered. One new note was added. The writer asked whether Mr. Ross was “willen to pay the four thousand pounds for the ransom of yu child.” Either the writer was, or wanted to seem, a Briton, used to speaking of money in British terms. This pretension was continued in some of the later letters and led eventually to a search for the missing boy in England.

In his extremity and natural inexperience, Mr. Ross relied absolutely on the police and put himself into their hands. He asked how he was to reply to the third letter and was told that he should pretend to acquiesce in the demand of the abductors, meantime actually holding them off and relying on the detectives to find the boy. But this subterfuge was quickly recognized by the abductors, with the result that a warning letter came to Mr. Ross at the end of a few days. He was told that he was pursuing the course of folly, that the detectives could not help him, and that he must choose at once between his money and the life of his child.

Ross was advised by some friends and neighbors to yield to the demands of the extortioners, and several men of means offered him loans or gifts of such funds as he was not able to raise himself. Accordingly he signified his intention of arriving at a bargain, and the mysterious John wrote him two or three well-veiled letters which were intended to test his good faith. At this point the father and the abductors seemed about to agree, when the officials again intervened and caused the grocer to change his mood. He declared in

an advertisement that he would not compound a felony by paying money for the return of his child. But this stand had hardly been taken when Mrs. Ross' pitiful anxiety caused another change of front.

Unquestionably this vacillation had a harmful effect in more than one direction. Its most serious consequence was that it gave the abductors the impression that they were dealing with a man who did not know his own mind, could not be relied upon to keep his promises, and was obviously in the control of the officers. Accordingly they moved with supercaution and began to impose impossible conditions. By this time they had written the parents of their prisoner at least a dozen letters, each containing more terrifying threats than its antecedents. To look this correspondence over at this late day is to see the nervousness of the abductors, slowly mounting to the point of extreme danger to the child. But Mr. Ross failed to see the peril, or was overpersuaded by official opinion.

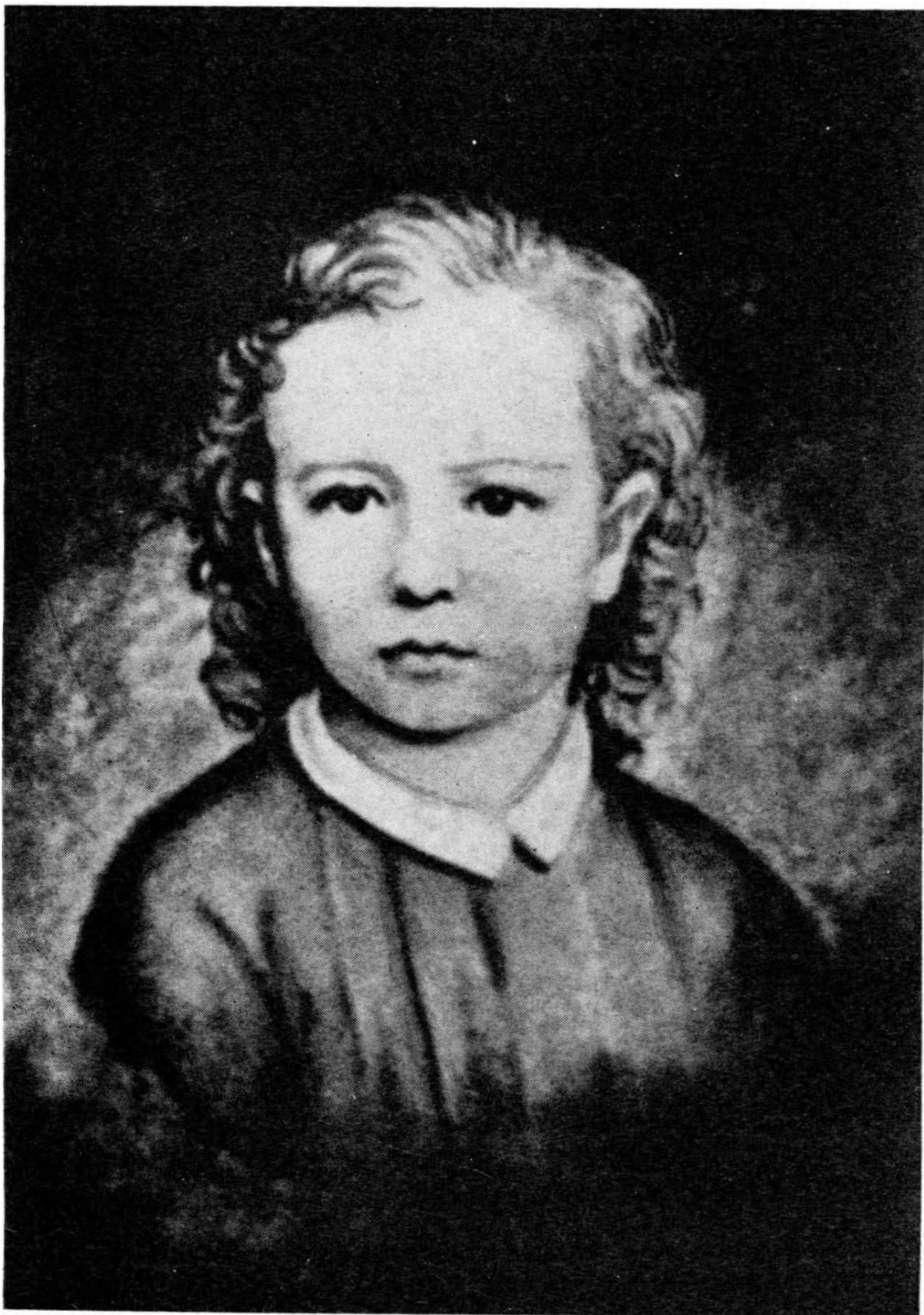
At this crucial point in the negotiations the blunder of all blunders was made. Philadelphia was tremulous with excitement. The police of every American city were looking for the apparition of the boy or his kidnappers. Officials in the chief British and Continental ports were watching arriving ships for the fugitives, and millions of newspaper readers were following the case in eager suspense. Naturally the police and the other officials of Philadelphia felt that the eyes of the world were upon them. They quite humanly decided on a course calculated to bring them celebrity in case of success and ample justification in case of failure. In other words, they made the gesture typical of baffled officialdom, without respect to the safety of the missing child or the real interests of its parents. At a meeting presided over by the mayor, attended by leading citizens and advised by the chiefs of the police, a reward of twenty thousand dollars, to match the amount of ransom demanded, was subscribed and advertised. The terms called for "evidence leading to the capture and conviction of the abductors of Charlie Ross and the safe return of the child," conditions which may be cynically viewed as incongruous. The following day the chief of police announced that his men, should they participate in the successful coup, would claim no part of the reward.

All this was intended, to be sure, as an inducement to informers, the hope being, apparently, that some one inside the kidnapping conspiracy would be bribed into revelations. But the actual result was quite the opposite. A

sudden hush fell upon the writer of the letters. Also, there were no more communications in the *Ledger*. A week passed without further word, and the parents of the boy were thrown into utter hopelessness. Finally another letter came, this time from New York, whereas all previous notes had been mailed in Philadelphia. It was clear that the offer of a high reward had led the abductors to leave the city, and their letter showed that they had slipped away with their prisoner, in spite of the vaunted precautions.

The next note from the criminals warned Ross in terms of impressive finality that he must at once abandon the detectives and come to terms. He signified his intention of complying by inserting an advertisement in the *New York Herald*, as directed by the abductors. They wrote him that they would shortly inform him of the manner in which the money was to be paid over. Finally the telling note came. It commanded Mr. Ross to procure twenty thousand dollars in bank notes of small denomination. These he was to place in a leather traveling bag, which was to be painted white so that it might be visible at night. With this bag of money, Ross was to board the midnight train for New York on the night of July 30-31 and stand on the rear platform, ready to toss the bag to the track. As soon as he should see a bright light and a white flag being waved, he was to let go the money, but the train was not to stop until the next station was reached. In case these conditions were fully and faithfully met, the child would be restored, safe and sound, within a few hours.

Ross, after consultation with the police, decided to temporize once more. He got the white painted bag, as commanded, and took the midnight train, prepared to change to a Hudson River train in New York and continue his journey to Albany, as the abductors had further instructed. But there was no money in the valise. Instead, it contained a letter in which Ross said that he could not pay until he saw the child before him. He insisted that the exchange be made simultaneously and suggested that communication through the newspapers was not satisfactory, since it was public and betrayed all plans to the police. Some closer and secret way of communicating must be devised, he wrote.



~~ CHARLIE ROSS ~~

So Mr. Ross set out with a police escort. He rode to New York on the rear platform of one train and to Albany on another. But the agent of the kidnappers did not appear, and Ross returned to Philadelphia crestfallen, only to find that a false newspaper report had caused the plan to miscarry. One of the papers had announced that Ross was going West to follow up a clew. The kidnappers had seen this and decided that their man was not going to make the trip to New York and Albany. Consequently there was no one along the track to receive the valise. Perhaps it was just as well. The abductors would have laughed at the empty police dodge of suggesting a closer and secret method of communication—for the purpose of betraying the malefactors, of course.

From this point on, Ross and the abductors continued to argue, through the *New York Herald*, the question of simultaneous exchange of the boy and money. Ross naturally took the position that he could not risk being imposed on by men who perhaps did not have the child at all. The robbers, on their side, contended that they could not see any safe way of making a synchronous exchange. So the negotiations dragged along.

The New York police entered the case on August 2, when Chief Walling sent to Philadelphia for the letters received by Mr. Ross from the abductors. They were taken to New York by Captain Heins of the Philadelphia police, and “Chief Walling’s informant identified the writing as that of William Mosher, alias Johnson.”

In order to draw the line between fact and fable as clearly as possible at this point, I quote from official police sources, namely, “Celebrated Criminal Cases of America,” by Thomas S. Duke, captain of police, San Francisco, published in 1910. Captain Duke says that his facts have been “verified with the assistance of police officials throughout the country.” He continues with respect to the Ross case:

“The informant then stated that in April, 1874—the year in question—Mosher and Joseph Douglas, alias Clark, endeavored to persuade him to participate in the kidnapping of one of the Vanderbilt children, while the child was playing on the lawn surrounding the family residence at Throgsneck, Long Island. (Evidently a confusion.) The child was to be held until a ransom of fifty thousand dollars was obtained, and the informant’s

part of the plot would be to take the child on a small launch and keep it in seclusion until the money was received, but he declined to enter into the conspiracy.”

With all due respect to the police and to official versions, this report smells strongly of fabrication after the fact, as we shall see. It is, however, true that the New York police had some sort of information early in August, and it may even be true that they had suspicions of Mosher and were on the lookout for him. A history of subsequent events will give the surest light on this disputed point.

The negotiations between Ross and the abductors continued in a desultory fashion, without any attempt to deliver the child or get the ransom, until toward the middle of November. At this time the kidnappers arranged a meeting in the Fifth Avenue Hotel, New York. Mr. Ross’ agents were to be there with the twenty thousand dollars in a package. A messenger was to call for this some time during the day. His approach and departure had been carefully planned. In case he was watched or followed, he would not find the abductors on his return, and the child would be killed. Only good faith could succeed. Mr. Ross was to insert in the *New York Herald* a personal reading, “Saul of Tarsus, Fifth Avenue Hotel—instant.” This would indicate his decision to pay the money and signify the day he would be at the hotel.

Accordingly the father of the missing boy had the advertisement published, saying that he would be at the hotel with the money “Wednesday, eighteenth, all day.” Ross’ brother and nephew kept the tryst, but no messenger came for the money, and the last hope of the family seemed broken.

The Rosses had long since given up the detectives and recognized the futility of police promises. The father of the boy had, in his distraction, even voiced some uncomplimentary sentiments pertaining to the guardians of the law, with the result that the unhappy man was subjected to taunt and insult and the questioning of his motives. Resort was, accordingly, had to the Pinkerton detectives, who evidently counseled Mr. Ross to act in secret. In any event, the appointment at the Fifth Avenue Hotel was the last of its kind to be made, though Ross and the abductors seemed to have been in contact at later dates. Whatever the precise facts may be on this point, five months had soon gone by without the recovery of the boy, or the apprehension of

the kidnappers, while search was apparently being made in many countries. If, as claimed, Chief Walling of the New York police had direct information bearing on the identity of the abductors the first week in August, he managed a veritable feat of inefficiency, for he and his men failed, in four months, to find a widely known criminal who was afterward shown to have been in and about New York all of that time. Not the police, but a stroke of destiny, intervened to break the impasse.

On the stormy night of December 14-15, 1874, burglars entered the summer home of Charles H. Van Brunt, presiding justice of the appellate division of the New York supreme court. This mansion stood overlooking New York Bay from the fashionable Bay Ridge section of Brooklyn. The villa was then unoccupied, but in the course of the preceding summer Justice Van Brunt had installed a burglar alarm system which connected with a gong in the home of his brother, J. Holmes Van Brunt, about two hundred yards distant from the jurist's hot weather residence. Holmes Van Brunt occupied his house the year around. He was at home on the night in question, and the sounding of the gong brought him out of bed. He sent his son out to reconnoiter, and the young man came back with the report that there was a light moving in his uncle's place.

Holmes Van Brunt summoned two hired men from their quarters, armed them with revolvers or shotguns and went out to trap the intruders. The house of Justice Van Brunt was surrounded by the four men, who waited for the burglars to emerge. After half an hour two figures were seen to issue from the cellar door and were challenged. They answered by opening fire. The first was wounded by Holmes Van Brunt. The second ran around the house, only to be intercepted by young Van Brunt and shot down, dying instantly.

When the Van Brunts and their servants gathered about the wounded man, who was lying on the sodden ground in the agony of death, he signified that he wished to make a statement. An umbrella was held over him to keep off the driving rain, and he said, in gasping sentences, that he was Joseph Douglas, and that his companion was William Mosher. He understood he was dying and therefore wished to tell the truth. He and Mosher had stolen Charlie Ross to make money. He did not know where the child was, but Mosher could tell. Mr. Van Brunt told him that Mosher was dead, and the body of the other burglar was carried over and exhibited to the dying man.

Douglas then gasped that the child would be returned safely in a few days. On hearing one of the party express doubt about his story, Douglas is said to have remarked:

“Chief Walling knows all about us and was after us, and now he has us.”

Douglas died there on the lawn, with the rain drenching his tortured body. Both he and Mosher were identified from the police records by officers who had known them and by relatives. Walter Ross and a man who had seen the kidnapers driving through the streets of Germantown with the two boys, were taken to New York. The brother of the kidnapped child, though he was purposely kept in the dark as to his mission, immediately recognized the dead men in the morgue as the abductors, saying that Douglas was the one who gave the candy, and that Mosher had driven the horse. This identification was confirmed by the other witness.

The return of the stolen boy was, therefore, anxiously and hourly expected. But he had not arrived at the end of a week, and the police officials immediately moved in new directions.

Mosher had married the sister of William Westervelt, of New York, a former police officer, who was later convicted of complicity in the abduction. Westervelt and Mrs. Mosher were apprehended. The one-time policeman made a rambling statement containing little information, but his sister admitted that she had been privy to the matter of the kidnapping. She had known for several months, she said, that her husband had kidnapped Charlie Ross, but she had not been consulted in his planning, and did not know where he had kept the child hidden, and was unable to give any information.

Mrs. Mosher went on to say that she believed the child to be alive and stated her reasons. She did not believe her husband, burglar and kidnapper though he was, capable of injuring a child. He had four of his own and had always been a good father. The poverty of his family had driven him to the abduction. Also, Mrs. Mosher related, she had pleaded with her husband to return the stolen boy to his parents, saying that it was cruel to hold him longer, that there seemed to be little chance of collecting the ransom safely, and that the danger to the abductors was becoming greater every day. This conversation, she said, had taken place only a few days before the Van

Brunt burglary and Mosher's death. Accordingly, since Mosher had then agreed that the child should be sent home, she felt sure it was still living.

But Charlie Ross never came back. The death of his abductors only intensified the quest for the boy. Detectives were sent to Europe, to Mexico, to the Pacific coast, and to various other places, whither false clues pointed. The parents advertised far and wide. Mr. Ross himself, in the course of the next few years, made hundreds of journeys to look at suspected children in all parts of the United States. He spent, according to his own account, more than sixty thousand dollars on these hopeful, but vain, pilgrimages. Each new search resulted as had all the others. At last, after more than twenty years of seeking, Christian K. Ross gave up in despair, saying he felt sure the boy must be dead.

For some time after the kidnappers had been killed and identified, a large part of the American public suspected that Westervelt or Mrs. Mosher, or some one connected with them, was detaining the missing child for fear of arrest and prosecution in case of its return home. The theory was that Charlie Ross was old enough to observe, remember and talk. He might, if released, give information that would lead to the imprisonment of Mosher's and Douglas' confederates. Accordingly, steps were taken to get the child back at any compromise. The Pennsylvania legislature passed an act, in February, 1875, which fixed the penalty for abducting or detaining a child at twenty-five years' imprisonment, but the new law contained a proviso that any person or persons delivering a stolen child to the nearest sheriff on or before the twenty-fifth day of March, 1875, should be immune from any punishment. At the same time Mr. Ross offered a cash reward of five thousand dollars, payable on delivery of the child, and no questions asked. He named more than half a dozen responsible firms at whose places of business the child might be left for identification, announcing that all these business houses were prepared to pay the reward on the spot, and guaranteeing that those bringing in the boy would not be detained.

All this was in vain, and the conclusion had at last to be reached that the boy was beyond human powers of restoration.

To tell what seems to have been the truth—though it was suspected at the time—the New York police had fairly reliable information on Mosher and Douglas soon after the crime. Chief Walling appears, though he never

openly said so, to have been informed by a brother of Mosher's who was on bad terms with the kidnapper. Not long afterwards he had Westervelt brought in for questioning. That worthy had been dismissed from the New York police force a few months earlier for neglect of duty or shielding a policy room. His sister was Bill Mosher's (the suspected man's) wife and it was known that Westervelt had been in Philadelphia about the time of the abduction of Charlie Ross. He was trying, by every device, to get himself reinstated as a policeman, and Walling held out to him the double bait of renewed employment and the whole of the twenty thousand dollars of reward offered for the return of the boy and the capture of the kidnappers.

Here a monumental piece of inefficiency and stupidity seems to have been committed, for though Westervelt visited the chief of police no fewer than twenty times, he was never trailed to his scores of appointments with his brother-in-law and the other abductor. Neither did the astute guardians of the law get wind of the fact that Mosher and Douglas were in and about New York most of the time. They failed to find out that Westervelt and probably one of the others had been seen with the little Ross boy in their hands. Indeed, they failed to make the least progress in the case, though they had definite information concerning the names of the kidnappers, both of them experienced criminals with long records. It might be hard to discover a more dreadful piece of police bluffing and blundering. First the Philadelphia and then the New York forces gave the poorest possible advice, made the most egregious boasts and promises and then proceeded to show the most incredible stupidity and lack of organization. A later prosecutor summed it all up when he said the police had been, at least, honest.

But, after Mosher and Douglas had been killed at Judge Van Brunt's house and Douglas had made his dying statements, it was easy to lure Westervelt to Philadelphia, arrest him, charge him with aiding the kidnappers and his wife with having been an accessory. Walter Ross had identified Mosher and Douglas as the men who had been in the buggy but had never seen Westervelt. A neighboring merchant appeared, however, and picked him out as the man who had spent half an hour in his shop a few weeks after the kidnapping, asking many questions about the Rosses, especially as to their financial position and the rumor that Christian K. Ross was bankrupt. Another man had seen him about Bay Ridge the day before Mosher and

Douglas broke into the Van Brunt house and were killed. A woman appeared who had seen Westervelt riding on a Brooklyn horse-car with a child like Charlie Ross. In short, it was soon reasonably clear that the one-time New York policeman had conspired with his brother-in-law and the other man to seize the boy and get the ransom. Westervelt's motives were rancor at being caught at his tricks and dismissed and financial necessity, for he was almost in want after his discharge. Apparently, he had assisted in the preparations for the kidnapping, had the boy in his charge for a time and used his standing as a former officer to hoodwink the New York police. He had also had to do with some of the ransom letters.

On August 30, 1875, Westervelt was brought to trial in the Court of Quarter Sessions, Philadelphia, Judge Elcock presiding. Theodore V. Burgin and George J. Berger, the two men who had helped the Van Brunts waylay and kill the two burglars, testified as to Douglas' dying story. The witnesses above mentioned told their versions of what they had heard and observed. A porter in Stromberg's Tavern, a drinking resort at 74 Mott Street, then not yet overrun by the Celestial hordes, testified that Westervelt was often at the Tavern drinking and consulting with Mosher and Douglas, that he had boasted he could name the kidnappers and that he had arranged for secret signals to reveal the presence of the two confederates now dead. Chief Walling also testified against the man. The jury returned a verdict of guilty on three counts of the indictment, reaching its decision on September 20, after long deliberation. On October 9, Judge Elcock sentenced the disgraced policeman to serve seven years in solitary confinement at labor, in the Eastern Penitentiary.

Westervelt took his medicine. Never did he admit that the decision against him was just, confess that he had taken any part in the kidnapping or yield the least hint as to the fate of the unfortunate little boy.

Nothing can touch the heart more than the fearful vigil of the parents in such a case. In his book, Christian K. Ross recites, without improper emotion, that, not counting the cases looked into for him by the Pinkertons, he personally or through others investigated two hundred and seventy-three children reported to be the lost Charlie. In every case there was a mistake or a deception. Some of the lads put forward were old enough to have been conventional uncles to him.

In the following decades many strange rumors were bruited, many false trails followed to their empty endings, and many spurious or unbalanced claimants investigated and exposed. The Charlie Ross fever did not die down for a full generation, and even to-day mothers in the outlying States frighten their children into obedience with the name and rumor of this stolen boy. He has become a fearful tradition, a figure of pathos and terror for the generations.

As recently as June 5 of the current year, the *Los Angeles Times*, a journal staid to reaction, printed long and credulous sticks of type to the effect that John W. Brown, ill in the General Hospital of Los Angeles, was really the long lost Charlie Ross. The evil rogue “confessed” that he had remained silent for fifty years in order to “guard the honor of my mother” and said he had been kidnapped by his “foster-father, William Henry Brown,” for revenge when Mrs. Ross “declined to have anything further to do with him.”

Comment upon such caddism can be clinical only. The fact that the wretch who uttered it was sick and dying alone explains the fevered hallucination.

As an old newspaper man, I know that any kind of an item suggesting the discovery of Charlie Ross is always good copy and will be telegraphed about the country from end to end, and printed at greater or lesser length. If the thing has the least aura of credibility about it, Sunday features will follow, remarkable mainly for their inaccuracies. In other words, that sad little boy of Washington Lane long since became a classic to the American press.

At the end of more than fifty years the commentator can hazard no safer opinion on the probable fate of Charlie Ross than did his contemporaries. The popular theories then were that he had died of grief and privation, that Mosher had drowned him in New York Bay when he felt the police were near at hand, or that he had been adopted by some distant family and taught to forget his home and parents. Of these hollow guesses, the reader may take his choice now as then.

II

“SEVERED FROM THE RACE”

Headless horsemen and other strange ghostly figures march nightly on the beach at Nag’s Head. For more than two years these shades and spectres have been seen and Coast Guardsman Steve Basnight has been trying vainly to convince his fellows. They have laughed upon him with sepulchral laughter, as though the dead enjoyed their mirth. They have chided him as a seer of visions, a mad hallucinant.

But now there are others who have seen and fled. Mrs. Alice Grice, passing the lonely sands in her motor, had trouble with the engine and saw or thought she saw a man standing there, brooding across the waters. She called to him and he, as one shaken from some immortal reverie, moved slowly off, turning not, nor seeming quite to walk, but floating into the fog, silent and serene.

Some scoffers have suggested that these be but smugglers or rum runners, enlarged in the spume by the eyes of terror. But that cannot be so, for the coast guard is staunch and active. This is no ordinary visitor, no thing of flesh and blood. This is some grieved and restless spirit, risen through a transcendence of his grave and come to haunt this wild and forlorn region.

George Midgett, long a scoffer, has seen this uncharnelled being most closely and accurately. It is a tall, great man, clad in purest white, strolling along the beach in the full moonlight, which is no clearer than the sad and dreaming face.

It is Aaron Burr. And he is seeking his lost daughter, whose wrecked ship is believed by many to have been driven ashore at this point.

So much for the lasting charm of doubt, since I take my substance here, and most of my mystery, from the *New York World* of June 9, 1927, contained in a dispatch from Manteo, N. C., bearing the date of the previous day—one hundred and fifteen years after the happening.

But if we see Aaron Burr ghostwalking in the moonlight as once he trod in the tortured flesh at the Battery, looking out upon those bitter waters that denied him hope, or if we believe, with many writers, that he fell upon his knees and cried out, "By this blow I am severed from the human race!" we are still not much nearer to the pathos or the mystery of that old incident in 1812, when Theodosia Burr set out for New York by sea and never reached it.

"By and by," says Parton in his "The Life and Times of Aaron Burr," "some idle tales were started in the newspapers, that the *Patriot* had been captured by pirates and all on board murdered except Theodosia, who was carried on shore as a captive."

Idle tales they may have been, but their vitality has outlived the pathetic facts. Indeed, unless probability be false and romance true, "the most brilliant woman of her day in America" perished at sea a little more than a hundred and fifteen years ago, caught off the Virginia Capes in a hurricane that scattered the British war fleet and crushed the "miserable little pilot boat" that was trying to bear her to New York. In that more than a century of intervening time, however, a tradition of doubt has clouded itself about the quietus of Aaron Burr's celebrated daughter which puts her story immovably upon the roster of the great mysteries of disappearance. The various accounts of piratical atrocities connected with her death may be fanciful or even studiously fictive, but even this realization does nothing to dispel the fog.

Theodosia Burr was born in New York in 1783 and educated under the unflagging solicitude and careful personal direction of her distinguished father, who wanted her to be, as he testifies in his letters, the equal of any woman on earth. To this enlightened training the precious girl responded with notable spirit and intellectual acquisitiveness, mastering French as a child and becoming proficient in Latin and Greek before she was adolescent. At fourteen, her mother having died some years earlier, she was already mistress of the house of the New York senator and a figure in the best political society of the times. As a slip of a girl she played hostess to Volney, Talleyrand, Jerome Bonaparte and numberless other notables, and bore, in addition to her repute as a bluestocking, the name of a most beautiful and charming young woman. Something of her quality may be read from her numerous extant letters, two of which are quoted below.

In 1801, just after her father had received the famous tied vote for the Presidency and declined to enter into the conspiracy which aimed to prefer him to Jefferson, recipient of the popular majority, Theodosia Burr was married to Joseph Alston, a young Carolina lawyer and planter who later became governor of his state. Thus, about the time her father was being installed as Vice-President, his happy and adoring daughter, his friend and confidante to the end, was making her twenty days' journey to her new home in South Carolina, where her husband owned a residence in Charleston and several rice plantations in the northern part of the state.

At the time of the famous duel with Hamilton, in 1804, Burr was still Vice-President, still one of the chief political figures and at the very height of his popularity and fortune, an elevation from which that unfortunate encounter began his dislodgment. Theodosia was in the South with her husband at the time and knew nothing either of the challenge or of the duel itself until weeks after Hamilton was dead.

Of the merits of the Burr-Hamilton controversy or the right and wrong of either man's conduct little need be said here. As time goes on it becomes more and more apparent that Burr in no way exceeded becoming conduct or violated the gentlemanly code as then practised. Hamilton had been his persistent and by no means always honorable enemy. He had attacked and not infrequently belied his opponent, thwarting him where he could politically and even resorting to the use of his personal connections for the private humiliation of his foe. The answer in 1804 to such tactics was the challenge. Burr gave it and insisted on satisfaction. Hamilton met him on the heights at Weehawken, across the Hudson from New York, and fell mortally wounded at the first exchange, dying thirty-one hours later.

It is evident from a reading of the newspapers of the time and from the celebrated sermon on Hamilton's death delivered by Dr. Nott, later president of Union College, that duelling was then so common that there existed "a preponderance of opinion in favor of it," and that the spot at which Hamilton fell was so much in use for affairs of honor that Dr. Nott apostrophized it as "ye tragic shores of Hoboken, crimsoned with the richest blood, I tremble at the crimes you record against us, the annual register of murders which you keep and send up to God!" Nevertheless, the town was shocked by the death of Hamilton, and Burr's enemies seized the

moment to circulate all manner of absurd calumnies which gained general credence and served to undo the victorious antagonist.

It was reported that Hamilton had not fired at all, a story which was refuted by his powder-stained empty pistol. Next it was charged that Burr had coldly shot his opponent down after he had fired into the air. The fact seems to be that Hamilton discharged his weapon a fraction of a second after Burr, just as he was struck by his adversary's ball. Hamilton's bullet cut a twig over Burr's head. The many yarns to the general effect that Burr was a dead shot and had practised secretly for months before he sent the challenge seem also to belong to the realm of fiction. Burr was never an expert with fire-arms, but he was courageous, collected and determined. He had every right to believe, from Hamilton's past conduct, that his opponent would show him no mercy on the field. Both men were soldiers and acquainted with the code and with the use of weapons.

But Hamilton's friends were numerous, powerful and bitter. They left nothing undone that might bring upon Burr the fullest measure of public and private reprehension. The results of their campaign were peculiar, inasmuch as Burr lost his influence in the states which had formerly been the seat of his power and gained a high popularity in the comparatively weak new western states, where Hamilton and the Federalist leaders were regarded with hostility. At the expiration of his term of office Burr found himself politically dead and practically exiled by the charges of murder which had been lodged against him both in New York and New Jersey.

The duel and its consequences marked the beginning of the Burr misfortunes. Undoubtedly the ostracism which greeted him after his retirement from office was the immediate fact which moved him to undertake his famous enterprise against the West and Mexico, an adventure that resulted in his trial for treason. The fact that he was acquitted, even with the weight of the government and the personal influence of President Jefferson, his onetime friend, thrown against him, did not save him from still further popular dislike, and he was at length forced to leave the country. It was in the course of this exile in Europe that Theodosia wrote him the well known letter from which I quote an illuminating extract:

“I witness your extraordinary fortitude with new wonder at every new misfortune. Often, after reflecting on this subject, you

appear to me so superior, so elevated above other men; I contemplate you with such a strange mixture of humility, admiration, reverence, love and pride, that very little superstition would be necessary to make me worship you as a superior being; such enthusiasm does your character excite in me. When I afterwards revert to myself, how insignificant my best qualities appear. My vanity would be greater if I had not been placed so near you; and yet my pride is our relationship. I had rather not live than not be the daughter of such a man.”

Burr remained abroad for four years, trying vainly to interest the British government and then Napoleon in various schemes of privateering. The net result of his activities in England was an order to leave the country. Nor did Burr fare any better in France. Napoleon simply refused to receive him and the American’s past acquaintance with and hospitable treatment of the emperor’s brother, once king of Westphalia, failed to avail him. Consequently, Burr slipped back into the United States in 1812, quite like a thief in the night, not certain what reception he might get and even fearful lest Hamilton’s wildest partisans might actually undertake to throw him into jail and try him for the shooting of their chief. The reception he got was hostile and suspicious enough, but there was no attempt to proceed legally.

Theodosia, who had never ceased to work in her father’s interest, writing to everyone she knew and beseeching all those who had been her friends in the days of Burr’s ascendancy, in an effort to clear the way for his return to his native land, was overjoyed at the homecoming of her parent and expressed her pleasure in various charmingly written letters, wherein she promised herself the excitement of a trip to New York as soon as arrangements could be made.

But the Burr cup of misfortune was not yet full. That summer Theodosia’s only child, Aaron Burr Alston, sickened and died in his twelfth year, leaving the mother prostrated and the grandfather, who had doted on the boy, supervised his education and centered all his hopes upon him, bereft of his composure and optimism, possibly for the first time in his varied and tempestuous life. Mrs. Alston’s letters at this time deserve at least quotation:

“A few miserable days past, my dear father, and your late letters would have gladdened my soul; and even now I rejoice in their

contents as much as it is possible for me to rejoice at anything; but there is no more joy for me; the world is a blank. I have lost my boy. My child is gone for ever. He expired on the thirtieth of June. My head is not sufficiently collected to say any thing further. May Heaven, by other blessings, make you some amends for the noble grandson you have lost.”

And again:

“Whichever way I turn the same anguish still assails me. You talk of consolation. Ah! you know not what you have lost. I think Omnipotence could give me no equivalent for my boy; no, none—none.”

This was the woman who set out a few months later, sadly emaciated and very weak, to join her father in New York, hoping that she might gain strength and hope again from the burdened but undaunted man who never yet had failed her.

The second war with England was in progress. Theodosia’s husband was governor of South Carolina, general of the state militia and active in the field. He could not leave his post. Accordingly, the plan of making the trip overland in her own coach was abandoned and Mrs. Alston decided to set sail in the *Patriot*, a small schooner which had put into Charleston after a privateering enterprise. Parton says that “she was commanded by an experienced captain and had for a sailing master an old New York pilot, noted for his skill and courage. The vessel was famous for her sailing qualities and it was confidently expected she would perform the voyage to New York in five or six days.” On the other hand, Burr himself referred to the ship bitterly as “the miserable little pilot boat.”

Whatever the precise facts, the *Patriot* was made ready and Theodosia went aboard with her maid and a personal physician, whom Burr had sent south from New York to attend his daughter on the voyage. The guns of the *Patriot* had been dismounted and stored below. To give her further ballast and to defray the expenses of the trip, Governor Alston filled the hold with tierces of rice from his plantations. The captain carried a letter from Governor Alston addressed to the commander of the British fleet, which was lying off the Capes, explaining the painful circumstances under which the little schooner was voyaging and requesting safe passage to New York.

Thus occupied, the *Patriot* put out from Charleston on the afternoon of December 30th and crossed the bar on the following morning. Here fact ends and conjecture begins.

When, after the elapse of a week, the *Patriot* had not reached New York, Burr began to worry and to make inquiries, but nothing was to be discovered. He could not even be sure until the arrival of his son-in-law's letter, that Theodosia had set sail. Even then, he hoped there might be some mistake. When a second letter from the South made it plain that she had gone on the *Patriot*, Burr still did not abandon hope and we see the picture of this sorely punished man walking every day from his law office in Nassau street to the fashionable promenade at the Battery, where he strolled up and down, oblivious to the hostile or impertinent glances of the vulgar, staring out toward the Narrows—in vain.

The poor little schooner was never seen again nor did any member of her crew reach safety and send word of her end. In due time came the report of the hurricane off Cape Hatteras, three days after the departure of the *Patriot*. Later still it was found that the storm had been of sufficient power to scatter the British fleet and send other vessels to the bottom. In all probability the craft which bore Theodosia had foundered with all hands.

Naturally, every other possibility came to be considered. It was at first believed that the *Patriot* might have been taken by a British man-of-war and held on account of her previous activities. Before this could be disproved it was suggested that the schooner might readily have been attacked by pirates, since her guns were stored below decks, and Mrs. Alston taken prisoner. Since there were still a few buccaneers in Southern waters, who sporadically took advantage of the preoccupation of the maritime powers with their wars, this theory of Theodosia Alston's disappearance gained many adherents, chiefly among the romantics, it is true. But the possibility of such a thing was also seriously considered by the husband and for a time by the father, who hoped the unfortunate woman might have been taken to one of the lesser West Indies by some not unfeeling corsair. Surely, she would soon or late make her escape and win her way back to her dear ones. In the end Burr rejected this idea, too.



~~ THEODOSIA BURR ~~

“No, no,” he said to a friend who revived the fable of the pirates, “she is indeed dead. Were she alive all the prisons in the world could not keep her from her father.”

But the mystery persisted and so the rumors and stories would not down. For a number of years after 1813 the newspapers contained, from time to time, reports from various parts of the world, generally to the effect that a beautiful and cultured woman had been seen aboard a ship supposed to be manned by pirates, that such a woman had been found in a colony of sea refugees in some vaguely described West Indian or South American retreat, or that a woman of English or American characteristics was being detained in an island prison, whither she had been consigned along with a captured piratical crew. The woman was always, by inference at least, Theodosia Burr.

Nor were the persevering Burr calumniators idle, a circumstance which seems to testify to the fear his enemies must have had of this strange and greatly mistaken man. Theodosia Burr had been seen in Europe in company with a British naval officer who was paying her marked attentions; she had been located on an island off Panama, where she was living in contentment as the wife of a buccaneer; she was known to be in Mexico with a new husband who had first been her captor, then her lover and now was in the southern Republic trying to revive Burr’s dream of empire.

The death of Governor Alston in 1816 caused a fresh crop of the old stories to blossom forth and the long deferred demise of Aaron Burr in 1836 released a still more formidable crop of rumors, fables and speculations. It was not until Burr had passed into the grave that there appeared on the American scene a type of romantic who made the next fifty years delightful. He was the old reformed pirate who desecrated his exit into eternity with a Theodosia Burr yarn. The great celebrity of the woman in her lifetime, the tragic fame of her father and the circumstances of her death naturally conspired to promote this kind of aberrant activity in many idle or unsettled minds. The result was that “pirates” who had been present at the capture of the *Patriot* in the first days of 1813 began to appear in many parts of the country and even in England, where they told, usually on their deathbeds,

the most engaging and conflicting tales. It took, as I have remarked, half a century for all of them to die off.

The accounts given by these various confessors differed in details only. All agreed that the *Patriot* had been captured by sea rovers off the Carolina coast and that the entire crew had been forced to walk the plank or been cut down by the pirates. Thus the fabulists accounted for the fact that nothing had ever been heard from any of Mrs. Alston's shipmates. Nearly all accounts agreed that Theodosia had been carried captive to an unnamed island where she had first been a rebellious prisoner but later the docile and devoted mate of the pirate chief. A few of the relators gave their narratives the spice of novelty by insisting that she, too, had been made to walk the plank into the heaving sea, after she had witnessed all her shipmates consigned to the same fate. The names of the pirate ships and pirate captains supposed to have caught the *Patriot* and disposed of Theodosia Burr Alston ranged through all the lists of shipping. No two dying corsairs ever agreed on this point.

Forty years after the disappearance of Mrs. Alston this typical yarn appeared in the *Pennsylvania Enquirer*:

“An item of news just now going the rounds relates that a sailor, who died in Texas, confessed on his death bed that he was one of the crew of mutineers who, some forty years ago, took possession of a brig on its passage from Charleston to New York and caused all the officers and passengers to walk the gang plank. For forty years the wretched man had carried about the dreadful secret and died at last in an agony of despair.

“What gives the story additional interest is the fact that the vessel referred to is the one in which Mrs. Theodosia Alston, the beloved daughter of Aaron Burr, took passage for New York, for the purpose of meeting her parent in the darkest days of his existence, and which, never having been heard of, was supposed to have been foundered at sea.

“The dying sailor professed to remember her well and said she was the last who perished, and that he never forgot her look of despair as she took the last step from the fatal plank. On reading this account, I regarded it as fiction; but on conversing with an

officer of the navy he assured me of its probable truth and stated that on one of his passages home several years ago, his vessel brought two pirates in irons who were subsequently executed at Norfolk for recent offenses, and who, before their execution, confessed that they had been members of the same crew and had participated in the murder of Mrs. Alston and her companions.

“Whatever opinion may be entertained of the father, the memory of the daughter must be revered as one of the loveliest and most excellent of American woman, and the revelation of her untimely fate can only serve to invest that memory with a more tender and melancholy interest.”

Despite the crudities of most of those yarns and their obvious conflict with known facts, the public took the dying confessions seriously and the editors of Sunday supplements printed them with a gay air of credence and a sad attempt at seriousness. Whatever else was accomplished by this complicity with a most unashamed and unregenerate band of downright liars, the pirate legend came to be disseminated in every civilized country and there was gradually built up the great false tradition which hedges the name and fame of Theodosia Burr. She has even appeared in novels, American, British and Continental, in the shape of a mysterious queen of freebooters.

The celebrity of her case came to be such that it was in time seized upon by the art fakers—perhaps an inevitable step toward genuine fame. Several authentic likenesses of Theodosia Burr are extant, notably the painting by John Vanderlyn in the Corcoran Gallery, Washington. Vanderlyn was the young painter of Kingston, N. Y., whom Burr discovered, apprenticed to Gilbert Stuart and sent to Paris for study. He painted the landing of Columbus scene in the rotunda of the Capitol. But the work of Vanderlyn and others neither restrained nor satisfied the freebooters of the arts. On the other hand, the pirate tales inspired them to profitable activity.

In the nineties of the last century the New York newspapers contained accounts of a painting of Theodosia Burr which had been found in an old seashore cottage near Kitty Hawk, N. C., the settlement afterwards made famous by the gliding experiments of the brothers Wright, and the scene of their first successful airplane flights. The printed accounts said that this picture had been found on an old schooner which had been wrecked off the

coast many years before and various inconclusive and roundabout devices were employed for identifying it as a likeness of the lost mistress of Richmond Hill.

Later, in 1913, a similar story came into most florid publicity in New York and elsewhere. It was, apparently, given out by one of the prominent Fifth Avenue art dealers. A woman client, it was said, had become interested in the traditional picture of Theodosia Burr, recovered from a wrecked vessel on the coast of North Carolina. Accordingly, the art dealer had undertaken a search for the missing work of art and had at length recovered it, together with a most fascinating history.

In 1869 Dr. W. G. Pool, a physician of Elizabeth City, N. C., spent the summer at Nag's Head, a resort on the outer barrier of sand which protects the North Carolina coast about fifty miles north of Cape Hatteras. While there he was called to visit an aged woman who lived in an ancient cabin about two miles out of the town. His ministrations served to recover her health and she expressed the wish to pay him in some way other than with money, of which useful commodity she had none. The good doctor had noticed, with considerable curiosity, a most beautiful oil painting of a "beautiful, proud and intelligent lady of high social standing." He immediately coveted this picture and asked his patient for it, since she wanted to give him something in return for his leechcraft. She not only gave him the portrait but she told him how she had come by it. Many years before, when she was still a girl, the old woman's admirer and subsequent first husband had, with some others, come upon the wreck of a pilot boat, which had stranded with all sails set, the rudder tied and breakfast served but undisturbed in the cabin. The pilot boat was empty and several trunks had been broken open, their contents being scattered about. Among the salvaged goods was this portrait, which had fallen to the lot of the old woman's swain and come through him to her.

From this old woman and Dr. Pool, the picture had passed to others without ever having left Elizabeth City. There the enterprising dealer had found it in the possession of a substantial widow, and she had consented to part with it. The rest of the story—the essentials—was to be surmised. The wrecked pilot boat was, to be sure, the *Patriot*, the date of its stranding agreed with the beclouded incidents of January, 1813, and the "intelligent lady of high social standing" was none other than Theodosia Burr.

It is unfortunate that the reproductions of this marvelous and romantic work do not show the least resemblance to the known portrait of Theodosia, and it is also lamentable to find that the art dealer, in his sweet account of his find, fell into all the vulgar misconceptions and blunders as regards his subject and the tales of her demise. But, while both these portrait yarns may be dismissed without further attention, they have undoubtedly served to keep the old and enchanting story before modern eyes.

In the light of analysis the prosaic explanation of the Theodosia Burr case seems to be the acceptable one. The boat on which she embarked was small and frail. At the very time it must have been passing the treacherous region of Cape Hatteras, there was a storm of sufficient violence to scatter the heavy British frigates and ships of the line. The fate of a little schooner in such weather is almost a matter for assurance. Yet of certainty there can be none. The famous daughter of the traditional American villain—the devil incarnate to all the melancholy crew of hypocritical pulpiteers and propagandists—went down to sea in her cockleshell and returned no more. Eleven decades have lighted no candle in the darkness that engulfed her.

III

THE VANISHED ARCHDUKE

One of the most engrossing of modern mysteries is that which hides the final destination of Archduke Johann Salvator of Austria, better known to a generation of newspaper readers as John Orth. In the dawn of July 13, 1890, the bark *Santa Margarita*,^[2] flying the flag of an Austrian merchantman, though her owner and skipper was none other than this wandering scion of the imperial Hapsburgs, set sail from Ensenada, on the southern shore of the great estuary of the Plata, below Buenos Aires, and forthwith vanished from the earth. With her went Johann Salvator, his variety-girl wife and a crew of twenty-six. Though search has been made in every thinkable port, through the distant archipelagoes of the Pacific, in ten thousand outcast towns, and though emissaries have visited all the fabled refuges of missing men, from time to time, over a period of nearly forty years, no sight of any one connected with the lost ship has ever been got, and no man knows with certainty what fate befell her and her princely master.

^[2] Sometimes written Sainte Marguerite.

The enigma of his passing is not the only circumstance of curious doubt and romantic coloration that hedges the career of this imperial adventurer. His story, from the beginning, is one marked with dramatic incidents. As much of it as bears upon the final episode will have to be related.

The Archduke Johann Salvator was born at Florence on the twenty-fifth day of November, 1852, the youngest son of Grand Duke Leopold II of Tuscany, and Maria Antonia of the Two Sicilies. He was, accordingly, a second cousin of the late Emperor Franz Josef of Austria-Hungary. At the baptismal font young Johann received enough names to carry any man blissfully through life, his full array having been Johann Nepomuk Salvator Marie Josef Jean Ferdinand Balthazar Louis Gonzaga Peter Alexander Zenobius Antonin.

Archduke Johann was still a child when the Italian revolutionists drove out his father and later united Tuscany to the growing kingdom of Victor

Emanuel. So the hero of this account was reared in Austria and educated for the army. Commissioned as a stripling, he rose rapidly in rank for reasons quite other than his family connections. The young prince was endowed with a good mind and notable for independence of thought. He felt, as he expressed it, that he ought to earn his pay, an opinion which led to indefatigable military studies and some well-intentioned, but ill-advised writings. First, the young archduke discovered what he considered faults in the artillery, and he wrote a brochure on the subject. The older heads didn't like it and had him disciplined. Later on, Johann made a study of military organization and wrote a well-known pamphlet called "Education or Drill," wherein he attacked the old method of training soldiers as automatons and advised the mental development of the rank and file, in line with policies now generally adopted. But such advanced ideas struck the military masters of fifty years ago as bits of heresy and anarchy. Archduke Johann was disciplined by removal from the army and the withdrawal of his commission. At thirty-five he had reached next to the highest possible rank and been cashiered from it. This in 1887.

Johann Salvator had, however, been much more than a progressive soldier man. He was an accomplished musician, composer of popular waltzes, an oratorio and the operetta "Les Assassins." He was an historian and publicist, of eminent official standing at least, having collaborated with Crown Prince Rudolf in the widely distributed work, "The Austro-Hungarian Monarchy in Word and Picture," which was published in 1886. He was also a distinguished investigator of psychic phenomena, his library on this subject having been the most complete in Europe—a fact suggestive of something abnormal.

Personally the man was both handsome and charming. He was, in spite of imperial rank and military habitude, democratic, simple, friendly, and unaffected. He liked to live the life of a gentleman, with diverse interests in life, now playing the gallant in Vienna—to the high world of the court and the half world of the theater by turns; again retiring to his library and his studies, sometimes vegetating at his country estates and working on his farms. Official trammels and the rigid etiquette of the ancient court seemed to irk him. Still, he seems to have suffered keen chagrin over his dismissal from the army.

Johann Salvator had, from adolescence, been a close personal friend of the Austrian crown prince. This intimacy had extended even to participation in some of the personal and sentimental escapades for which the ill-starred Rudolf was remarkable. Apparently the two men hardly held an opinion apart, and it was accepted that, with the death of the aging emperor and the accession of his son, Johann Salvator would be a most powerful personage.

Suddenly, in 1889, all these high hopes and promises came to earth. After some rumblings and rumorings at Schoenbrunn, it was announced that Johann Salvator had petitioned the emperor for permission to resign all rank and title, sever his official connection with the royal house, and even give up his knighthood in the Order of the Golden Fleece. The petitioner also asked for the right to call himself Johann Orth, after the estate and castle on the Gmündensee, which was the favorite abode of the prince and of his aged mother. All these requests were officially granted and confirmed by the emperor, and so the man John Orth came into being.

The first of the two Orth mysteries lies concealed behind the official records of this strange resignation from rank and honor. Even to-day, after Orth has been missing for a whole generation, after all those who might have been concerned in keeping secret the motives and measures of those times have been gathered to the dust, and after the empire itself has been dissolved into its defeated components, the facts in the matter cannot be stated with any confidence. There are two principal versions of the affair, and both will have to be given so that the reader may make his own choice. The popular or romantic account deserves to be considered first.

In the eighties the stage of Vienna was graced by several handsome young women of the name Stübel. One of them, Lori, achieved considerable operatic distinction. Another sailed to New York with her brother and appeared in operetta and in musical comedy at the old Casino. The youngest of these sisters was Ludmilla Stübel, commonly called Millie, and on that account sometimes, erroneously, Emilie.

This daring and charming girl began her career in a Viennese operetta chorus and rose to the rank of principal. She was not, so far as I can gather from the contemporary newspapers, remarkable for voice or dramatic ability, but her “surpassingly voluptuous beauty and piquant manners” won her almost limitless attention and gave her a popularity that reached across

the Atlantic. In the middle eighties Fräulein Stübel appeared at the Thalia Theater in the Bowery, New York, then the shrine of German comic opera in the United States, creating the rôles of *Bettina* in “The Mascot” and *Violette* in “The Merry War.”

The *New York Herald*, reviewing her American career a few years later, said: “In New York she became somewhat notorious for her risqué costumes. On one occasion Fräulein Stübel attended the Arion Ball in male costume, and created a scene when ejected. This conduct seems to have ended her career in the United States.”

This beautiful and spirited plebeian swam into the ken of Johann Salvator, of Austria, in the fall of 1888, when that impetuous prince had already been dismissed from the army and his other affairs were gathering to the storm that broke some months afterward. Catastrophic events followed rapidly.



~~ MILLIE STÜBEL ~~

In January, 1889, Prince Rudolf was found dead in the hunting lodge at Mayerling, with the Baroness Marie Vetsera, to whom the heir of a hundred kings is said to have been passionately devoted, and with whom he may have died in a suicide pact, though it has been said the crown prince and his sweetheart were murdered by persons whose identity has been sedulously concealed. This mysterious fatality robbed the dispirited Johann Salvator of his closest and most powerful friend. It may have had a good deal to do with what followed.

A few months later Johann Salvator married morganatically his stage beauty. It was now, after the lapse of a few months, that he resigned all rank, title, and privileges, left Austria with his wife, and married her civilly in London.

Naturally enough, it has generally been held that the death of the crown prince and the romance with the singer explained everything. The archduke, in disgrace with the army, bereft of his truest and most illustrious friend, and deeply infatuated with a girl whom he could not fully legitimize as his wife, so long as he wore the purple of his birth, had decided to “surrender all for love” and seek solace in foreign lands with the lady of his choice. This interpretation has all the elements of color and sweetness needed for conviction in the minds of the sentimental. Unfortunately, it does not seem to bear skeptical examination.

Even granting that Archduke Johann Salvator was a man of independent mind and quixotic temperament, that he was embittered by his demotion from military rank, and that he must have been greatly depressed by the death of Rudolf, who was both his bosom friend and his most powerful intercessor at court, no such extreme proceeding as the renunciation of all rank and the severing of family ties was called for.

It is true, too, that the loss of his only son through an affair with a woman of inferior rank, had embittered Franz Josef and probably caused the monarch to look with uncommon harshness upon similar liaisons among the members of the Hapsburg family. Undoubtedly the morganatic marriage of his second cousin with the shining moth of the theater displeased the monarch and widened the breach between him and his kinsman; but it must be remembered that Johann Salvator was only a distant cousin; that he was

not even remotely in line for succession to the throne; that he had already been deprived of military or other official connection with the government; and that affairs of this kind have been by no means rare among Hapsburg scions.

Dour and tyrannical as the emperor may have been, he was no Anglo-Saxon, no moralist. His own life had not been quite free of sentimental episodes, and he was, after all, the heir to the proudest tradition in all Europe, head of the world's oldest reigning house, and a believer in the sacredness of royal rank. He must have looked upon a morganatic union as something not uncommon or specially disgraceful, whereas a renunciation of rank and privilege can only have struck him as a precedent of the gravest kind.

Thus, Johann Salvator did not need to take any extreme step because of his histrionic wife. He might have remained in Austria happily enough, aside from a few snubs and the exclusion from further official participation in politics. He might have gone to any country in Europe and become the center of a distinguished society. His children would probably have been ennobled, and even his wife eventually given the same sort of recognition that was accorded the consorts of other princes in similar case, notably the Archduke Franz Ferdinand, whose assassination at Sarajevo precipitated the World War. Instead, Johann Salvator made the most complete and unprecedented severance from all that seemed most inalienably his. Historians have had to interpret this action in another light, and their explanation forms the second version of the incident, probably the true one.

In 1887, as a result of one of the interminable struggles for hegemony in the Balkans, Ferdinand of Saxe-Coburg-Gotha had been elected Prince of Bulgaria, but Russia had refused to recognize this sovereign, and the other powers, out of deference to the Czar, had likewise refrained from giving their approval. Austria was in a specially delicate position as regards this matter. She was the natural rival of Russia for dominance in the Balkans, but her statesmen did not feel strong enough openly to oppose the Russian course. Besides, they had their eyes fixed on Bosnia and Herzegovina. Ferdinand had been an officer in the Austrian army. He was well liked at Franz Josef's court, and stood high in the regard of Crown Prince Rudolf. What is most germane to the present question is that he was the friend of Johann Salvator.

In 1887, and for a number of years following, Russia attempted to drive the unwelcome German princeling from the Bulgarian throne by various military cabals, acts of brigandage, diplomatic intrigues, and the like. Naturally the young ruler's friends in other countries rallied to his aid. Among them was Johann Salvator. It is known that he interceded with Rudolf for Ferdinand, and he may have approached the emperor. Failing to get action at Vienna, he is said to have formed a plan of a military character which was calculated to force the hands of Austria, Germany, and England, bringing them into the field against Russia, to the end that Ferdinand might be recognized and more firmly seated. The plot was discovered in time, according to those who hold this theory of the incident, and Johann Salvator came under the most severe displeasure of the emperor.

It is asserted by those who have studied the case dispassionately, that Johann Salvator's rash course was one that came very near involving Austria in a Russian war, and that the most emphatic exhibitions of the emperor's reprehension and anger were necessary. Accordingly, it is said, Franz Josef demanded the surrender of all rank and privileges by his cousin and exiled him from the empire for life. Here, at least, is a story of a more probable character, inasmuch as it presents provocation for the unprecedented harshness with which Archduke Johann Salvator was treated. No doubt his morganatic marriage and his other conflicts with higher authority were seized upon as disguises under which to hide the secret diplomatic motive.

Louisa, the runaway crown princess of Saxony, started a tale to the effect that her cousin, Johann Salvator, had torn the Order of the Golden Fleece from his breast in a rage and thrown it at the emperor, which thing can not have happened since the negotiations between the emperor and his recreant cousin were conducted at a distance through official emissaries or by mail.

Again, the Countess Marie Larisch, niece of the Empress Elizabeth, recounts even more fantastic yarns. She says in so many words that Crown Prince Rudolf was in a conspiracy with Johann Salvator and others to seize the crown of Hungary away from the emperor and so establish Rudolf as king before his time. It was fear of discovery in this plot, she continues, that led to the suicide of Rudolf. A few days after Mayerling, she recites, she delivered to Johann Salvator a locked box (apparently containing secret

papers) on a promenade in the mist and he kissed her hand, exclaimed that she had saved his life—and more in the same strain.

Both these elevated ladies, it will be recalled, wrote or talked in self-justification and with the usual stupidity of the guilty. We may dismiss their yarns as mere women's gabble and return to the solid fact that Johann Salvator, impetuous, a little mad and smarting under his military humiliations, tried to mix into Balkan politics with the result that he found himself in the position of a bungling interloper, almost a betrayer of his country's interests.

Less than two years ago some further light was thrown upon the affair of the missing archduke through what have passed as letters taken from the Austrian archives after the fall of the Hapsburgs. These letters were published in various European and American newspapers and journals and they may be, as asserted, the veritable official documents. The portions I quote are taken from the Sunday Magazine of the *New York World* of January 10 and January 17, 1926. I must remark that I regard them with suspicion.

The first letter purports to be a report on the violent misconduct of Johann Salvator at Venice, as follows:

“Consul General Alexander, Baron Warsberg, to the Minister of Foreign Affairs, Count Kalnoky:

“I regarded it to be my duty to obtain information about the relations and meetings of Archduke Johann, and am sorry to have to report to Your Excellency that, *in a rather unworthy manner*, he had intercourse on board and in public with a *lady lodged on board of the yacht*, which intercourse has not remained unobserved and which he could not be induced to veil in spite of the remonstrances of (the President of the Chamber) Baron de Fin—Baron de Fin was so offended that, after much quarrel and trouble which made him ill, he left the ship and lodged in a little inn. He, on his part, reported to His Majesty the Emperor, and the Archduke is said to have, after five months of silence, written for the first time to His Majesty in order to complain of his Chamberlain. This unpleasant situation, still more troublesome abroad than it would have been at home, has

been solved last Sunday, the 20th inst, by the sudden advent of Field Marshal Lieut. Count Uxküll, who brought the Imperial Order that His Imperial Highness immediately return to Orth at the Sea of Gmünden—to which he immediately submitted.

“Baron de Fin, who is still living here and is on friendly terms with me, can give to the Archduke no certificate that would be bad enough. According to his experience and observation, His Highness does not know any other interests in the world than those of his person, and even this only in the common sense; that he, for instance, wished to ascend the throne of Bulgaria, not out of enthusiasm for the people or for the political idea but only in order to lose the throne after a short time and in this way to be freed from the influence of His Majesty, the Emperor. Baron de Fin pretends that there would be no other means to cure that completely undisciplined and immoral character but by dismissing him formally from the imperial family and by allowing him, as it is his desire, to enjoy under an adopted name, that liberty that he pretends to deem as the highest good. He believes him (the Archduke) to have such a 'dose' of pride that he would return with a penitent heart, if he then would be treated according to his new rank. I also have observed this haughtiness of the Prince despite his talks of liberalism.”

Then follows what may well have been the recreant archduke's letter of abdication, thus:

“Your Majesty:

“My behavior for nearly two years will have convinced Your Majesty that, abstaining from all interests that did not concern me, I have lived in retirement in the endeavor to remove Your Majesty's displeasure with me.

“Being too young to rest forever and too proud to live as a paid idler, my situation has become painful, even intolerable, to me. Checked by a justified pride from asking for re-employment in the army, I had the alternative either to continue the unworthy existence of a princely idler or—as an ordinary human being, to seek a new existence, a new profession. I was finally urged to a

decision in the latter sense, as my whole nature refused to fit into the frame of my position and my personal independence must be compensation for what I have lost.

“I therefore resign voluntarily, and respectfully return the titles and rights of an Archduke, as well as my military title into the hands of Your Majesty, but request Your Majesty submissively to deign to grant me a civil name.

“Far from my fatherland, I shall seek a purpose in life, and my livelihood probably at sea, and try to find a humble but honorable position. If, however, Your Majesty should call your subjects to arms, Your Highness will permit me to return home and—though only as a common soldier—to devote my life to Your Majesty.

“Your Majesty may deign to believe me that this step was only impeded by the thought of giving offense to Your Majesty—Your Majesty to whose Highness I am particularly and infinitely indebted and devoted from the bottom of my heart. But as I have to pay for this step dearly enough—with my entire social existence, with all that means hope and future—Your Majesty will pardon

“Your Majesty’s Most Loyally Obedient Servant,
“ARCHDUKE JOHANN, FML.”

Whether one cousin would use such a tone to another, even an emperor, is a question which every reader must consider for himself, quite as he must decide whether grown sons of kings were capable of such middle-class sentiment.

There follows the reply of Franz Josef which has the ring of genuineness:

“DEAR ARCHDUKE JOHANN:

“In compliance with your request addressed to me, I feel induced to decide the following:

“1. I sanction your renunciation of the right of being regarded and treated as a Prince of the Imperial House, and permit you to

adopt a civil name, which you are to bring to my notice after you have made your choice.

“2. I consent to your resigning your commission as an officer and relieve you at the same time of your responsibility for the Corps Artillery Regiment No. 2.

“3. I decide at the same time that you are to be struck out of the 'Knights of the Order of the Golden Fleece.'

“4. In disposing the suspension of your appenage (Civil List) from my court donation, I will inform your brother Archduke Ferdinand of Tuscany of the suspension of your share out of the family funds proceeds.

“5. Without my express permission you are forbidden to pass the frontiers of the monarchy from your residence abroad for a permanent or even a temporary stay in Austria. Finally,

“6. You are to sign the written declaration which the bearer of this, my manuscript will submit to you for this purpose and which he is charged to return to me after the signature is affixed.

“FRANZ JOSEF.”

“Vienna, Oct. 12, 1889.”

Some correspondence followed on the subject of John Orth's retention of his Austrian citizenship, which the emperor wished at first to deny him.

In any event, Johann Salvator, Archduke of Austria, and Prince of Tuscany, became John Orth, left Austria in the winter of 1889, purchased and refitted the bark *Santa Margarita*, had her taken to England, and there joined her with his operetta wife. He sailed for Buenos Aires in the early spring, with a cargo of cement, and reached the Rio de la Plata in May. His wife went ahead by steamer to join him at Buenos Aires.

I quote here, from the same source as the preceding, part of a last letter from John Orth to his mother at Gmünden:

“The country here is not very beautiful. Vast plains—the grazing grounds for flocks of bullocks, horses and ostriches. The towns are much more vivid. Everything is to be found here even at the

smaller places—electric lights, telephone, all comforts of modern civilization. The population, however, is not very sympathetic, a combination of doubtful elements from all countries, striving to become rich as soon as possible; corruption, fraud, theft, are the order of the day.

“I have made the acquaintance of our Consul. The officer is a certain Mikulicz, a cultured, most amiable man. The Honorary Consul is Mihanovich, a man who—a few years ago was a porter—and now is a millionaire. Social obligations have caused much loss of time, which could have been better used for business affairs. Imagine that nothing can be done in Ensenada, but we have always to go to Buenos Aires. And we have to hurry. The unloading of the cargo, negotiations about a new cargo, which I could have accepted if my merchant had not prevented me, changes of the board staff, purchase of supplies, work on board, the collection and despatch of money, &c., &c. The staff-officers have all to be changed. I have the command. Capt. Sodich is offended by the fact that I have sent away here in Plata a certain 'Sensal,' toward whom he was too indulgent and who was a man of bad reputation. He has given me to understand, in the most impolite manner, that he could not remain under such circumstances, that he did not permit himself to be treated as a mere zero with regard to the business on land, and therefore he resigned the command, &c. I, of course, accepted his resignation, and also remained firm when he afterward returned to excuse himself. The second lieutenant, Lucich, has shown the insolence to deceive the consignee and by calculating forty-eight tons more in favor of the ship, believing to do me a favor by such an action. I have given to the consignee the necessary indemnification—and to restore the compromised honor of the ship, have dismissed the lieutenant. The third lieutenant, Leva, took fright of the sea and quit voluntarily to seek his fortune on land. Also the boatswain Giaconi asked for his dismissal, so much the fire had frightened him.^[3]

^[3] There had been a fire on the *Santa Margarita* on the way to Buenos Aires.

“As present I have First Lieutenant, Jellecich, who acts as Captain and has the command—a man of forty-five years, very quiet, experienced and practical. Further, a Second Lieutenant, Mayer, Austro-German, very fit for accounts and writings; a boatswain, Vranich, who is a real jewel. Thus I hope—with the aid of God—to get on at least as well as under the command of Sodich.

“Imagine: Sodich and Lucich were atheists, and Leva has been a Spiritualist. I am happy to have made this change of personnel, with whom alone I shall have intercourse for months and months.

“In the first days of July, when everything will be ready, the journey will be continued. Now comes the most difficult part of the passage, i. e., the sailing around the dreadful Cape Horn, which is always exposed to howling storms. If all ends well, we shall be in two months at Valparaiso, which has been so beautifully described by Ludwig. God willing, we shall return from there in good health.

“I am very sorry to have received no news or, strictly speaking, no letters of yours. Neither in Ensenada nor in La Plata nor in Buenos Aires, neither poste restante nor in the Consulate, have I found your letters, and still I believe that you have been so good as to write me. I have found letters of Luise, that have been despatched by a German steamer, and also letters from London, as well as of the Swiss Bank, with which I am in communication, but not one letter from Austria. Luise informed me that she has been in Rome, and your dear telegram advised me that she has passed Salzburg. I was sorry to see from the newspapers that Karl has been ill in Baden; I should be happy if this were not true. Then I have read the many nonsensical articles written about myself, and am glad that the Consul, who has remained in communication with me, was able to state the truth. I am also glad of the marriage of Franz, the dream of the young woman is now likely to come to an end. I know nothing about Vienna and Gmünden. But I repeat that I am disappointed

at not having received your letters. I hope to God you are well and remain in good health.

“My next stay will be at Valparaiso. I, therefore, ask you to address letters: Giovanni Orth, Valparaiso (Chile) poste restante.

“Requesting you to give my kind remembrances to the whole family and asking you for your blessing, I respectfully kiss your hands.

“Your tenderly loving son,

GIOVANNI.”

The vessel was accordingly made ready at Ensenada, and on July 12, 1890, John Orth wrote what proved to be the last communication ever sent by him. It was addressed to his attorney in Vienna and said that he was leaving to join his ship for a trip to Valparaiso, which might consume fifty or sixty days. His captain, Orth wrote, had been taken ill, and his first officer had proved incompetent, so that it had been necessary to discharge him. Accordingly Orth was personally in command of his vessel, aided by the second officer, who was an experienced seaman. This is a somewhat altered version, to be sure.

The apparent intention of the renegade archduke at this time was to follow the sea. He had caused the *Santa Margarita* to be elaborately refitted inside, had insured her for two hundred and thirty thousand marks with the Hamburg Marine Insurance Company, and he had written his aged mother at Lake Gmünden of his determination to make his living as a mariner and an honest man, instead of existing like an idler on his comfortable private means. There is nothing in the record to indicate that he intended to go into hiding.



~~ ARCHDUKE JOHANN SALVATOR ~~

The *Santa Margarita* accordingly sailed on the thirteenth of July. With good fortune she should have been in the Straits of Magellan the first week in August, and her arrival at Valparaiso was to be expected not later than the first of September. But the ship did not reach port. The middle of September passed without word of her. When she had still not been reported by the first week in October the alarm was given.

As the result of diplomatic representations from the Austrian minister, the Argentine government soon made elaborate arrangements for a search. On December the second the gunboat *Bermejo*, Captain Don Mensilla, put out from Buenos Aires and made a four months' cruise of the Argentine coast, visiting every conceivable anchorage where a vessel of the *Santa Margarita*'s size might possibly have found refuge. Don Mensilla found that, beginning the night of July 20, and continuing intermittently for nearly a month, there had been storms of the greatest violence in the region of Cape Blanco and the southern extremity of Tierra del Fuego. More than forty vessels which had been in the vicinity in this period reported that the disturbances had been of unusual character and duration, more than sufficient to overwhelm a sailing bark in the tortuous and treacherous Magellan Straits.

Continuing his search, Don Mensilla found that a vessel answering to the general description of the *Santa Margarita* had been wrecked off the little island of Nuevo Ano, in the Beagle Canal, in the course of a hurricane which lasted from August 3 to August 5, at which dates the *Santa Margarita* was very likely in this vicinity. The Argentine commander could find no trace of the wreck and no clew to any survivors. He continued his search for more than two months longer and then returned to base with his melancholy report.

At the same time the Chilean government had sent out the small steamer *Toro* to search the Pacific coast from Cape Sunday to Cape Penas. Her captain returned after several months with no word of the archduke or any member of his crew.

These investigations, plus the study of logs and reports at the Hamburg maritime observatory, soon convinced most authorities that John Orth and his vessel were at the bottom of the Straits. But in this case, as in that of

Roger Tichborne,^[4] an old mother's fond devotion refused to accept the bitter arbitrament of chance. The Grand Duchess Maria Antonia could not bring herself to believe that winds and waves had swallowed up her beloved son. She stormed the court at Vienna with her entreaties, with the result that Franz Josef finally sent out the corvette *Saida*, with instructions to make a fresh search, including the islands of the South Seas, whither, according to a fanciful report, John Orth had made his way.

[4] See [page 82](#).

At the same time the grand duchess appealed to Pope Leo, and the pontiff requested Catholic missionaries in South America and all over the world to search for John Orth and send immediate news of his presence to the Holy See.

The *Saida* returned to Fiume at the end of a year without having been able to accomplish anything beyond confirming the report of Don Mensilla. And in response to the pope's letter many reports came back, but none of them resulted in the finding of John Orth.

Shortly after the return of the *Saida* the Austrian heirs of John Orth moved for the payment of his insurance, and the Hamburg Marine Insurance Company, after going through the formality of a court proceeding, paid the claim. In 1896 a demand was made on two banks, one in Freiburg and the other in St. Gallen, Switzerland, for moneys deposited with them by the archduke after his departure from Austria in 1889. One of these banks raised the question of the death proof, claiming that thirty years must elapse in the case of an unproved death. The courts decided against the bank, thereby tacitly confirming the contention that the end of the archduke had been sufficiently demonstrated. About two million crowns were accordingly paid over to the Austrian custodians.

In 1909 the court marshal in Vienna was asked to hand over the property of John Orth to his nephew and heir, and this high authority then declared that the missing archduke had been dead since the hurricane of August 3-5, 1890. He, however, asked the supreme court of Austria to pass finally upon the matter, and a decision was handed down on May 9, 1911, in which the archduke was declared dead as of July 21, 1890, the day on which the heavy storms about the Patagonian coasts began. His property was ordered distributed, and his goods and chattels were sold. The books, instruments,

art collection and furniture, which had long been preserved in the various villas and castles of the absent prince, were accordingly sold at auction in Berlin, during the months of October and November, 1912.

In spite of the great care that was taken to discover the facts in this case, and in the face of the various official reports and court decisions, a great romantic tradition grew up about John Orth and his mysterious destiny. The episodes of his demotion, his marriage, his abandonment of rank, and his exile had undoubtedly much to do with the birth of the legend. Be that as it may, the world has for more than thirty years been feasted with rumors of the survival of John Orth and his actress wife. In the course of the Russo-Japanese war the story was widely printed that Marshal Yamagato was in reality the missing archduke. The story was credited by many, but there proved to be no foundation for it beyond the fact that the Japanese were using their heavy artillery in a manner originally suggested by the archduke in that old monograph which had got him disciplined.

Ex-Senator Eugenio Garzon of Uruguay is the chief authority for one of the most plausible and insistent of all the John Orth stories. According to this politician and man of letters, there was present at Concordia, in the province of Entre Rios, Argentine Republic, in the years 1899 to 1900 and again from 1903 to 1905, a distinguished looking stranger of military habit and bearing, who had few friends, received few visits, always spoke Italian with a Señor Hirsch, an Austrian merchant of Buenos Aires, and generally conducted himself in a secretive and suggestive manner. Señor Hirsch treated the stranger with marked respect and deference.

Senator Garzon presents the corroborative opinion of the *Jefe de Policia* of Concordia, an official who firmly believed the man of mystery to be John Orth. On the other hand, Señor Nino de Villa Rey, the closest friend and sometime host of the supposed imperial castaway, denied the identity of his intimate and scoffed at the whole tale. At the same time, say Garzon and the chief of police, Señor de Villa Rey tried to conceal the presence of the man, and it was the activity of the police authorities, executing the law authorizing them to investigate and keep records of the identity of all strangers, that frightened the "archduke" away. He went to Paraguay and worked in a sawmill belonging to Villa Rey. Shortly before the outbreak of the Russo-Japanese war he left for Japan.

This is evidently the basis of the Yamagato confusion. Senator Garzon's book is full of doubtful corroboration and too subtle reasoning, but it is rewarding and entertaining for those who like romance and read Spanish. [5]

[5] See Bibliography.

The missing John Orth has likewise been reported alive from many other unlikely parts of the world and under the most incredible circumstances. Austrian, German, British, French, and American newspapers have been full of such stories every few years. The much sought man has been "found" mining in Canada, running a pearl fishery in the Paumotus, working in a factory in Ohio, fighting with the Boers in South Africa, prospecting in Rhodesia, running a grocery store in Texas—what not and where not?

One of the most recent apparitions of John Orth happened in New York. On the last day of March, 1924, a death certificate was filed with the Department of Health formally attesting that Archduke Johann Salvator of Austria, the missing archduke, had died early that morning of heart disease in Columbus Hospital, one of the smaller semi-public institutions. Doctor John Grimley, chief surgeon of the hospital, signed the certificate and said he had been convinced of the man's identity by his "inside knowledge of European diplomacy."

Mrs. Charlotte Fairchild, "a well-known society photographer," confirmed the story, and said she had discovered the identity of the man the year before and admitted some of her friends to the secret. He had lately been receiving some code cables from Europe which came collect, and his friends had obligingly supplied the money with which to pay for these mysterious messages. The dead man, said Mrs. Fairchild, had been living as O. N. Orlow, a doctor of philosophy, a lecturer in Sanscrit and general scholar.

"He was a marvelous astrologer and even lectured on Sanscrit," she recounted. "In his delirium he talked Sanscrit, and it was very beautiful."

According to the same friend of the "missing archduke," he had furnished her with the true version of his irruption from the Austrian court in 1889. The emperor Franz Josef had applied a vile name to John Salvator's mother, whereupon the archduke had drawn his sword, broken it, cast it at his ruler's feet, ripped off his decorations and medals, flung them into the

imperial face and finally blacked the emperor's eye. Striding from the palace to the barracks, the archduke had found his own cavalry regiment turned out to cry "Hoch!" and offer him its loyalty. He could have dethroned the emperor then and there, he said, but he elected to quit the country and have done with the social life which disgusted him.

This is the kind of story to appeal to romantics the world over. Aside from the preposterousness of the yarn as a whole, one needs only to remember that Johann Salvator was an artillery officer and never held either an active or honorary cavalry command; that he was, at the time of his final exit from Austria, long dismissed from the army and without military rank, and that striking the emperor would have been an offense that must have landed him in prison forthwith. Also, it is obvious that the "missing archduke" was pulling the legs of his friends a bit in the matter of the collect cablegrams. Except in cases where special prearrangements have been made, as in the instances of great newspapers, large business houses, banks, and the departments of government, cablegrams are never sent unless prepaid. An imperial government would hardly thus impose on a wandering scion. The imposture is thus apparent.

On the day after the death of the supposed archduke, however, a note of real drama was injected into the case. Mrs. Grace E. Wakefield, who was said to have been the ward, since her fourteenth birthday, of the dead "archduke," was found dead in her apartment on East Fifty-ninth Street that afternoon. She had drowned her two parrots and her dog. Then she had got into the bath tub, turned on the water, slashed the arteries of both wrists with a razor, and bled to death. Despondency over "John Orth's" death was given as the explanation.

These tales have all had their charm, much as they have lacked probability. Each and all they rest upon the single fact that the man was never seen dead. There is, of course, no way of being sure that John Orth perished in the hurricane-swept Straits of Magellan, but it is beyond reasonable question that he did not survive. For he would certainly have answered the pitiful appeals of his old mother, to whom he was devoted, and to whom he had written every few days whenever he had been separated from her. He would have been found by the papal missionaries in some part of the world, and the three vessels sent upon his final course must surely have discovered some trace of the man. It should be remembered that, except for letters that

were traced back to harmless cranks, nothing that even looked like a communication was ever received from Orth or Ludmilla Stübel, or from any member of the crew of the *Santa Margarita*.

In the light of cold criticism this great enigma is not profound. All evidence and all reason point to the probability that Johann Salvator and his ship went down to darkness in some wild torment of waters and winds, leaving neither wreck nor flotsam to mark their exit, but only a void in which the idle minds of romantics could spin their fabulations.

IV

THE STOLEN CONWAY BOY

At half past ten o'clock on the morning of August 16, 1897, a small, barefoot boy appeared in Colonia Street, in the somnolent city of Albany, the capital of New York State. He carried a crumpled letter in one grimy hand and stopped at one door after another, inquiring where Mrs. Conway lived. The Albany neighbors paid so little attention to him that several of them later estimated his age at from ten years to seventeen. Finally he rang the bell at No. 99 and handed his note to the woman he sought, the wife of Michael J. Conway, a railroad train dispatcher. With that he was gone.

Mrs. Conway, a little puzzled at the receipt of a letter by a special messenger, tore open the envelope, sat down in the big rocking chair in her front room, and began to read this appalling communication:

“Mr. Conway: Your little boy John has been kidnaped and when you receive this word, he will be a safe distance from Albany and where he could not be found in a hundred years. Your child will be returned to you on payment of *three thousand dollars*, \$3000, *provided* you pay the money *to-day and strictly obey the following directions*:

“put the money in a package and send it by a man you can depend on to the lane going up the hill a few feet south of the *Troy road first tollgate*, just off the road on this lane here is a tree with a big trunk have the man put the package on the *south* side of the tree and *at once come away and come back to your house*.

“We want the money left at this spot at *exactly 8:15 o'clock to-night*.

“See that no one is with the man you send and that no one follows him or you will *never look upon your little boy again*

“If you say a word of this to any one outside *your* family and the man you send with the money or if you take any steps to bring it to the attention of *the police you will never see your child* again, for if *any one* knows of it we will not take the risk of returning him, but will leave him *to his fate*.

“If you obey our instructions in every point you will have word *within two hours* after the money has been left where you can go and get your boy safe and sound

“We have been after this thing for a *long time* we *know our business* and can beat all the police in America

“we are after the money and if you do what you are *told, no harm will come to your little boy*. but if you fail to do what we tell you or do what we tell you not to do *you will never look upon your child again as sure as there is a god in heaven* we know you have the money in the bank and that the bank closes at 2 o’clock and we *must* have it *to-night so get in time*. don’t tell them why you draw it out. You can say you are buying property if you wish for this thing must be *between you and us* if you want your boy back alive.

“Remember the case of *Charley Ross* of Philadelphia. His father *did not do as he was told* but went to the police and then spent five times as much as he could have got him back for but never saw his little boy *to the day of his death a word to the wise man is enough*

“Now *understand us plainly* get the money from the bank *in time* don’t open your lips to any one and send the money by a trusty man to the place we say at 8:15 a *quarter past eight to-night* He wants to *be sure that no one else sees him put the package there*, so there is no possible danger of any one *else* getting it, then within two hours you shall have word from us where your boy is.

“Every move you make will be known to us and if you attempt *any crooked work* with us say *good-by to your boy* and look out for *yourself* for we will *meet you again when you least expect it*

Do as we tell you and all will be well and we will deal straight with you if you make the *least crooked move* you will *regret it to the day of your death*.

“If you want to have your little boy back *safe and sound*. Keep your lips closed and do *exactly as you are told*

“If you fail to obey *every direction* you will have *one child less*.

“Yours truly

“The Captain of the Gang.”

Mrs. Conway threw down the letter before she had got past the first few sentences and ran into the street, screaming for her boy. He did not answer. None of the neighbors had seen him since eight o'clock, when he had been let out to play in the sun. It was true.

The distracted mother, clutching the strange epistle in her hand, ran to summon her husband. He read the letter, set his jaw, and sent for the police. No one was going to extort three thousand dollars from him without a fight.

Two of the Albany detectives were detailed to ask questions in the neighborhood and see whether there had been any witnesses to the abduction. The others began an examination of the strange letter in the hope of recognizing the handwriting. This attempt yielded nothing and the letter was temporarily cast aside. Here the first blunder was made, for I have yet to examine a kidnapper's letter more revealingly written.

The letter is remarkable in many ways. It is long, prolix, and anxiously repetitive. It is without punctuation in part, wrongly punctuated at other points, miscapitalized or not capitalized at all, strangely underlined, curiously paragraphed, often without even the use of a capital letter, wholly illiterate in its structure and yet contradictory on this very point. The facsimile copy which I have before me shows that in spite of all the solecisms and blunders, there is not a misspelled word in the long missive, a thing not always to be said in favor of the writings of educated and even eminent men. Also, there are several cheap literary echoes in the letter, such as “never look upon your child again” and “leave him to his fate.”

The following deductions should have been made from the letter:

That it was written or dictated by some one familiar with Albany and with the affairs of the Conways, since the writer knows Conway has the money in the bank, knows the closing hour, is familiar with the surrounding terrain, is precise in all directions, and knows there are other and older children, since he constantly refers to “your little boy” and says that Conway will have “one child less.”

That the writer of the letter is not a professional criminal. Otherwise he would not have written at length.

That the writer is extremely nervous and anxious to have the thing done at once.

That he is a man without formal education, who has read a good deal, especially romances and inferior verse.

That, judging from the chirographic fluctuations, he is a man between thirty-five and forty-five years of age.

That the kidnappers are anxious to have the money intrusted to some man known to them, to whom they repeatedly refer and whom they believe likely to be selected by Conway.

That the child is in no danger, since the letter writer doth threaten too much.

That the search for the kidnappers should begin close at home.

Lest I be accused of deducing with the aid of what the dialect calls hindsight, it may be well to say that these conclusions were made from the facsimile of the letter by an associate who is not familiar with the case and does not know the subsequent developments.

The detective sciences had, however, reached no special developments in Albany thirty years ago and little of this vital information was extracted from the tell-tale letter. Instead of making some deductions from it and going quietly to work upon them, the officers chose the time-honored methods. They decided to send a man to the big tree with a package of paper, meantime concealing some members of the force near by to pounce upon any one who might call for the decoy. The whole proceeding ended in a bitter comedy. The police went to the place at night and used lanterns, which must have revealed them to any watchers. They were not careful

about concealing their plan and they even chose the wrong tree for the deposition of the lure!

So the second day of the kidnapping mystery opened upon prostrated parents, who were only too willing to believe that their boy had been done away with, an excited community which locked the doors and feared to let its children go to school, and a thoroughly discomfited and abused police department.

The child had been stolen on Monday. Tuesday, the police made a fresh start. For one thing they searched the country round about the big tree on the Troy road, which may have been good training for adipose officers. Otherwise it was an empty gesture, such as police departments always make when the public is aroused. For another thing, they spread the dragnet and hauled in all the tramps and vagrants who chanced to be stopping in Albany. They also searched the known criminal resorts, chased down a crop of the usual rumors, and wound up the day in breathless and futile excitement.

Not so, however, with the newspaper reporters. These energetic young men, whose repeated discomfitures of the police were one of the interesting facts of American city government in the last generation, had gone to work on the Conway case themselves. A young man named John F. Farrell, employed on one of the Albany papers, began his investigations by interviewing the father of the missing child. One of the things the reporter wanted to know was whether any one had ever tried to borrow or to extort money from Conway. The train dispatcher replied with some reluctance that his brother-in-law, Joseph M. Hardy, husband of one of Conway's older sisters, had repeatedly borrowed small amounts from the railroad man and once made a demand for a thousand dollars, which he failed to get, though he used threatening tactics.

The reporter said nothing, but set about investigating Hardy. He found that the man was in Albany, that he was showing no signs of fright, and that he was indeed going about with much energy, apparently devoting himself to the quest for the stolen boy and threatening dire vengeance upon the kidnappers. Reporter Farrell and his associates took this business under suspicion and investigated Hardy's connections and financial situation. They found the latter to be precarious. They also discovered that Hardy was the bosom friend of a man named H. G. Blake, who had operated a small

furniture store in Albany, but was known to be an itinerant peddler and merchant, a man of no very definite social grade, means of livelihood, or character. In the middle of the afternoon, when this connection was first discovered, Blake could not be found in Albany, but late in the evening he was discovered, and the reporters took him in hand.

At the time they had nothing to go upon except Blake's firm friendship with Hardy, the relative of the missing child, who had once tried to extort a thousand dollars and presumably knew the money affairs of his brother-in-law. The reporters had only one other detail. In the course of the day they had canvassed all the livery stables in and about Albany. They found that early on Monday morning a man had rented a horse and light wagon at a suburban stable and signed for it. This signature was compared with that of Blake, taken from a hotel register and some tax declarations. The handwriting seemed to be identical, and the reporters suspected that Blake had rented the rig under an assumed name.

While Hardy, Conway's brother-in-law, was lulled into the belief that he was under no suspicion and allowed to go to his home and to bed, Blake was taken to the newspaper office by the reporters and there asked what he knew about the Conway kidnapping. He denied all knowledge until he was assured that the paper wished to score a "scoop" on the story and was willing to pay \$2,500 cash for information that would lead to the recovery of the boy.

A large wallet was shown him, containing a wadding of paper with several bank notes on the outside. Apparently the man was a bit feeble-minded. At any rate, he fell into the trap, abandoning all caution and reaching greedily for the money. He said, of course, that he knew nothing directly about the affair, but that he could find out. Later, when the money was withdrawn from his sight he began to boast of what he could do. Under various incitements and provocations he talked along until it became apparent that he was one of the kidnappers. When it was too late the man realized that he had talked too much, and then he tried to retract. When he attempted to leave the office he was met by two officers who had been quietly summoned by the reporters and appeared disguised as drivers. The wallet was once more held out to Blake, and his greed so far overcame him that he agreed to guide the reporters to the spot where the boy was hidden, hold a conference with his captain, and see that the child was delivered.

The little party, consisting of two reporters, the two disguised officers, and Blake set out late at night and arrived at a place on the Schenectady road, about eight miles from Albany, shortly before midnight. Blake here demanded the cash, but was told that it would not be handed over until he produced the boy. He then said that he thought the purse did not contain the money. A long argument followed. Once more the glib talking of the reporters prevailed, and Blake went into the dense woods, accompanied by one of the officers, ostensibly to find the boy.

After proceeding some distance, Blake told the officer, whom he still believed to be a driver, to remain behind, and proceeded farther into the forest. More than an hour passed before he returned, and the party was about to drive off, thinking the man had played a clever trick. Blake, however, came back querulous and suspicious. He demanded once more to see the money, and being refused, said the trick was up. One of the men, however, persuaded him to take him to the other members of the gang, promising that the money would be delivered the moment the boy was seen alive. Apparently Blake was once more befooled, for he allowed the supposed driver to accompany him and made off again into the heart of the woods. One of the reporters and the other disguised policeman followed secretly.

When the two pairs of men had proceeded about three hundred yards, the second lurking in the van of the first, not daring to strike a light, slashed by the underbrush and in evident danger of being shot down, the smoky light of a camp fire appeared suddenly ahead. In another minute a childish voice could be heard, and the gruff tones of a man trying to silence it. Blake and his companion made for the fire and were met by a masked man with a leveled revolver who informed them that they were surrounded and would be killed if they made a false move. There was a parley, which lasted till the second pair came up.

Just what happened at this interesting moment is not easy to say. The witnesses do not agree. Apparently, however, the little boy, momentarily released by his captor, ran away. The three hunters thereupon made a rush for him and there was an exchange of shots in the darkness. One of the officers pounced upon the boy and dragged him to the road, closely followed by the reporter and the other officer, leaving Blake, the masked man, and whatever other kidnappers there might be to flee or pursue. The

boy was quickly tossed into the wagon, the reporter and officers sprang in after him, and the horses were lashed into a gallop. Apparently, the midnight adventure had been a little trying on the nerves of the party.

After the rescuers had driven a mile or two at furious speed, it became apparent that there was no pursuit on part of the kidnappers and the drive was slowed to a more comfortable pace while the reporters questioned the child.

Johnny Conway recited in a childish prattle that he had been playing in the street before his father's house when a dray wagon came by. He had run and caught on to the rear of this for a ride down the block. As he dropped off the wagon, he had been met by a stranger who smiled, patted his head and offered to buy him candy. The child was readily beguiled and taken to the light wagon in which he was driven several miles into the country. Here he was concealed for a time in a vacant cabin. The next night he and his captors spent in a church until they moved out into the woods and began to camp. At this spot the rescuers had found him.

According to the child, the kidnappers had not been cruel or threatening. They had provided plenty of food. They had even played games with the little boy and tried to keep him amused. The only complaint Johnny Conway had to make was against the mosquitoes, which had cruelly bitten him and tortured him incessantly for the two nights and one day he and his captors spent in the woods.

Very early on the morning of August 19th, just three days after the kidnapping, a dusty two-seated wagon turned into Colonia Street and proceeded slowly up that quiet thoroughfare toward the Conway house. In spite of the unseasonable hour there was a crowd in the street, some of whose members had been on watch all night. Albany had been seized with terror and morbid curiosity. The Conway house was never without a few straggling watchers, eager for the first news or crumbs of gossip. Reporters from the New York newspapers were on the scene, and special officers from the great city were on their way. Everything was being prepared for another breathless, nation-wide sensation. The two-seated wagon spoiled it all in the gray light of that early morning.

As the vehicle came close to the Conway house, and some of the stragglers ran out toward it, possibly sensing something unusual, one of the reporters

rose in the rear and lifted a small and sleepy boy in his arms.

“Is it him? Is it the bhoy?” an Irish neighbor called anxiously.

“It’s Johnny Conway!” called the triumphant newspaper sleuth.

There was a cheer and then another. Sleeping neighbors came running from their houses in night garb. The Conways came forth from a sleepless vigil and caught the child in their arms. So the mystery of the boy’s fate came to an abrupt end, but another and more lasting enigma immediately succeeded.

Hardy, the boy’s conspiring relative, was immediately seized at his home and dragged to the nearest station house. The rumor of his connection with the kidnapping got abroad within a few hours, and the police building was immediately besieged by a crowd which demanded to see the prisoner. The police drove the crowd off, but it returned after an hour, much augmented in numbers and provided with a rope for a lynching. After several exciting hours, the mob was finally cowed and driven away by the mayor of Albany and a platoon of police with drawn revolvers.

One of the conspirators was thus safely in jail, but at least two others were known, Blake and the man in the mask. Several posses set out at once and surrounded the woods in which the child had been found. After beating the brush timidly all day and spending a creepy night in the black forest, fighting the mosquitoes, the citizenry lost its pallid enthusiasm and returned to Albany only to find that the police of Schenectady had arrested Blake in that city late the preceding evening and that the man was lodged in another precinct house where he could not communicate with Hardy. Another abortive lynching bee was started. Once more the mayor and the police drove off the howling gangs.

The man in the mask, however, was still at large. Both Hardy and Blake at first refused to name him, and the police were at sea. Then a curious thing happened.

William N. Loew, a New York attorney, reading of the kidnapping affair at Albany, which appeared in the metropolitan newspapers under black headlines, went to the office of one of the journals and said he believed he could give valuable information.

On July 15th, a little more than a month earlier, Bernard Myers, a clothing merchant of West Third Street, New York, had flirted on a Broadway car

with a handsome young woman, who had given him her name and address as Mrs. Albert Warner, 141 West Thirty-fourth Street, and invited him to write her. Myers, more avid than cautious, wrote the woman a fervid letter, asking for an appointment. A few days later two men appeared in the Myers store. One of them, who carried a heavy cane, said that he was the husband of Mrs. Warner, brandished the guilty letter in one hand, the cane in the other, and demanded that Myers give him a check for three hundred dollars on the spot or take the consequences. Myers, after some argument, gave a check for one hundred dollars, and then, as soon as the men had left his store, rushed to his bank and stopped payment. He then visited the district attorney and caused the arrest of Warner, who was now arraigned and released on bail.

Loew had been summoned to act as attorney for Warner. He now told the newspapers of disclosures his client had made to him in consultation. Warner, who was himself an attorney with an office at 1298 Broadway, had told Loew that he was interested in a plot to organize kidnapping on a commercial scale, and that the first jobs would be attempted in up-State New York. He gave Loew many details and talked plausibly of the ease with which parents could be stripped of considerable sums. Loew, who considered his client and fellow attorney slightly demented, had paid little attention to this sinister talk at the time. Now, however, he felt sure that Warner had told the truth and that he probably was the man in the mask.

Faced with these revelations, in his cell, the pliant Blake admitted that he was a friend of Warner's, that they had indeed been schoolmates in their youth. He also admitted that he had been in New York a few days before the abduction of Johnny Conway and had then visited Warner. So the chase began.

The police discovered that Warner had been at his office a day ahead of them and slipped out of New York again. They also found that he had been at Albany the three days that Johnny Conway had been detained. Their investigations showed also that Warner, though he had the reputation of being a particularly shrewd and energetic counselor, had never adhered very closely to the law himself, but had again and again been implicated in shady or criminal transactions, though he had always escaped prison, probably through legal acumen.

It was soon apparent that the man had got well away, and an alarm was sent across the country. The police circulars that went out to all parts of America and the chief British and continental ports, described a man between forty and forty-five years old, more than six feet tall, slender, dark, with hair of iron gray over a very high forehead. That Warner was a bicycle enthusiast was the only added detail.

The quest for Warner was one of the most exciting in memory. The first person sought and found was the Mrs. Warner who had given her name and address to Bernard Myers on the Broadway car and figured in the subsequent blackmail charges. She was found living quietly at a boarding house in one of the adjacent New Jersey towns and said that she had not seen Warner for some weeks, a claim which turned out to be very near the truth. He had, in fact, visited her just before he started to Albany, but it is doubtful whether he confided to the girl, who was not in truth his wife, any of his plans or intentions.

It was then discovered that Attorney Warner was married and had a wife, from whom he had long been separated, living in a small town in upper New York. The detectives also visited this woman, but she had not seen her husband in years and could supply no information.

Then the rumor-starting began. Warner was seen in ten places on the same day. His presence was reported from every corner of the country. Clews and reports led weary officers thousands of miles on empty pursuits. Finally, when no real information as to the man developed, the public wearied of him, and news of the case dropped out of the papers.

Meantime Hardy and Blake came up for trial. Blake made an attempt to mitigate his case by turning State's evidence, and Hardy pleaded that he had only been an intermediary, whose motivation was his brother-in-law's closeness and reproof. In view of the fact that the evidence against the two men seemed conclusive, even without the admissions of either one, the prosecutor decided to reject their pleas and force them to stand trial. The cases were quickly heard and verdicts of guilty reached on the spot. The presiding justice at once sentenced both men to serve fourteen and one half years in the State prison at Dannemora, and they were shortly removed to that gloomy house of pain in the Adirondack Mountains.

All this happened before the first of October. The prisoners, having been sentenced and sent to the penitentiary, and the kidnapped boy being safely in his parents' home, the whole affair was quickly forgotten.

But a little after seven o'clock on the evening of December 12, two men entered the farm lot of William Goodrich near the little village of Riley in central Kansas, about two thousand miles from Albany and the scene of the kidnapping. It was past dusk and the farm hand, one George Johnson, was milking in the cow stable by lantern light.

As the rustic, clad in overalls, covered with dirt and straw, horny of hand and tanned by the prairie winds, rose from his stool and started to leave the stable with his buckets, the two strangers stepped inside and approached him. One of them laid a rough hand on the farmer's shoulder and said soberly:

"Warner, I want you. Come along."

"Must be some mistake," said the milker in a curious Western drawl. "My name is Gawge Johnson."

"Out here it may be," said the officer, "but in New York it's Albert S. Warner. I have a warrant for your arrest in connection with the Conway kidnapping. You'll have to come."

The farm hand was taken to the house, permitted to change his clothes, and loaded upon the next eastbound train. When he reached Kansas City he refused to go farther without extradition formalities. After the officers had telegraphed to New York, the man changed his mind again and proceeded voluntarily back to Albany, where he was placed in jail and soon brought to trial. He was sentenced to fifteen years' imprisonment, the maximum penalty, as the leader of the kidnappers.

The captor of Warner had been Detective McCann of the Albany police force. He had trailed the man about five thousand miles, partly on false scents. In his wanderings he had gone to Georgia, Tennessee, Minnesota, New Mexico, Missouri, and finally to Kansas, where he had satisfied himself that Warner was working on the Goodrich farm. McCann had then called a Pinkerton detective to his aid from the nearest office and made the arrest as already described.

The truth about the Conway kidnapping case seems to have been that Hardy, the boy's uncle by marriage, had been scheming for some time to get a thousand dollars out of his brother-in-law. He had confided his ideas to Blake, his chum. Blake had suggested the inclusion of his friend, Warner, whom he rated a smart lawyer and clever schemer. Warner had then acted as organizer and leader, with what success the reader will judge.

V

THE LOST HEIR OF TICHBORNE

On the afternoon of the twentieth of April, 1854, the schooner *Bella* cast off her moorings at the Gamboa wharves in Rio, worked her way down the bay, and stood out to sea, bound for her home port, New York. She was partly in ballast, because of slack commerce, and carried a single passenger. About the name and fate of this solitary voyager grew up a strange mystery and a stranger history.

When the last glint of the *Bella's* sails was seen from Rio's island anchorages, that vessel passed forever out of worldly cognizance. She never reached any port save the ultimate, and of those that rode in her, nothing came back but rumor and doubt. Her end and theirs was veiled in a storm and hidden among unknown waters. The epitaph was written at Lloyd's in the familiar syllables: "Foundered with all hands."

Of the *Bella's* master, or the forty members of her crew, there is no surviving memory, and only a grimy hunt through the old shipping records could avail in the discovery of anything concerning them. But the lone passenger happened to be the son of a British baronet and heir to a great estate—Roger Charles Doughty Tichborne. The succession and the inheritance of the Tichborne wealth depended upon the proof of this young man's death. There was, accordingly, some formal inquiry as to the *Bella* and her wreck. The required months were allowed to pass; the usual reports from all ports were scanned. On account of the insistence of the Tichborne family, some additional care was taken. But in July, 1855, the young aristocrat was formally declared lost at sea, his insurance paid, and the question of succession taken before the court in chancery, which determined such matters.

Here, no doubt, the question as to the fate of young Tichborne would have ended, had it not been for the peculiar insistence of his mother. Lady Tichborne would not, and probably could not, bring herself to believe that her beloved elder son had met his end in this dark and mysterious manner. In the absence of human witnesses to his death and objective proofs of the

end, she clung obstinately to hope and continued to advertise for the “lost” young man for many years after the courts had solved the problem—or believed they had.

There had already been the cloud of pathos about the head of Roger Tichborne, whose detailed story is necessary to an understanding of subsequent events. Born in Paris on January 5, 1829—his mother being the natural daughter of Henry Seymour of Knoyle, Wiltshire, and a beautiful French woman—Roger was the descendant of very ancient Hampshire stock. His father, the tenth baronet, was Sir James Tichborne and his grandfather was the once-celebrated Sir Edward of that line.

Because of her antipathy to her husband’s country, Lady Tichborne decided that her son should be reared as a Frenchman, and the lad spent the first fourteen years of his life in France, with the result that he never afterward became quite a Briton. Indeed, his brief English schooling at Stonyhurst never went far enough to get the young man out of the habit of thinking in French and translating his Gallic idioms into English, a fault that appears in his letters to the very end, and one that caused him considerable suffering as a boy in England.

Roger Tichborne left Stonyhurst in 1849 and joined the Sixth Dragoon Guards at Dublin, as a subaltern. But in 1852 he sold out his commission and went home. His peculiarities of manner and appearance, his accent and strange idioms and a temperamental unfitness for soldiering had made him miserable in the army. The constant cruel, if thoughtless, jibes and mimicries of his fellows found him a sensitive mark.

But the unhappy termination of the young man’s military career was only a minor factor in an almost desperate state of mind that possessed him at this time. He had fallen in love with his cousin, Kate Doughty, afterward Lady Radcliffe, and she had found herself unable to reciprocate. After many pleadings and storms the young heir of the Tichbornes set sail from Havre in March, 1853, and reached Valparaiso, Chile, about three months later, evidently determined to seek forgetfulness in stranger latitudes. In the course of the southern summer he crossed the Andes to Brazil and reached Rio in March or early April. Here he embarked on the *Bella* for New York, as recited, his further plans remaining unknown. In letters to his mother he

had, however, spoken vaguely of an intention to go to Australia, a hint upon which much of the following romance was erected.

When, in the following year, the insurance was paid, and the will proved, the Tichbornes accepted the death of the traveler as practically beyond question. But not so his mother. She began, after an interval, to advertise in many parts of the world for trace of her son. Such notices appeared in the leading British, American, Continental, and Australian journals without effect. Only one thing is to be learned from them, the appearance of the lost heir. He is described as being rather undersized, delicate, with sharp features, dark eyes, and straight black hair. These personal specifications will prove of importance later on.

In 1862 Roger Tichborne's father died, and a younger son succeeded to the baronetcy and estates. This event stirred the dowager Lady Tichborne to fresh activities, and her advertisements began to appear again in newspapers and shipping journals over half the world. As a result of these injudicious clamorings for information, many a seaspawned adventurer was received by the grieving mother at Tichborne House, and many a common liar imposed on her for money and other favors. Repeated misadventures of this sort might have been considered sufficient experience to cause the dowager to desist from her folly, but nothing seemed to move her from her fixed idea, and the fantastic reports and rumors brought her by every wandering sharper had the effect of strengthening her in her fond belief.

Lady Tichborne's pertinacity, while it had failed to restore her son, had not been without its collateral effects. Among them was the wide dissemination of a romantic story and the enlistment of public sympathy. A large part of the newspaper-reading British populace soon came to look upon the lady as a high example of motherly devotion, to sympathize with her point of view, and gradually to conclude that she was right, and that Roger Tichborne was indeed alive, somewhere in the antipodes. This belief was not entirely confined to emotional strangers, as appears from the fact that Kate Doughty, the object of the young nobleman's bootless love, refused various offers of marriage and steadfastly remained single, pending a termination of all doubt as to the fate of her hapless lover.

Thus, in one way and another, a great legend grew up. The Tichborne case came to be looked upon in some quarters as another of the great mysteries

of disappearance. In various distant lands volunteer seekers took up the quest for Roger Tichborne, impelled sometimes by the fascinating powers of mystery, but more often by the hope of reward.

In 1865 a man named Cubitt started a missing friends' bureau in Sydney, New South Wales, a fact which he advertised in the London newspapers. Lady Tichborne, still far from satisfied of her son's death, saw the notice in *The Times* and communicated with Cubitt. As a result of this contact, Lady Tichborne was notified, in November, 1865, that a man had been discovered who answered the description of her missing "boy." This fellow had been found keeping a small butcher shop in the town of Wagga Wagga, New South Wales, and was there known by the name of Thomas Castro, which he admitted to be assumed.

Lady Tichborne, excited and elated, communicated at once and did not fail to give the impression that the discovery and return of her eldest son would be a feat to earn a very high reward, since he was the heir to a large property, and since she was herself "most anxious to hear." Australia was then, to be sure, much farther away than to-day. There were no cables and only occasional steamers. It often took months for a letter to pass back and forth. Thus, after painful delays, Lady Tichborne received a second communication in which she was told that there could be little doubt about the identification, as the butcher of Wagga Wagga had owned to several persons that he was indeed not Thomas Castro, but a British "nobleman" in disguise, and to at least one person that he was none other than Roger Tichborne.

Not long afterward Lady Tichborne received her first letter from her missing "son". He addressed her as "Dear Mama," misspelled the Tichborne name by inserting a "t" after the "i," spelled common words abominably, and handled the English language with a fine show of ignorance. Finally he referred to a birthmark and an incident at Brighton, of which Lady Tichborne had not the slightest recollection. At first she was considerably damped by these discrepancies and mistakes of the claimant, as the man in Wagga Wagga came shortly to be termed. But Lady Tichborne soon rallied from her doubts and asserted her absolute confidence in the genuineness of the far-away pretender to the baronetcy.

Her stand in the matter was not inexplicable, even when it is recalled that subsequent letters from Australia revealed the claimant to be ignorant of common family traditions and totally confused about himself, even going so far as to say that he had been a common soldier in the carabineers, when Roger Tichborne had been an officer, and referring to his schooling at Winchester, whereas the Roman Catholic Tichbornes had, of course, sent their son to Stonyhurst. Lady Tichborne apparently ascribed such lapses to the “terrible ordeal” her boy had suffered, and she was not the only one to recognize that Roger Tichborne had himself, because of his early French training and the meagerness of his subsequent education, misspelled just such words as appeared incorrectly in the letters, and he had misused his English in a very similar fashion.

These details are interesting rather than important. Whatever their final significance, Lady Tichborne sent money to Australia to pay for the claimant’s passage home. He arrived in England, unannounced, in the last month of 1866, and visited several localities, among them Wapping, a London district which played a vital part in what was to come. He also visited the vicinity of Tichborne Park and made numerous inquiries there. Only after these preliminaries did he cross to Paris, where he summoned Lady Tichborne to meet him. When she called at his hotel she found him in bed complaining of a bad cold. The room was dimly lighted, and she recounted afterward that he kept his face turned to the wall most of the time she spent with him.

What were the lady’s feelings on first beholding this man is an interesting matter for speculation. She had sent away, thirteen years before, a slight, delicate, poetic aristocrat, whose chief characteristic was an excessive refinement that made him quite unfit for the common stresses of life. In his stead there came back a short, gross, enormously fat plebeian, with the lingual faults and vocal solecisms of the cockney. In the place of the young man who knew his French and did not know his English, here was a fellow who could speak not a word of the Gallic tongue and used his English abominably.

None of these things appeared to make any difference to Lady Tichborne. She received the claimant without reservation, said publicly that she had recovered her darling boy, and went so far as to announce her reasons for accepting him as her son.

The return of Roger Tichborne was, to be sure, an exciting topic of the newspapers of the time, with the result that the romantic story of his voyage, the shipwreck of the *Bella*, his rescue, his wanderings, his final discovery at Wagga Wagga, and his happy return to his mother's arms became known to millions of people, many of whom accepted the legend for its charm and color alone, without reference to its probability. Indeed, the tale had all the elements that make for popularity and credibility. The opening incident of unrequited love, the journey in quest of forgetfulness, the crossing of the Andes, the ordeal of shipwreck, the adventures in the Australian bush, and the intervention of the hand of Providence to drag him back to his native land, his title and his inheritance! Was there lacking any element of pathetic grace?

For those who saw in his ignorance of Tichborne family affairs and his sad illiteracy sober objections to the pretensions of the claimant, there was triple evidence of identification. Not only had Lady Tichborne recognized this wanderer as her son, but two old Tichborne servants had preceded her in their approval. It happened that one Bogle, an old negro servant, who had been intimate with Roger Tichborne as a boy, was living in New South Wales when the first claim was put forward by the man at Wagga Wagga. At the request of the dowager this man went to see the pretender and talked with him at length, first in the presence of those who were pressing the claim and later alone. The servant and the claimant reviewed a number of incidents in Roger Tichborne's early life, and Bogle reported that he was satisfied. He became "Sir Roger's" body servant and subsequently accompanied him to England. Later a former Tichborne gardener, Grillefoyle by name, who also had gone out to Australia, was sent to interview the Wagga Wagga butcher. The result was the same. He reported favorably to his former mistress, and it seems to have been mainly on the opinion of these two men that Lady Tichborne based her decision to disregard the difficulties inherent in the letters and to finance the return of the man to England. Their testimony, backed by the enduring hunger of her own heart, no doubt swayed her to credence when she finally stood face to face with the improbable apparition that pretended to be her son.

The claimant, though he had arrived in England in December, 1866, made various claims and went to court once or twice but did not make the definitive legal move to establish his position or to retrieve the baronetcy

and estates until more than three years later. Suit was finally entered toward the end of 1870, and the trial came on before the court of common pleas in London on the eleventh of May, 1871. This was the beginning of one of the most intricate and remarkable law-trial dramas to be found in the records of modern nations.

The Tichborne pretender had used the years of delay for the purpose of gathering evidence and consolidating his case. He had sought out and won over to his side the trusted servants of the house, the family solicitor, students at Stonyhurst, officers of the carabineers and many others. The school, the officers' mess, the Tichborne seat, and many other localities connected with the youth and young manhood of Roger Tichborne had all been visited. In addition, the obese claimant had further cultivated Lady Tichborne, who came to have more and more faith in him. Originally she had written:

“He confuses everything as if in a dream, but it will not prevent me from recognizing him, though his statements differ from mine.”

Before the suit was filed, and the case came to be tried, his memory improved remarkably; he corrected the many errors in his earlier statements, and his recollection quickly assimilated itself to that of Lady Tichborne. After he had been in England for a time even his handwriting grew to be unmistakably like that revealed in the letters written by Roger Tichborne before his disappearance.

There was, accordingly, a very palpable stuff of evidence in favor of the man from Australia. I have already said that the public accepted the stranger. It needs to be recorded that every new shred of similarity or circumstance that could be brought out only added to the conviction of the people. This was unquestionably Roger Tichborne and none other. Some elements asserted their opinion with a passion that was not far from violence, and the public generally regarded the hostile attitude of the Tichborne family as based on selfish motives. Naturally the other Tichbornes did not want to be dispossessed in favor of a man who had been confidently and perhaps jubilantly counted among the dead for more than fifteen years. The man in the street regarded the family position as natural, but reprehensible. How, it was asked, could there be any doubt when the boy's mother was so certain? Was there anything surer than a mother's

instinct? To doubt seemed almost monstrous. Accordingly, the butcher of Wagga Wagga became a public idol, and the Tichborne family an object of aversion.

Nor is this in the least exaggerated. When it became known that the claimant had no funds with which to prosecute his case, the suggestion of a public bond issue was made and promptly approved. Bonds, with no other backing than the promise to refund the advanced money when the claimant should come into possession of his property, were issued, and so extreme was the public confidence in the validity of the claim that they were bought up greedily. In addition, a number of wealthy individuals became so interested in the affair and so convinced of the rights of the stranger, that they made him large personal advances. One man, Mr. Guilford Onslow, M. P., is said to have lent as much as 75,000 pounds, while two ladies of the Onslow family advanced 30,000 pounds and Earl Rivers is believed to have wasted as much as 150,000 pounds on the impostor.

Finally the civil trial of the suit took place. The proceedings began on the eleventh of May, 1871, and were not concluded until March, 1872. Sir John Coleridge, who defended for the Tichborne family and later became lord chief justice, cross-questioned the claimant for twenty-two days, and his speech in summing up is said to have been the longest ever delivered before a court in England. The actual taking of evidence required more than one hundred court days, and at least a hundred witnesses identified the claimant as Roger Tichborne. To quote from Major Arthur Griffiths' account:

“These witnesses included Lady Tichborne,^[6] Roger's mother, the family solicitor, one baronet, six magistrates, one general, three colonels, one major, thirty non-commissioned officers and men, four clergymen, seven Tichborne tenants, and sixteen servants of the family.”

^[6] A mistake, for the dowager Lady Tichborne died on March 12, 1868. Her damage had been done before the trial.

On the other hand, the defense produced only seventeen witnesses against the claimant, but it piled up a great deal of dark-looking evidence, and, in the course of his long and terrible interrogation of the plaintiff, Coleridge was able to bring out so many contradictions, such appalling blanks of memory, and such an accumulation of ignorances and blunders that the jury

gave evidence of its inclination. Thereupon Serjeant Ballantine, the claimant's leading counsel, abandoned the case.

On the order of the judge the claimant was immediately seized, charged with three counts of perjury, and remanded for criminal trial. This case was not called until April, 1873, and it proved a more formidable legal contest than the unprecedented civil action. The proceedings lasted more than a year, and it took the judge eighteen days to charge the jury; this in spite of the usual despatch of British trials. How long such a case might have hung on in the notoriously slow American courts is a matter for painful speculation.

This long and dramatic trial, full of emotional scenes and stirring incidents, moving slowly along to the accompaniment of popular unrest and violent partisanship in the newspapers, ended as did the civil action. The claimant was convicted of having impersonated Roger Tichborne, of having sullied the name of Miss Kate Doughty, and of having denied his true identity as Arthur Orton, the son of a Wapping butcher. The infant nephew of the real Roger Tichborne was, by this verdict, confirmed in his rights, and the claimant was sentenced to fourteen years imprisonment. Thus ended one of the most magnificent impostures ever attempted. Lady Tichborne did not live to witness this collapse of the fraud, or the humiliation of the man she had so freely accepted as her own son. The poor lady was shown to be a monomaniac, whose judgment had been unseated by the shipwreck of her beloved eldest boy.

I have purposely reserved the story, as brought out in the two trials, for direct narration, since it embraces the major romance connected with this celebrated case and needs to be told with regard to chronology and climax.

Arthur Orton, the true name of the claimant, was born to a Wapping butcher, at 69 High Street, in June, 1834, and was thus nearly five years younger than Roger Tichborne. He had been afflicted with St. Vitus' dance as a boy and had been delinquent. As a result of this, he had been sent from home when fourteen years old, and he had taken a sea voyage which landed him, by a strange coincidence, at Valparaiso, Chile, in 1848, five years before Tichborne reached that port. Orton remained in Chile for several years, living with a family named Castro, at the small inland city of Melipillo, until 1851, when he returned to England and visited his parents at

Wapping. In the following year he sailed for Tasmania and settled at Hobart Town.



~~ ARTHUR ORTON ~~

He operated a butcher shop in that place for some years, but made a failure of business and “disappeared into the brush,” owing every one. Trace of his movements then grew vague, but it is known that he was suspected of complicity in several highway robberies, which were staged in New South Wales a few years afterward, and he was certainly charged with horse stealing on one occasion. Later he appeared in Wagga Wagga and opened a small butcher shop under the name of Thomas Castro, which he had adopted from the family in Chile.

In a confession which Orton wrote and sold to a London newspaper^[7] years after his release from prison in 1884, he gives an account of the origin of the fraud. He says that some time before Cubitt, of the missing-friends bureau, found him and induced him to write to Lady Tichborne, he and his chum at Wagga Wagga, one Slade, had seen some of the advertisements which the distraught lady was having published in antipodean newspapers. Orton soon adopted the pose of superior station, told Slade that he was, in fact, a nobleman incognito, and finally let his friends understand that he was Roger Tichborne. The whole thing had been begun in a spirit of innocent acting, for the purpose of noting the effect of such a revelation upon his friend. In view of what followed we cannot escape the conclusion that the swinishly fat butcher undertook this adventure because he was mentally disturbed, in the sense of being a pathological liar. A talent for impersonation and imposture is one of the marked characteristics displayed by this common type of mental defective, and Orton certainly possessed it, almost to the point of genius.

^[7] *The People*, 1898.

Whatever the explanation of Orton’s original motive, the fact remains that his friend Slade was impressed by the butcher’s tale and thus encouraged Orton to proceed with the fraud, as did a lawyer to whom Orton-Castro was in debt. He soon went swaggering about, trying to talk like a gentleman and giving what must have been a most painful imitation of the manners of a lord. His rude neighbors can have had no better discrimination in such matters than the British public and Lady Tichborne herself, so it was not a difficult feat to play upon local credulity.

In the last month of 1865, when Cubitt sent an agent to Wagga Wagga, as a result of his correspondence with Lady Tichborne, the legend of Orton's identity as Roger Tichborne was already firmly established in the minds of his townspeople, and the rumor thus gained its initial confirmation. The reader is asked to remember that Orton was known as Castro, and that his identification as Orton was a difficult feat, which remained unperformed until the final trial, more than eight years later.

Lady Tichborne herself supplied Castro and his backers in Australia with their first vital information. In seeking to identify her son she quite guilelessly wrote to Cubitt and others many details of her son's appearance, history, education, and peculiarities. She also mentioned a number of intimate happenings. All these were seized upon by the butcher and used in framing his letters to the dowager. In spite of this fact, he made the many stupid blunders already referred to. Lady Tichborne saw the discrepancies, as has been remarked, but her monomania urged her to credence, and she sent the ex-servants, Bogle and Grillefoyle to investigate. How Orton-Castro managed to win them over is not easy to determine. For a time it was suspected that perhaps these men had been corrupted by those interested in having the claimant recognized; but the facts seem to discountenance any such belief. One of the outstanding characteristics of Orton was his ability to make friends and gain their confidence, of which fact there can be no more eloquent testimony than the long list of witnesses who appeared for him at his trials. The man who was able to persuade a mother, a sharp-witted solicitor, half a dozen higher army officers, six magistrates, and numberless soldiers and tenants who had known Roger Tichborne well, to accept and support him in his preposterous claim, did not need money to befool an old gardener and a negro valet.

Indeed, it was this personal gift, backed by the man's abnormal histrionic bent and capacity for mimicry, that carried him so far and won him the support of so many individuals and almost the solid public. How far he was able to carry things has been suggested, but the details are so remarkable as to demand recounting.

Orton had almost no schooling. He quite naturally misspelled the commonest words and was normally guilty of the most appalling grammatical and rhetorical solecisms. He knew not a word of French, Latin, or of any other language, save a smattering of Spanish, picked up from the

Castros while at Melipillo. He had never associated with any one who remotely approached the position of a gentleman, and the best imitation he can have contrived, must have been patterned after performances witnessed on the stages of cheap variety houses. Moreover he knew absolutely nothing about the Tichbornes, not even the fact that they were Catholics. He did not know where their estates were, nor where Roger had gone to school; yet he carried his imposture within an inch of success. Indeed, it was the opinion of disinterested observers at the trial of his civil action that he must have won the case had he stayed off the stand himself.

The feat of substitution this man almost succeeded in accomplishing was palpably an enormous one. He went to England, familiarized himself with the places Roger Tichborne had visited, studied French without managing to learn it, practiced the handwriting of the young Tichborne heir till it deceived even the experts, and likewise learned, in spite of his own lack of schooling, to imitate the English of Tichborne, and to misspell just those words on which the original Roger was weak. He crammed his memory with incidents and details picked up at every hand. He learned to talk almost like a gentleman. He worked with his voice until he got out of it most of the earthy harshness that belonged to it by nature. He cultivated good manners, courtly behavior, gentle ways, and a certain charming deference which went far toward convincing those who took him seriously and gave him their support. In short, he was able to perform an absolute prodigy of adaptiveness, but he could not, with all his talent, quite project himself into the personality and mentality of another and very different man. That, perhaps, is a simulation beyond human capacity.

So Arthur Orton, after all, the hero of this magnificent impersonation, went to prison for fourteen years, having made quite too grand a gesture and much too sad a failure. He served nearly eleven years and was then released in view of good conduct. Thereafter he wrote several confessions and retracted them all in turn. Finally, toward the end of his life, he changed his mind once more and prepared a final and fairly complete account of his life and misdeeds, from which some of the facts here used have been taken. He died in April, 1898.

The extent to which he had moved the public may be judged from an incident the year following Orton's conviction and imprisonment. His chief counsel at the criminal trial had been Doctor Edward Kenealy, who was

himself scathingly denounced by the court in connection with a misdirected attempt to have Orton identified as a castaway from the *Bella* by a seaman who swore he had performed the rescue, but was shown to be a perjurer. After the trial Doctor Kenealy was elected to Parliament, so great was his popularity and that of his client. When Kenealy, soon after taking his seat, moved that the Tichborne case be referred to a royal commission, the House of Commons rejected the motion unanimously. This action inflamed the populace. There were angry street meetings, inflammatory speeches, and symptoms of a general riot. The troops had to be called and kept in readiness for instant action. Fortunately the sight of the soldiers sobered the mob, and the matter passed off with only minor bloodshed.

But ten years later, when Orton emerged from prison, there was almost no one to greet him. The fickle public, that had once been ready to storm the Houses of Parliament for him, had utterly forgotten the man. Nor was there any sign of public interest, when he died in obscurity and poverty fourteen years later. A few of his persistent followers gave him honorable burial as "Sir Roger Tichborne."

The original enigma of the fate of Roger Tichborne, upon which this colossal structure of fraud and legal intricacy was founded, received, to be sure, not the slightest clarification from all the pother and feverish investigating. If ever there had been any good reason to doubt that the young Hampshire aristocrat went helplessly down with the stricken *Bella* and her fated crew, none remained after the trials and the stupendous publicity they invoked.

VI

THE KIDNAPPERS OF CENTRAL PARK

On the afternoon of Sunday, May 14, 1899, Mrs. Arthur W. Clarke, the young wife of a British publisher's agent residing at 159 East Sixty-fifth Street, New York, found this advertisement in the *New York Herald*, under the heading, "Employment Wanted:"

GIRL (20) as child's nurse; no experience in city. Nurse, 274 *Herald*, Twenty-third Street.

The following Tuesday Mrs. Clarke took into her employment, as attendant for her little daughter, Marion, twenty months old, a pretty young woman, who gave the name of Carrie Jones and said she had come only two weeks before from the little town of Deposit, in upper New York State. The fact explained her lack of references. Mrs. Clarke, far from being suspicious because of the absence of employment papers, was impressed with the new child's maid. She seemed to be a well-schooled, even-tempered young woman, considerably above her station, devoted to children, and, what was particularly noted, gentle in voice and demeanor—a jewel among servants.

Five days later pretty Carrie Jones and Baby Marion Clarke had become the center of one of the celebrated abduction cases and, for a little while, the nucleus of a dark and appalling mystery. To-day, after the lapse of twenty-five years, the effects of this striking affair are still to be read in the precautions hedging the employment of nursemaids in American cities and in the timidity of parents everywhere. It was one of those occasional and impressive crimes which leave their mark on social habits and public behavior long after the details or the incidents themselves have been forgotten.

The home of Marion Clarke's parents in East Sixty-fifth Street is about two squares from the city's great playground, Central Park, a veritable warren of children and their maids on every sunny day. Here Marion Clarke went almost every afternoon with her new nurse, and here the first scene of the ensuing drama was played.

At about ten thirty o'clock on the morning of the next Sunday, May 21, Carrie Jones went to Mrs. Clarke and asked if she might not take the little girl to the Park then, as the day was warm, and the sunshine inviting. In the afternoon it might be too hot. Mrs. Clarke and her husband consented, and the maid set off a little before eleven o'clock with Baby Marion tucked into a wicker carriage. She was told to return by one o'clock, so that the child might have her luncheon at the usual hour.

At twelve o'clock Mr. Clarke set off for a walk in the Park, also tempted from his home by the enchantments of the day. Mrs. Clarke did not accompany him, since she had borne a second baby only two or three months before, and she was still confined to the house.

Mr. Clarke entered the Park at the Sixty-sixth Street entrance and followed the paths idly along toward the old arsenal. Without especially seeking his daughter and her nurse, he nevertheless kept an eye out. A short distance from the arsenal he saw his child's cart standing in front of the rest room; he approached, expecting to see the child. Both baby and nurse were gone, and the attendant explained that the child's vehicle had been left in her care, while the nurse bore the baby to the menagerie.

"She said she'd be back in about an hour. Ought to be here any minute now," prattled the public employee.

The father sat down to wait. Then he grew impatient and went off to wander through the animal gardens. In half an hour he was back at the rest room to find the attendant about to move the cart indoors and make her departure, her tour of duty being over.

Beginning to feel alarmed, Mr. Clarke resorted to the nearest policeman, who smiled, with the confidence of long experience, and advised him to go home. It was a common thing for a green country girl to get lost among the winding drives and walks of Central Park. No doubt the nurse would find her way home with the child in a little while.

Clarke went back to his house and waited. At two o'clock he went excitedly back to the Park and consulted the captain of police, with the same results. The officers were ordered to look for the nurse and child, but the alarm of the parent was not shared. He was once more told to go home and wait. At

the same time he was rather pointedly told not to return with his annoying inquiries. Such temporary disappearances of children happened every day.

The harried father went home and paced the floor. His enervated wife wept and trembled with apprehension. At four o'clock the doorbell rang, and the father rushed excitedly to answer.

A bright-eyed, grinning boy stood in the vestibule and asked if Mr. Clarke lived here. Then he handed over a letter in a plain white envelope, lingering a moment, as if expecting a tip.

Clarke naturally tore the letter open with quaking fingers and read:

"MRS CLARK: Do not look for your nurse and baby. They are safe in our possession, where they will remain for the present. If the matter is kept out of the hands of the police and newspapers, you will get your baby back, safe and sound.

"If, instead, you make a big time about it and publish it all over, we will see to it that you never see her alive again. We are driven to this by the fact that we cannot get work, and one of us has a child dying through want of proper treatment and nourishment.

"Your baby is safe and in good hands. The nurse girl is still with her. If everything is quiet, you will hear from us Monday or Tuesday.

"THREE."

The letter was correctly done, properly paragraphed, punctuated, and printed with a fine pen in a somewhat laborious simulation of writing-machine type. It also bore several markings characteristic of the journalist or publisher's copy reader, especially three parallel lines drawn under the signature, "Three," evidently to indicate capitals. The envelope was the common plain white kind, but the sheet of paper on which the note had been penned was of the white unglazed and uncalendared kind known as newsprint and used in all newspaper offices as copy paper. Accordingly it was at once suspected that the kidnapper must have been a newspaper man, printer, reader, or some one connected with a publishing house.

The Clarkes recalled that the nurse had been alone the preceding Friday evening and had been writing. Evidently she had prepared the note at that time and had been planning the abduction with foresight and care. People at once reached the conclusion that she was one of the agents of a great band of professional kidnappers. Accordingly every child and every mother in the city stood in peril.

To indicate the nature of the official search, we may as well reproduce Chief of Police Devery's proclamation:

"Arrest for abduction—Carrie Jones, twenty-one years of age, five feet two inches tall, dark hair and eyes, pale face, high cheek bones, teeth prominent in lower jaw, American by birth; wore a white straw sailor hat with black band, military pin on side, blue-check shirt waist, black brilliantine skirt, black lace bicycle boots, white collar and black tie.

"Abducted on Sunday May 21, 1899, Marion Clarke, daughter of Arthur W. Clarke, of this city, and described as follows: twenty months old, light complexion, blue eyes, light hair, had twelve teeth, four in upper jaw, four in lower jaw, and four in back. There is a space between two upper front teeth, and red birthmark on back. Wore rose-colored dress, white silk cap, black stockings, and black buttoned shoes.

"Make careful inquiry and distribute these circulars in all institutions, foundling asylums, and places where children of the above age are received."

A photograph of the missing child accompanied the description.

So the quest began. It was, however, by no means confined to Carrie Jones and the child. The New York newspaper reporters were early convinced that some one else stood behind the transaction, and they sought night and day for a man or woman connected either directly or distantly with their own profession. It was the day when the reporter prided himself especially on his superior acumen as a sleuth, with the result that every effort was made to give a fresh demonstration of journalistic enterprise and shrewdness.

Several days of the most feverish hunting, accompanied by a sharp rise in public emotionalism and the incipience of panic among parents, failed,

however, to produce even the most shadowy results. Rumors and suspicions were, as usual, numerous and fatuous, but there came forth nothing that had the earmarks of the genuine clew. The arrests of innocent young women were many, and numerous little girls were dragged to police stations by the usual crop of fanatics.

Similarly, little Marion Clarke was reported from all parts of the surrounding country and even from the most distant places. One report had her on her way to England, another showed her as having sailed for Sweden, a third report was that she had been taken to Australia by a childless couple. All the other common hypotheses were, of course, entertained. A bereaved mother had taken little Marion to fill the void of her own loss. A childless woman had stolen the little girl and was using her to present as her own offspring, probably to comply with the provisions of some freak will.

But the hard fact remained that a letter had come within four hours after the abduction of the child, and before there had been the first note of alarm or publicity. Such an epistle could only have been written by the actual kidnapper, since no one else was privy to the fact that the girl was gone. In that communication the writer had stated his or her case very definitely and, while not actually demanding ransom or naming a sum, had clearly indicated the intention of making such a subsequent demand.

Theorizing was thus a bit sterile. The police, be it said to their credit, bothered themselves with no fine-spun hypotheses, but clung to the main track and sought the kidnappers. The *New York World* offered a reward of a thousand dollars and put its most efficient reportorial workers into the search. The other newspapers also kept their men going in shifts. Every possible trail was followed to its end, every promising part of the city searched. Even the most inane reports were investigated with diligence.

Hundreds of persons had gone to the police with bits of information which they, no doubt, considered suggestive or important. The well-known Captain McClusky, then chief of detectives, received these often wearisome callers, read their mail, directed the investigation of their reports, and often remained at his desk late into the night.

Among a large number of women who reported to the detective chief was a Mrs. Cosgriff, a sharp and voluble Irishwoman, who maintained a rooming

house in Twenty-seventh street, Brooklyn. Mrs. Cosgriff asserted that two women with a little girl of Marion Clarke's age and general appearance had rented a room from her on the evening of the eventful Sunday and spent the night there. The next morning one of them had got the newspapers, gone to her room, remained secluded with the other woman and child for a time, and had then come out to announce that they would not remain another day. Mrs. Cosgriff thought she detected excitement in the manner of both women, but she had to admit that the child had made no complaint or outcry. Nevertheless, she felt that these were the wanted people.

Had she noted anything of special interest about the child, any peculiarity by which the parents might recognize her? Or had she heard the women mention any town or place to which they might have gone?

The lodging-house keeper considered a moment, confessed that her curiosity had led her to do a little spying, and recalled that she had heard one of the women mention a town. Either she had not heard the name distinctly, or she had forgotten part of it, but it was a name ending in berg or burg. She was certain of that. Fitchburg, Pittsburg, Williamsburg, Plattsburg—something like that. She did not know the reason for her feeling, but she was sure it was a place not very far from New York.

As to a peculiarity of the child, she had noted nothing except that it seemed good-humored, healthy, and clever. She had heard one of the women say: "Come on, baby! Show us how Mrs. Blank does." Evidently the little girl had done some sort of impersonation.

Captain McClusky was inclined to place some credence in Mrs. Cosgriff's account, but he saw no special promise in her revelations till he repeated the details to the agonized parents. At the mention of the childish impersonation, Mrs. Clarke leaped up in excitement.

"That was Marion!" she cried. "That's one of her little tricks!"

It developed that the nurse, Carrie Jones, had spent hours playing with the child, teaching it to walk and pose like a certain affected woman friend of its mother. Undoubtedly then, Marion Clarke, Carrie Jones, and another woman had been in South Brooklyn the evening after the abduction and spent the night and part of the next day at Mrs. Cosgriff's, leaving in the afternoon for a town whose name ended in burg or berg.

Now the chase began in earnest. The detectives made a list of towns with the burg termination, and one or two men were sent to each, with instructions to make a quiet, but thorough, search. Information of a confidential kind was also forwarded to the police departments of other cities, near and far. As a result a number of suspected young women were picked up. Indeed, the mystery was believed solved for a short time when a girl answering to the description of Carrie Jones was seized in Connecticut and held for the arrival of the New York detectives, when she began to act mysteriously and failed to give a clear account of herself. It was found, however, that she had other substantial reasons for being cryptic, and that she was, moreover, enjoying her little joke on the officials.

Again, in Pennsylvania a girl was held who would neither affirm nor deny that she was Carrie Jones, but let the local police have the very definite impression that they had in hand the much-hunted kidnapper. She turned out to be an unfortunate pathologue of the self-accusatory type. Her one real link with the affair was that her name happened to be Jones, a circumstance which got the members of this large and popular family of citizens no little discomfort during the pendency of the Clarke mystery.

Meantime no further communication had been received from the abductors. They had said, in the single note received from them, that they would communicate Monday or Tuesday, "if everything is quiet." Everything, far from being quiet, had been in a most plangent uproar, which circumstances alone should have been recognized as the reason for silence. But, as is usual, the clear and patent explanation seemed not to contain enough for popular acceptance. More fanciful interpretations were put forward in the usual variety of forms. The note had been sent merely to misguide, and one might be sure the abductors did not intend to return Baby Marion. If the abductors were looking for ransom, why had no more been heard? Why had they chosen the daughter of a man who had slender means and from whom no large ransom could be expected? No, it was something more sinister still. Probably Little Marion was dead.

As the days dragged by, and there were still no conclusive developments, the public sympathy toward the stricken couple became expressive and dramatic. Crowds besieged the house in East Sixty-fifth Street in hope of catching sight of the bereaved mother. The father was greeted with cheers and sympathetic expressions whenever he came or went. Many offers of aid

were received, and some came forward who wanted to pay whatever ransom might be demanded.



~~ MARION CLARKE ~~

In these various ways the Marion Clarke case came to be a national and even an international sensation in the brief course of a week. Sympathy with the parents was instant and widespread, and passion against the abductors filled the newspaper correspondence columns with suggestions in favor of more stringent laws, plans for cruel vengeance on the kidnappers, complaints against the police, fulminations directed at quite every one connected with the unfortunate affair—all the usual expressions of helplessness and bafflement.

On the morning of Thursday, June 1st, eleven days after the disappearance, a woman with a little girl entered the general store at the little hamlet of St. John, N. Y., where Mrs. Ada B. Corey presided as postmistress to the community. The child was a little petulant and noisy; the woman very annoyed and nervous. Both were strangers. The woman gave her name as Beauregard and took one or two letters which had come for her. With these and the little girl she made a quick departure.

Because of the great excitement and wide publicity of the Clarke case, nothing of the sort could happen so near the city of New York without one inevitable result. The postmistress immediately notified Deputy Sheriff William Charleston of Rockland County, who had his office in St. John. Charleston was able to locate the woman and child before they could leave town, and he covertly followed them to the farmhouse of Frank Oakley, in the heart of the Ramapo Mountain region, near Sloatsburg, about nineteen miles from Haverstraw, on the Hudson River.

The rural officer discovered, by making a few inquiries, that this Mrs. Beauregard had been known in the vicinity for some months, and she had been occupying the Oakley house with her husband. Ten days previously, however, she had appeared with another woman and the little girl.

The dates tallied; the town was Sloatsburg; there were, or had been, two women; the place was ideal for hiding, and the child was of the proper age and description. Sheriff Charleston quickly summoned some other officers, descended on the place, seized the woman, the child, and the husband, locked them into the nearest jail, and sent word to Captain McClusky.

New York detectives and reporters arrived by the next train, and Mr. Clarke came a short time later. As soon as he was on the ground, the party proceeded to the jail, and the weeping father caught his wandering girl into happy arms. She was indeed Marion Clarke. Within ten minutes every available telephone and telegraph wire was humming the triumphant message back to New York.

But, in the recovery of the child, the inner mystery of the case only began to unfold itself. The woman seized at Sloatsburg was not Carrie Jones. Neither had the Clarkes ever seen her before. She gave the name of Mrs. George Beauregard, and, when questioned about this matter, later “admitted” that she was really Mrs. Jennie Wilson. Her story was that a couple had brought the child to her, saying that it needed to remain in the mountains for the summer. They had paid her for the little girl’s board and care. She declared she did not know their address, but they would certainly be on hand in the fall to reclaim their baby.

The man arrested at the farmhouse said that he was James Wilson; that he had no employment at the time, except working on the farm, and that he knew nothing of the baby beyond what his wife had revealed. He didn’t interfere in such affairs.

Both were returned to New York after some slight delay. The detectives and the newspapers at once went to work on the problem of discovering who they were, and what had become of Carrie Jones.

Meantime the abducted child was being brought home to her distracted mother. A crowd of several thousand persons had gathered in Sixty-fifth Street, apprised of the little girl’s impending return by the evening newspapers. She was greeted with cheers, loaded with presents, saluted by the public officials, and treated as the heroine that circumstance and good police work had made her. Photographs of her crowded the journals, and she was altogether the most famous youngster of the day. Her parents later removed to Boston with her, and they were heard of in the succeeding years when attempts were made to release the imprisoned kidnappers, or whenever there was another kidnapping or missing-child case. In time they passed back into obscurity, and Marion Clarke disappeared from the glare of notoriety.

The work of identifying the man and woman caught in the Sloatsburg farmhouse proceeded rapidly. Freddy Lang, the boy who had brought the note to the Clarke door on that painful Sunday afternoon, immediately recognized Mrs. Beauregard-Wilson as the woman who had handed him the missive and a five-cent piece in Second Avenue and asked him to deliver the note to Mrs. Clarke. Mrs. Cosgriff came from Brooklyn and said that the prisoner was one of the two women who had stayed at her house on that Sunday night. It was apparent then that one of the active kidnappers, and not an innocent tool, had been caught. The woman and her husband, however, denied everything and refused to give any information about themselves.

Meantime the newspapers left no stone unturned in an attempt to make the identification complete, discover just who the prisoners were, and establish their connections with others believed to have financed the kidnapping. Something deeper and more sinister than mere abduction for ransom was suspected, and it seemed to be indicated by certain facts that will appear presently. Accordingly the reporters and journalistic investigators were conducting a fresh search on very broad lines.

On the evening of the second of June this hunt came to an abrupt close, when a reporter traced the mysterious Carrie Jones to the home of an aunt at White Oak Ridge, near Summit, New Jersey, and got from her the admission that she was, in fact, Bella Anderson, a country girl who had been for no long period a waitress in the Mills Hotel, in Bleecker Street, New York. Bella Anderson readily told who the captive man and woman were, and how the kidnapping plot had been concocted and carried out. Her story may be summarized to clear the ground.

Bella Anderson was born in London, the daughter of a retired soldier who had seen service in India and Africa. At the age of fourteen, her parents being dead, she and her brother, Samuel, had set out for America and been received by relatives in the States of New York and New Jersey. The girl had been recently schooled and aided financially both by her brother and other relatives. The year before the kidnapping she had gone to New York to make her own way. At the Mills Hotel, in the course of her duties, she had met Mr. and Mrs. George Beauregard Barrow. They had been kind to her and become her intimates, nursing her through an illness and otherwise befriending a lonely creature.

The Barrows, this being the true name of the arrested pair, had persuaded her that the work of waiting on table in a hotel was too arduous and advised her to seek employment in a private family as nurse to a child. In this way, they told her, she would have an opportunity to seize some rich man's darling and exact a heavy ransom for its return. All this part of the business they would manage for her. All she needed to do was to seize the child, a very easy matter. For this she was to receive one half of whatever ransom might be collected.

Accordingly, Bella Anderson had advertised for a place as child's nurse. Several parents answered. At the first two homes she was just too late to procure employment, other applicants having anticipated her. So it was mere chance that took her to the Clarke home and determined Marion Clarke to be the victim.

The girl went on to recite that the Barrows had coached her carefully. They had instructed her in the matter of her lack of references, in the manner of taking the child, in her conduct at her employers' home, in the details of an inoffensive account of her past, and so on through the list. They had been the mentors and the "master minds."

After she had been employed at the Clarkes' a few days and had taken little Marion to the Park the first time, Mrs. Barrow had consulted with the nurse and instructed her to be ready for the abduction on the next excursion. Bella Anderson said she had suffered many qualms and been unable to bring herself to the deed for several visits. Each time Mrs. Barrow met her in the Park and was ready to flee with the little girl. Finally the nurse reached the point of yielding. Sunday noon she found Mrs. Barrow waiting for her, as usual. They left the baby's cart at the rest room, carried the child to a remote place, changed its coat and cap, and then set out at once for South Brooklyn, where they took the room from Mrs. Cosgriff. This matter attended to, the women exchanged clothes, and Mrs. Barrow returned to Manhattan, gave the note to the boy, and turned back to Brooklyn. The next morning she had seen the headlines in the newspapers, realized that the game was dangerous, and set out quickly for Sloatsburg, where the farmhouse had been rented in advance by Barrow. Two days later Bella Anderson had been sent away because the Barrows felt she was being too hotly sought and might be recognized in the neighborhood.

This story was readily confirmed, though the Barrows naturally sought to shield themselves. It was also discovered that Mrs. Barrow had been an Addie McNally, born and reared in up-State New York, and that she, with her husband, had once owned a small printing establishment, thus explaining the chirographical characteristics of the Clarke abduction note. She was about twenty-five years old, shrewd, capable and not unattractive.

Investigation brought out romantic and pathetic facts concerning the husband. He had apparently had no better employment in New York than that of motorman in the hire of an electric cab company then operating in that city. But this derelict was the son of distinguished parents. His father was Judge John C. Barrow of the superior court of Little Rock, Arkansas, and the descendant of other persons politically well known in the South. George Beauregard Barrow—his middle name being that of the famous Confederate commander at the first battle of Bull Run or Manassas, to whom distant relationship was claimed—had been incorrigible from childhood. In early manhood he had been connected with kidnapping threats and plots in his home city and with assaults on his enemies, with the result that he was finally sent away, cut off and told to make his own berth in the world. Judge Barrow tried to aid his unfortunate son at the trial, but public feeling was too sorely aroused.

George Barrow and Bella Anderson were tried before Judge Fursman and quickly convicted. Barrow was sentenced to fourteen years and ten months, and the Anderson girl to four years, both judge and jury accepting her statement that she had been no more than a pawn in the hands of shrewder and older conspirators. Mrs. Barrow, sensing the direction of the wind, took a plea of guilty before Judge Werner, hoping for clemency. The court, however, said that her crime merited the gravest reprehension and severest punishment. He fixed her term at twelve years and ten months.

These trials were had, and the sentences imposed within six weeks of the kidnapping, the courts having acted with despatch. While the cases were pending, Barrow, Mrs. Barrow, and the Anderson girl had again and again been asked to reveal the names of others who had induced them to their crime or had financed them. All said there had been no other conspirators, but the feeling persisted that Barrow had acted with the support of professional criminals, or of some enemy of the Clarkes, either of whom had supplied him with considerable sums of money.

This belief, which was specially strong with some of the newspapers, was predicated upon two facts.

On the morning of Thursday, May 25, four days after the abduction of Marion Clarke, there had appeared in the *New York Herald* the following advertisement:

“M. F. two thousand dollars reward will be O. K. in Baby Clarke case. Write again and let me know when and where I can meet you Thursday evening. Don’t fail—strictly confidential.”

Neither the Clarkes, the newspapers, nor any persons acting for them knew anything about a two-thousand-dollar-reward offer or had communicated with any one who had been promised such a sum. Hence there were only two possible explanations of the advertisement. Either it had been inserted by some unbalanced person who wanted to create a stir—the kind of restless neurotic who projects his unwelcome apparition into every sensation—or there was really some dark force moving behind the kidnapping.

A second fact led many to persist in this latter notion. In spite of the fact that George Barrow had been disowned at home and driven from his town, and opposed to the circumstances that he had worked at common and ill-paid jobs, had been unable to pay his rent for eleven months, had been seen in the shabbiest clothes and was known to be in need—the only force that might have prompted him to attempt a kidnapping—he was found to have a considerable sum in his pockets when searched at the jail; he informed his wife that he would get plenty of cash for their defense, and he was shown to have expended a fairly large sum on the planning of the crime, the traveling and other expenses, the rent of the farmhouse, the needs of Bella Anderson, and for his own amusement. Where had this come from?

Not only the public and the newspapers, but Detective Chief McClusky were long occupied with this enigma. Barrow himself gave various specious explanations and finally refused to say more. Hints and bruits of all kinds were current. Many said that Arthur Clarke could furnish the answer if he would, an accusation which the harried father indignantly rejected.

In the end the guilty trio went to prison, the Clarkes removed to Boston, the public interest flagged, and the mystery remained unsolved.

VII

DOROTHY ARNOLD

On the afternoon of Monday, December 12, 1910, a young woman of the upper social world vanished from the pavement of Fifth Avenue. Not only did she disappear from the center of one of the busiest streets on earth, at the sunniest hour of a brilliant winter afternoon, with thousands within sight and reach, with men and women who knew her at every side, and with officers of the law thickly strewn about her path; but she went without discernible motives, without preparation, and, so far as the public has ever been permitted to read, without leaving the dimmest clew to her possible destination.

These are the peculiarities which mark the Dorothy Arnold case as one of the most irritating puzzles of modern police history, a true mystery of the missing.

It is one of the maxims in the administration of absent-persons bureaus that disappearing men and women, no matter how carefully they may plan, regardless of all natural astuteness, invariably leave behind some token of their premeditation. Similarly, it is a truism that, barring purposeful self-occultation, the departure of an adult human being from so crowded a thoroughfare can be set down only to abduction or to mnemonic aberration. Remembering that a crime must have its motivation, and that cases of amnesia almost always are marked by previous symptoms and by fairly early recovery, the recondite and baffling aspects of this affair become manifest; for there was never the least hint of a ransom demand, and the girl who vanished was conspicuous for rugged physical and mental health.

Thus, to sum up the affair, a disappearance which had from the beginning no standing in rationality, being logically both impenetrable and irreconcilable, remains, at the end of nearly a score of years, as obstinate and perplexing as ever—publicly a gall to human curiosity, an impossible problem for reason and analytical power.

Dorothy Arnold was past twenty-five when she walked out of her father's house into darkness that shining winter's day. She was at the summit of her youth, rich, socially preferred, blessed with prospects, and to every outer eye, uncloudedly happy. Her father, a wealthy importer of perfumes, occupied a dignified house on East Seventy-ninth Street, in the center of one of the best residential districts, with his wife and four children—two sons and two daughters. Mr. Arnold's sister was the wife of Justice Peckham of the United States Supreme Court, and the entire family was socially well known in Washington, Philadelphia, and New York. His missing daughter had been educated at Bryn Mawr and figured prominently in the activities of "the younger set" in all these cities. All descriptions set her down as having been active, cheerful, intelligent, and talented.

The accepted story is that Miss Arnold left her father's home at about half past eleven on the morning of her disappearance, apparently to go shopping for an evening gown. She appears to have had an appointment with a girl friend, which she broke earlier in the morning, saying that she was to go shopping with her mother. A few minutes before she left the house, the young woman went to her mother's room and said she was going out to look for the dress. Her mother remarked that if her daughter would wait till she might finish dressing, she would go along. The girl demurred quietly, saying that it wasn't worth the bother, and that she would telephone if she found anything to her liking. So far as her parent could make out, the girl was not anxious to be alone. She was no more than casual and seemed especially happy and well.

At noon, half an hour after she had left her home, Miss Arnold went into a shop at Fifth Avenue and Fifty-ninth Street, where she bought a box of candy and had it charged on her father's account. At about half past one she was at Brentano's bookshop, Twenty-seventh Street and Fifth Avenue. Here she bought a volume of fiction, also charging the item to her father.

Whether she was recognized again at a later hour is in doubt. She met a girl chum and her mother in the street some time during the early part of the afternoon and stopped to gossip for a few moments; but whether this incident occurred just before or after her visit to the bookstore could not be made certain. At any rate, she was not seen later than two o'clock.

When the young woman failed to appear at home for dinner, there was a little irritation, but no concern. Her family decided that she had probably come across friends and forgotten to telephone her intention of dining out. But when midnight came, and there was still no word from the young woman, her father began to feel uneasy and communicated by telephone with the homes of various friends, where his daughter might have been visiting. When he failed to discover her in this way, Mr. Arnold consulted with his personal attorney, and a search was begun.

The reader is asked to note that there was no public announcement of the young woman's absence for more than six weeks. Just why it was considered wise to proceed discreetly and privately cannot be more than surmised. This action on the part of her family has always been considered suggestive of a well-defined suspicion and a determination to prevent its publication. At any rate, it was not until January 26, that revelation was made to the newspapers, at the strong urging of W. J. Flynn, then in charge of the New York detectives.

In those six weeks, however, there had been no idleness. As soon as it was apparent that the girl could not be merely visiting, private detectives were summoned, and a formal quest begun. Her room and its contents revealed nothing of a positive character. She had left the house in a dark-blue tailored suit, small velvet hat and street shoes, carrying a silver-fox muff and satin bag, probably containing less than thirty dollars in money. Her checkbook had been left behind; nor had there been any recent withdrawals of uncommon amounts. No part of the girl's clothing had been packed or taken along; none of her more valuable jewelry was missing; no letter had been left, and nothing pointed to preparation of any sort.

A search of her correspondence revealed, however, a packet of letters from a man of a well-known family in another city. When, somewhat later, Mr. Arnold was summoned by the district attorney and asked to produce the letters, he swore that they had been destroyed, but added that they contained nothing of significance.

It developed, too, that, while her parents were in Maine in the preceding autumn, Dorothy Arnold had gone to Boston on the pretext of visiting a school chum, resident in the university suburb of Cambridge; whereas she had actually stopped at a Boston hotel and had pawned about five hundred

dollars' worth of personal jewelry with a local lender, taking no trouble, however to conceal her name or home address. It was shown that the man of the letters was registered at another Boston hotel on the day of Dorothy's visit; but he denied having seen her or been with her on this occasion, and there was no way of proving to the contrary. The date of this Boston visit was September 23, about two and a half months before Miss Arnold's disappearance. The police were never able to establish any connection between the Boston visit, the pawning of the jewels, and the subsequent events, so that the reader must rely at this point upon his own conjecture.

Before the public was made acquainted with the vanishment of the young heiress, both her mother and brother and the man of the letters had returned from Europe, and the latter took part in the search for her. He disclaimed, from the beginning, all knowledge of Miss Arnold's plans, proclaimed that he knew of no reason why she should have left home, announced that he had considered himself engaged to marry her, and he pretended, at least, to believe that she would shortly appear. Needless to say, a close watch was secretly maintained over the young man and all his movements for many months. In the end, however, the police seemed satisfied that he knew no more than any one else of Dorothy Arnold's possible movements. He dropped out of the case almost as suddenly as he had entered it.

In the six weeks before the public was acquainted with the facts, private detectives, and later the public police, had worked unremittingly on the several possible theories covering the case. There were naturally a number of possibilities: First, that the girl had met with a traffic accident and been taken unconscious to a hospital; second, that she had been run down by some reckless motorist, killed, and carried off by the frightened driver and secretly buried; third, that she had been kidnapped; fourth, that she had eloped; fifth, that she had been seized by an attack of amnesia and was wandering about the country, unable to give any clue to her identity; sixth, that she had quarreled with her parents and chosen this method of bringing them to terms by the pangs of anxiety; seventh, that she had been arrested as a shoplifter and was concealing her identity for shame.

As the weeks went by, all these ideas were exploded. The hospitals and morgues were searched in vain; the records of traffic accidents were scanned with the utmost care; the roadhouses and resorts in all directions from the city were visited, and their owners closely questioned. Cemeteries

and lonely farms were inspected, the passenger lists of all departing ships examined, and later sailings observed. The authorities in European and other ports were notified by cable, and the captains of ships at sea were informed by wireless, now for the first time employed in such a quest. The city jails and prisons were visited and every female prisoner noted. Similar precautions were taken in other American cities, where the hospitals, infirmaries, and morgues were also subjected to search. Marriage-license bureaus, offices of physicians, sanitariums, cloisters, boarding schools, and all manner of possible and impossible retreats were made the objects of detective attention—all without result.

The notion that the girl might have been abducted and held for ransom was discarded at the end of a few weeks, when no word had come from possible kidnappers. The thought of a disagreement was dismissed, with the most emphatic denials coming from all the near and distant members of Miss Arnold's family. The idea of an elopement also had to be discarded after a time, and so also the theory of an aphasic or amnesic attack.

After the police finally insisted on the publication of the facts and the summoning of public aid, and after the various early hypotheses had one and all failed to stand the test of scrutiny and time, various more and more fantastic or improbable conjectures came into currency. One was that the girl might have been carried off to some distant American town or foreign port. Another was that some secret enemy, whose name and grievance her parents were loath to reveal, had made away with the young woman, or was holding her to satisfy his spite. The public excitement was nigh boundless, and ingenious fabrications or diseased imaginings came pouring in upon the harried police and the distracted parents with every mail.

Rumors and false alarms multiplied enormously. As the story of the young woman's disappearance continued to occupy the leading columns of the daily papers, day upon day, the disordered fancy of the unstable elements of the population came into vigorous play. Dorothy Arnold was reported from all parts of the country, and both the members of her family and numberless detectives were kept on the jump, running down the most absurd reports on the meager possibility that there might be a grain of truth in one of them. Soon there appeared the pathological liars and self-accusers, with whose peculiarities neither the police nor the public were then sufficiently acquainted. In more than a hundred cities—judging from a tabulation of the

newspaper reports of that day—women of the most diverse ages and types came forward with the suggestion that they concealed within themselves the person of the missing heiress. Girls of fourteen made the claim and women of fifty. Such absurdities soon had the police in a state of weary skepticism, but the Arnold family and the newspaper-reading public were still upset by every fresh report.



~~ DOROTHY ARNOLD ~~

Naturally enough, the fact that a prominent young woman, enjoying the full protection of wealth and social distinction, could apparently be snatched away from the most populous quarter of a world city, struck terror to the hearts of many. If a Dorothy Arnold could be ravished from the familiar sidewalks of her home city, what fate waited for the obscure stranger? Was it not possible that some new and strange kind of criminal, equipped with diabolic cunning and actuated by impenetrable motives, was launched upon a campaign of woman stealing? Who was safe?

One of the popular beliefs of the time was that Miss Arnold might have gone into some small and obscure shop at a time when there was no other customer in the place and been there seized, bound, gagged, and made ready for abduction. The notion was widely accepted for the dual reason that it provided a set of circumstances under which it was possible to explain the totally unwitnessed snatching of the young woman and, at the same time, set a likely locale, since there are thousands of such little shops in New York. As a result of the currency of this story, many women hesitated to enter the establishments of cobblers, bootblacks, stationers, confectioners, tobacconists, and other petty tradesmen, especially in the more outlying parts of the city. Many bankruptcies of these minor business people resulted, as one may read from the court records.

A similar fabulation, to the effect that the girl might have entered a cruising taxicab, operated by a sinister ex-convict, and been whisked off to some secret den of crime and vice, was almost as popular, with the result that cabs did a poor business with women clients for more than a year afterward. An old hackman, who was arrested in that feverish time because of the hysteria of a woman passenger, tells me that even to-day he encounters women who grow suspicious and excited, if he happens to drive by some unaccustomed route, a thing often done in these days to avoid the congestion on the main streets.

While all this popular burning and sweating was going on, the police and many thousands of private investigators, professional and amateur, were busy with the problem of elucidating some motive to fit the case. Reducing the facts to their essentials and then trying to reason, the possibilities became a very general preoccupation. The deductive steps may be briefly

set down. First, there were the alternative propositions of voluntary or involuntary absence, of hiding or abduction. Second, if the theory of forced absence was to be entertained, there were only two general possibilities—abduction for ransom or kidnapping by some maniac. The ideas of murder, detention for revenge, and the like, come under the latter head. The notion of a fatal accident had been eliminated.

The proposition of voluntary absence presented a more complex picture. Suicide, elopement, amnesia, personal rebellion, an unrevealed family situation, a forbidden love affair, the desire to hide some social lapse—any of these might be the basis of a self-willed absence of a permanent or temporary kind.

The failure, after months of quest, to find any trace of a body, seemed to have rendered the propositions of murder and of suicide alike improbable. Elopement and amnesia were likewise rendered untenable theories by time, nor was it long before the conceit of a disagreement was relegated to the improbabilities.

Justly or unjustly, a good many practical detectives came after a time to the opinion that the case demanded a masculinizing of the familiar adage into *cherchez l'homme*. More seasoned officers inclined to the idea that there must have been some man, possibly one whose identity had been successfully concealed by the distraught girl. Again, as is common in such cases, there was the very general feeling that Miss Arnold's family knew a good deal more than had been revealed either to the police or the public, and there was something about the long delay in reporting the case and the subsequent guarded attitude of the girl's relatives that seemed to confirm this perhaps idle suspicion.

The trouble with a great many of the theories evolved in the first months following the disappearance of Dorothy Arnold, was that they fitted only a part of the facts and probabilities. After all, here was an intricate and baffling situation, involving a person who, because of position, antecedents, and social situation, might be expected to act in a conventional manner. Accordingly, any explanation that fitted the physical facts and was still characterized by extraordinary details might reasonably be discarded.

It was several years before the girl's father finally declared his belief in her death, and it is a fact that a sum of not less than a hundred thousand dollars

was expended, first and last, in running down all sorts of rumors and clews. The search extended to England, Italy, France, Switzerland, Canada—even to the Far East and Australia. But all trails led to vacancy, and all speculations were at length empty. No dimmest trace of the girl was ever found, and no genuinely satisfactory explanation of the strange story has ever been put forward.

It is true there have been, at times in the intervening dozen or more years, rumors of a solution. Persons more or less closely connected with the official investigation have on several occasions been reported as voicing the opinion that the Arnold family was in possession of the facts, but denials have followed every such declaration. On April 8, 1921, for instance, Captain John H. Ayers, in charge of the Missing Persons Bureau of the New York Police Department, told an audience at the High School of Commerce that the fate of Miss Arnold had at that time been known to the police for many months, and that the case was regarded as closed. This pronouncement received the widest publicity in the New York and other American newspapers, but Captain Ayers' statement was immediately and vigorously controverted by John S. Keith, the personal attorney of the girl's father, who declared that the police official had told a "damned lie," and that the mystery was as deep as ever it had been. The police chiefs later issued interviews full of dubiety and qualifications, the general tenor being that Captain Ayers had spoken without sufficient knowledge of the facts.

Just a year later the father of this woman of mysterious tragedy died, the last decade of his life beclouded by the sorrowful story and painful doubt. In his will was this pathetic clause:

"I make no provision in this will for my beloved daughter, H. C. Dorothy Arnold, as I am satisfied that she is dead."

The death of Miss Arnold's father once more set the rumor mongers to work and a variety of tales, bolder than had been uttered before, were circulated through the demi-world of New York and hinted in the newspapers. These rumors have not been printed directly and there has thus been no need of denial on part of the family. It must be said at once that they are mere bruits, mere attempts on the part of the cynical town to invent a set of circumstances to fit what few facts and alleged facts are known.

On the other hand, the newspapers have been only too ready to take seriously the most absurd fabrications. In 1916, for instance, a thief arrested at Providence, R. I., for motives best known to himself, declared that he had helped to bury Dorothy Arnold's body in the cellar of a house about ten miles below West Point, near the J. P. Morgan estate. Commissioner Joseph A. Faurot, Captain Grant Williams and a number of detectives provided with digging tools set out for the place in motor cars, closely pursued by other cars containing the newspaper reporters. The police managed to shake off the newspaper men and reached the house. There they dug till they ached and found nothing whatever.

Returning to New York, the detectives left their shovels, some of which were rusty or covered with a red clay, at a station house and there the reporters caught a glimpse of them. The result was that a bit of rust or ferrous earth translated itself into blood and thence into headlines in the morning papers, declaring that Dorothy Arnold's body had been found. Denials followed within hours, to be sure.

So the case rests.

Perhaps, in some year to come, approaching death will open the lips of one or another who knows the secret and has been sealed to silence by the fears and needs of life. But it is just as likely that the words of her dying parent contain as much as can be known of the truth about the missing Dorothy Arnold.

VIII

EDDIE CUDAHY AND PAT CROWE

At seven o'clock on the bright winter evening of December 18, 1900, Edward A. Cudahy, the multimillionaire meat packer, sent his fifteen-year-old son to the home of a friend, with a pile of periodicals. The boy, Edward A., junior, but shortly to be known over two continents as Eddie Cudahy, left his father's elaborate house at No. 518 South Thirty-seventh Street, Omaha, walked three blocks to the home of Doctor Fred Rustin, also in South Thirty-seventh Street, delivered the magazines, turned on his heel and disappeared.

Shortly before nine o'clock the rich packer noticed that his son had not returned, and he observed to his wife that the Rustins must have invited the boy to stay. Mrs. Cudahy felt a little nervous and urged her husband to make sure. He telephoned to the Rustin home and was promptly told that Eddie had been there, left the papers and departed immediately, almost two hours before.

The Cudahys were instantly alarmed and convinced that something out of the ordinary had befallen the boy. He had promised to return immediately to consult with his father over a Christmas list. He was known to have no more than a few cents in his pockets, and unexplained absences from home at night were unprecedented with him.

The beef magnate notified the Omaha police without long hesitation, and the quest for the missing rich boy was on. All that night detectives, patrolmen, servants, and friends of the family went up and down the streets and alleys of the overgrown Nebraska packing town, with its strange snortings from the cattle pens, its grunting railroad engines, its colonies of white and black laborers from distant lands, its brawling night life and its pretentious new avenues where the brash and sudden rich resided. At dawn the searchers congregated, sleepless, at the police headquarters or the Cudahy mansion, baffled and affrighted. Not the first clew to the boy had been found, and no one dared to whisper the clearest suspicions.

By noon all Omaha was in turmoil. The great packing houses had practically stopped their activity; the police had been called in from their usual assignments and put to searching the city, district by district; the resorts and gambling houses were combed by the detectives; the anxious father had telegraphed to Chicago for twenty Pinkerton men, and the usual flight of mad rumors was in the air.

One man reported that he had seen two boys, one of them with a broken arm, leave a street car at the city limits on the preceding night. The fact that the car line passed near the Cudahy home was enough to lead people to think one of the boys must have been Eddie Cudahy. As a result, his known young friends were sought out and questioned; the schools were gone over for the boy with a broken arm, and all the street-car crews in town were examined by the police.

By the middle of the afternoon, the newspapers issued special editions, which bore the news that a letter had been received from kidnappers. According to this account, a man on horseback had ridden swiftly past the Cudahy home at nine o'clock that morning and tossed a letter to the lawn. This had been picked up by one of the servants, and it read as follows:

“We have your son. He is safe. We will take good care of him and return him for a consideration of twenty-five thousand dollars. We mean business.

“Jack.”

With the publication of this alleged communication, even more fantastic reports began to reach the police and the parents. One young intimate of the family came in and reported in all seriousness that he had seen a horse and trap standing in Thirty-seventh Street, near the Cudahy home on several occasions in the course of the preceding week. The fact that it looked like any one of a hundred smart rigs then in common use did not seem to detract from its fancied significance.

Another neighbor reported that three days before the kidnapping he had seen a covered light wagon standing at the curb in the street, a block to the rear of the Cudahy home. One man on the seat was talking with another, who was standing on the walk, and, as the narrator passed, they had lowered their voices to a whisper. He had not thought the incident

suggestive until after the report of the kidnapping. And the police, quite forgetting the instinctive universal habit of lowering the voice when strangers pass, sent out squads of men to find the wagon and the whisperers!

In short, the town was excited out of all sanity, and the very forces which should have maintained calmness and acted with all possible self-possession seemed the most headless. All the officials accomplished was the brief detention of several innocent persons, the theatrical raiding of a few gambling houses, and the further excitation of the citizenry, always ready to respond to police histrionism.

To add an amusing exhibit to the already heavy store of evidence on this last point, it may be noted with amusement, not to say amazement, that the kidnapping letter, which had so agitated the public, was itself a police fake, and the rider who had thrown it on the lawn was a clumsy invention.

Meantime, however, a genuine kidnapping letter had reached the hands of Mr. Cudahy. A little before nine o'clock on the morning of the nineteenth, after he too had been up all night, the family coachman was walking across the front lawn when he saw a piece of red cloth tied to a stout wooden stick about two feet long. He approached it, looked at it suspiciously, and finally picked it up, to find that an envelope was wrapped about the stick and addressed in pencil to Mr. Cudahy. Evidently some one had thrown this curiously prepared missive into the yard in the course of the preceding night, for there had been numbers of policemen, detectives, and neighbors on the lawn and on the walks in front of the property since dawn.

The letter, with its staff and red cloth, was immediately carried to the packer, who read with affrighted eyes this remarkable and characteristic communication:

“OMAHA, December 19, 1900.

“Mr. Cudahy:

“We have kidnapped your child and demand twenty-five thousand dollars for his safe return. If you give us the money, the child will be returned as safe as when you last saw him; but if you refuse, we will put acid in his eyes and blind him. Then

we will immediately kidnap another millionaire's child that we have spotted, and we will demand one hundred thousand dollars, and we will get it, for he will see the condition of your child and realize the fact that we mean business and will not be monkeyed with or captured.

“Get the money all in gold—five, ten, and twenty-dollar pieces—put it in a grip in a white wheat sack, get in your buggy alone on the night of December 19, at seven o'clock p.m., and drive south from your house to Center Street; turn west on Center Street and drive back to Ruser's Park and follow the paved road toward Fremont.

“When you come to a lantern that is lighted by the side of the road, place your money by the lantern and immediately turn your horse around and return home. You will know our lantern, for it will have two ribbons, black and white, tied on the handle. You must place a red lantern on your buggy where it can be plainly seen, so we will know you a mile away.

“This letter and every part of it must be returned with the money, and any attempt at capture will be the saddest thing you ever done. *Caution! For Here Lies Danger.*

“If you remember, some twenty years ago Charley Ross was kidnapped in New York City, and twenty thousand dollars ransom asked. Old man Ross was willing to give up the money, but Byrnes^[8] the great detective, with others, persuaded the old man not to give up the money, assuring him that the thieves would be captured. Ross died of a broken heart, sorry that he allowed the detectives to dictate to him.

^[8] Mr. Crowe had his criminal history somewhat vaguely in mind.

“This letter must not be seen by any one but you. If the police or some stranger knew its contents, they might attempt to capture us, although entirely against your wish; or some one might use a lantern and represent us, thus the wrong party would secure the money, and this would be as fatal to you as if you refused to give up the money. So you see the danger if you let the letter be seen.

“Mr. Cudahy, you are up against it, and there is only one way out. Give up the coin. Money we want, and money we will get. If you don’t give it up, the next man will, for he will see that we mean business, and you can lead your boy around blind the rest of your days, and all you will have is the damn copper’s sympathy.

“Do the right thing by us, and we will do the same by you. If you refuse you will soon see the saddest sight you ever seen.

“Wednesday, December 19th. This night or never. Follow these instructions, or harm will befall you or yours.”

There was no signature. I have quoted the letter exactly, with the lapses in grammar and spelling preserved. It was written in pencil on five separate pieces of cheap note paper and in a small, but firm, masculine hand. It was read to the chief police authorities soon after its receipt. Just why they felt compelled to announce that it had come, and to invent the absurd draft they issued, remains for every man’s own intuitions.

In this case, as in other abduction affairs, the police advised the father not to comply with the demand of the criminals, but to rely upon their efforts. No doubt their sense of duty to the public is as much responsible for this invariable position as any confidence in their own powers. An officer must feel, after all, that he cannot counsel bargaining with dangerous criminals, and that to pay them is only to encourage other kidnappers and further kidnappings.

In spite of the menacing terms of the rather garrulous letter, which betrayed by its very length the fervor of its persuasive threats, and the darkness of its reminders, the nervousness of its composer, Mr. Cudahy was minded to listen to the advice of the officers and defy the abductors of his son. In this frame of mind he delayed action until toward the close of the afternoon, meantime sitting by the telephone and hearing reports from police headquarters and his own private officers every half hour. By four o’clock he and his attorney began to realize that there was no clew of any kind; that the whole Omaha police force and all the men his wealth had been able to supply in addition, had been able to make not even the first promising step, and that the hour for a decision that might be fatal was fast approaching.

Still, he hesitated to take a step in direct violation of official policy and counsel.

In this dilemma Mrs. Cudahy came forward with a demand for action to meet the immediate emergency and protect her only son. She refused to listen to talk of remoter considerations, declared that the amount of ransom was a trifle to a man of her husband's fortune, and weepingly insisted that she would not sacrifice her boy to any mad plans of outsiders, who felt no such poignant concern as her own.

Shortly before five o'clock Mr. Cudahy telephoned the First National Bank, which had, of course, closed for the day, and asked the cashier to make ready the twenty-five thousand dollars in gold. A little later the Cudahy attorney called at the bank and received the specie in five bags and in the denominations asked by the abductors. The money was taken at once to the Cudahy house and deposited inside, without the knowledge of the servants or outsiders.

At half past six Mr. Cudahy ordered his driving mare hitched to the buggy in which he made the rounds of his yards and plants. At seven o'clock he slipped quietly out of his house, without letting his wife, the servants, or any one but his attorney know his errand. He carried a satchel containing the five bags of gold, which weighed more than one hundred pounds, to the stable, put the precious stuff into the bottom of his vehicle, took up the reins, and set out on his perilous and ill-boding adventure.

Mr. Cudahy had not been allowed to leave home without warnings from the police and his attorney. They had told him that he might readily expect to find himself trapped by the kidnappers, who would then hold both him and his son for still higher ransom. So he drove toward the appointed place along the dim, night-hidden roads, with more than ordinary misgiving. Once or twice, after he had proceeded six or seven miles into the blackness of the open prairie, without seeing any signs from the abductors, he came near turning back; but the danger to his son and the thought that the criminals could have no object in sending him on a fruitless expedition, held him to his course.

About ten miles out of town, still jogging anxiously along behind his horse, Mr. Cudahy saw a passenger train on one of the two transcontinental lines that converge at that point, coiling away into the infinite blackness, like

some vast phosphorescent serpent. The beauty and mystery of the spectacle meant nothing to him, but it served to raise his hopes. No doubt the kidnappers would soon appear now. They had probably chosen this locality, with the swift trains running by, for their rendezvous. Once possessed of the gold, they would catch the next flyer for either coast and be gone out of the reach of local police. Perhaps they would even have the missing boy with them and surrender him as soon as they had been paid the ransom.

Thus buoyed and heartened, the father drove on. Suddenly the road entered a cleft between two abrupt hills or butts. A sense of impendency oppressed the lonely driver. He took up a revolver beside him on the seat, clutching it near him, with some protective instinct. At the same moment he turned higher the flame in his red lantern, which swung from the whip socket of his buggy, and peered out into the gulch. Everything was pit-black and grave-silent. He lay back disappointed and spoke to the horse, debating whether to turn back. Once more he decided to go on. The cleft between the two eminences grew narrower. The horse turned a swift sharp corner. Cudahy sat up with startled alertness.

There in the road before him, not ten rods away, was a smoky lantern, throwing but a pallid radiance about it in the thick darkness, but lighting a great hope in the father's heart. He approached directly, drew up his horse a few yards away, found that the lantern, tied to a twig by the roadside, was decorated with the specified ribbons of black and white, returned to his buggy, carried the bags of gold to the lantern, put them down in the roadside, waited a few moments for any sign that might be given, turned his horse about, and started for home, driving slowly and listening intently for any sound from his expected son.

The ten miles back to Omaha were covered in this slow and tense way, with eyes and ears open, and a mind fluctuating between hope and despair. But no lost boy came out of the darkness, and Cudahy reached his house without the least further encouragement. It was then past eleven o'clock. His attorney and his wife were still in the drawing-room, sleepless, tense, and terrified. They greeted the boy's father with swift questions and relapsed into hopelessness when he related what he had done. An hour passed, while Cudahy tried to keep up the courage of his wife by argument and reasoning. Then came one o'clock. Now half past one. Surely there was no longer any need of waiting now. Either the kidnappers had hoaxed the

suffering parents, or that note had not come from kidnappers at all, but from impostors—or—something far worse. At best, nothing would be heard till morning.

“It’s no use, Mrs. Cudahy,” said the lawyer. “You’d better get what sleep you can, and——”

“Hs-s-sh!” said the mother, laying her finger on her lips and listening like a hunted doe.

In an instant she sprang out of her chair, ran into the hall, out of the door, down the walk to the street, and out of the gate. The two men sprang up and followed in time to see her catch the missing boy into her arms. She had heard his footfall.

The news of the boy’s return was flashed to police headquarters within a few minutes, and the detective chief went at once to the Cudahy home to hear the returning boy’s story. It was simple and brief enough.

Eddie Cudahy had left Doctor Rustin’s house the night before, and gone directly homeward. Three or four doors from his parents’ house Eddie Cudahy was suddenly confronted by two men who faced him with revolvers, called him Eddie McGee, declared that he was wanted for theft, that they were officers, and that he must come to the police station. He protested that he was not Eddie McGee, and that he could be identified in the house yonder; but his captors forced him into their buggy and drove off, warning him to make no outcry. They had gone only a few blocks when they changed their tone, tied the lad’s arms behind him, and put a bandage over his eyes and another over his mouth, so that he could not cry out. He understood that he had been kidnapped.

Thus trussed up and prevented from either seeing where he was being taken, or making any outcry, the young fellow was driven about for an hour, and finally delivered to an old house, which he believed to be unfurnished, judging from the hollow sound of the footsteps, as he and his captors were going up the stairs. He was taken into a room on the second floor, seated in a chair, and handcuffed to it. His gag was removed, but not the bandage on his eyes. He was supplied with cigarettes and offered food, but he could not eat. One of the two men stood guard, the other departing at once, but returning later on.

All that night and the next day the boy was unable to sleep. But he sensed that his captor seemed to be imbibing whisky with great regularity. Finally, about an hour before he had been set free, Eddie heard the other man return and hold a whispered conversation with his guard. The boy was then taken from the house, put back into the same buggy, driven to within a quarter of a mile of his father's home, and released. He ran for home, and his captors drove off.

Eddie Cudahy could not give any working description of the criminals. He had not got a good look at them in the street when they seized him, because it was dark, and they had the brims of their large hats pulled down over their eyes. Immediately afterward he had been bandaged and deprived of all further chance of observation. One man was tall, and the other short. The tall man seemed to be in command. The short man had been his guard. He thought there was a third man who was bringing in reports.

There were just two dimly promising lines of investigation. First, it would surely be possible to find the house in which the boy had been held captive, for Omaha was not so large that there were many empty houses to suit the description furnished by the boy. Besides, the time at which any such house had been rented would offer evidence. It might be possible to get a clew to the identity of the kidnappers through the description of the person or persons who had done the renting.

Second, the kidnappers must have got the horse and buggy somewhere; most likely from a local livery stable. If its source could be found, the liveryman also would be able to describe the persons with whom he had done business.

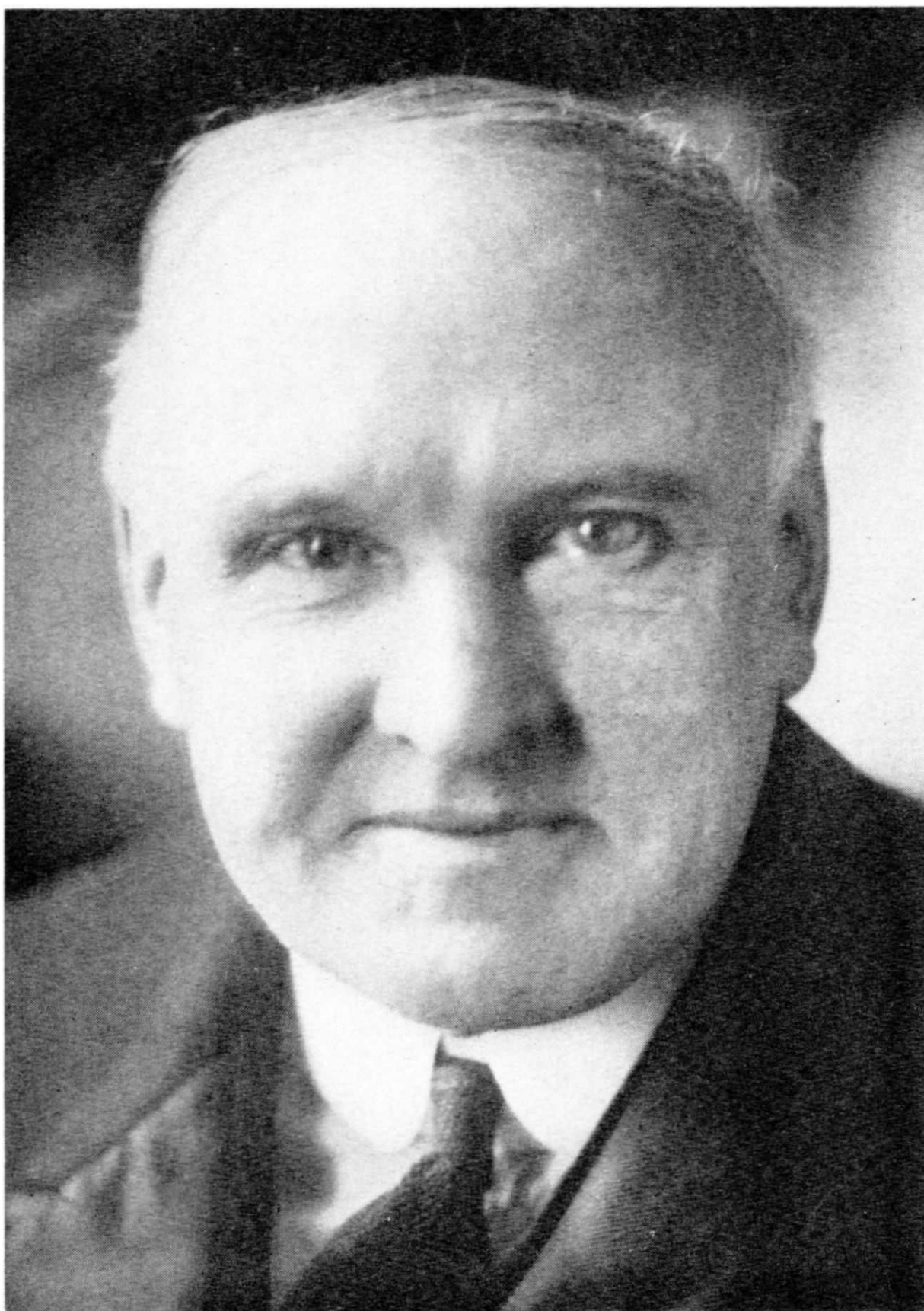
So the police set to work, searching the town again for house and for stable. They found several deserted two-story cottages that fitted the picture well enough, and in each instance there were circumstances which seemed to indicate that the kidnappers had been there. Finally, however, all were eliminated, except a crude two-story cabin at 3604 Grover Street. This turned out to be the place, situated near the outskirts, on the top of a hill, with the nearest neighbors a block away. Cigarette ends, burned matches, empty whisky bottles, and windows covered with newspapers gave silent, but conclusive, testimony.

The matter of the horse proved more difficult. It had not been hired at any stable in Omaha or in Council Bluffs, across the Missouri River. Advertising and police calls brought out no private owner who had rented such a rig. Finally, however, the officers found a farmer living about twenty miles out of town who had sold a bay pony to a tall stranger several weeks before. Another man was found who had sold a second-hand buggy to a man of the same general description. At last the police began to realize that they were dealing with a criminal of genuine resourcefulness and foresight. The man had not blundered in any of the usual ways, and he had made the trail so confused that more than a week had passed before there were any positive indications as to his possible identity.

In the end several indications pointed in the same direction. It seemed highly probable that the kidnapper chieftain had been some one acquainted with the packing business and probably with the Cudahys. He was also familiar with the town. He was tall, had a commanding voice, was accompanied by a shorter man, who seemed to be older, but was still dominated by his companion. More important still, this chief of abductors was an experienced and clever criminal. He gave every evidence of knowing all the ropes. These specifications seemed to fit just one man whose name now began to be used on all sides—the thrice perilous and ill-reputed Pat Crowe.

It was recalled that this man had begun life as a butcher, been a trusted employee of the Cudahys ten years before, and had been dismissed for dishonesty. Subsequently he had turned his hand to crime, and achieved a startling reputation in the western United States as an intrepid bandit, train robber, and jail breaker, a handy man with a gun, a sure shot, and a desperate fellow in a corner. He had been in prison more than once, had lately made what seemed an effort at reform, knew Edward A. Cudahy well, and had sometimes received favors and gratuities from the rich man. He was, in short, exactly the man to fit all the requirements, and succeeding weeks and evidence only strengthened the suspicion against him. Crowe, though he had been seen in Omaha the day before the kidnapping, was nowhere to be discovered. Even this fact added to the general belief that he and none other had done the deed. In a short time the Cudahy kidnapping mystery resolved itself into a quest for this notorious fellow.

The alarm was spread throughout the United States and Canada, to the British Isles, and the Continental ports, and to Mexico and the Central American border and port cities, where it was believed the fugitive might make his appearance. But Crowe was not apprehended, and the quest soon settled down to its routine phases, with occasional lapses back into exciting alarms. Every little while the capture of Pat Crowe was reported, and on at least a dozen occasions men turned up with confessions and detailed descriptions of the kidnapping. These apparitions and alleged captures took place in such diffused spots as London, Singapore, Manila, Guayaquil, San Francisco, and various obscure towns in the United States and Canada. The genuine and authentic Pat Crowe, however, stoutly declined to be one of the captives or confessors, and so the hunt went on.



~~ PAT CROWE ~~

Meantime Crowe's confederate, an ex-brakeman on the Union Pacific Railroad, had been taken and brought to trial. His name was James Callahan, and there was then and is now no question about his connection with the affair. Nevertheless, at the end of his trial on April 29, 1901, Callahan was acquitted, and Judge Baker, the presiding tribune, excoriated the jury for neglect of duty, saying that never had evidence more clearly indicated guilt. Attempts to convict Callahan on other counts were no better starred, and he had finally to be released.

In the same year, 1901, word was received from Crowe through an attorney he had employed in an earlier difficulty. Crowe had sent this barrister a draft from Capetown, South Africa, in payment of an old debt. The much sought desperado had got through the lines to the Transvaal, joined the Boer forces, and had been fighting against the British. He had been twice wounded, decorated for distinguished courage, and was, according to his own statement, done with crime and living a different life—adventurous, but honest. So many canards had been exploded that Omaha refused to believe the story, albeit time proved it to be true.

At the height of the excitement, rewards of fifty-five thousand dollars had been offered for the capture and conviction of Pat Crowe, thirty thousand by Cudahy and twenty-five thousand by the city of Omaha. This huge price on the head of this wandering bad man had, of course, contributed to the feverish and half-worldwide interest in the case. Yet even these fat inducements accomplished nothing.

Finally, in 1906, when Crowe had been hunted in vain for more than five years, he suddenly opened negotiations with Omaha's chief of police through an attorney, offering to come in and surrender, in case all the rewards were immediately and honestly withdrawn, so that there would be no money inducement which might cause officers or others to manufacture a case against him. After some preliminaries, these terms were met, but not until an attempt to capture the desperado had been made and failed, with the net result of three badly wounded officers.

In February, 1906, Crowe was at last brought to trial and, to the utter astoundment and chagrin of the entire country, promptly acquitted, though he offered no defense and tacitly admitted that he had taken the boy. One bit of conclusive evidence that had been offered by the prosecution and admitted by the court, was a letter written by Crowe to his parish priest in the little Iowa town of his boyhood. In the course of this letter, which had been written to the priest in the hope that he might make peace with Cudahy, the desperado admitted that "I am solely responsible for the Cudahy kidnapping. No one else is to blame."

No matter. The jury would not consider the evidence and brought in the verdict already indicated. Crowe, after six years of being hunted with a price of fifty-five thousand dollars on his head, was a free man.

The acquittals of Crowe and Callahan have furnished material for a good deal of amused and some angry speculation. The local situation in Omaha at the time furnishes the key to the puzzle. First of all, there was the bitter anti-beef trust agitation, founded on the fact that many small independent butchers had been put out of business by the great packing-house combination, of which Cudahy was a member; and that meat prices had everywhere been rapidly advanced to almost double their earlier prices. Next, there was the circumstance of Cudahy's abundant and flaunting wealth. The common man considered that these millions had been gouged out of his pocket and cut from off his dinner plate. Cudahy had also begun the introduction of cheap negro labor into Omaha to break a strike of his packing-house employees, and the city was bitterly angry at him. Also, Crowe was himself popular and well known. Many considered him a hero. But there was still another strange cause of the state of the public mind.

In the very beginning a not inconsiderable part of Omaha's people had somehow come to the curious conclusion that there had been no Cudahy kidnapping. One story said that Eddie Cudahy was a wild youth, and that he himself had conspired with Crowe and Callahan to abduct him and get the ransom, since he needed a share of it for his own purpose, and he saw in this plan an easy method to mulct his unsuspecting father. A later version denied the boy's guilt, but still insisted that the whole story, as told by the father and confirmed by the police, was a piece of fiction. What motive the rich packer could have had for such a fraud, no one could say. The best explanation given was that he saw in it a plan to get worldwide advertising

for the Cudahy name. How this could have sold any additional hams or beeves, is a bit hard to imagine, but the story was so generally believed that two jurors at one of the trials voiced it in the jury room and scoffed at all the evidence. All this rumor is, of course, absurd.

Crowe, after his acquittal, went straight, as the word goes. He has committed no more crimes, unless one wants to rate under this heading a book of highly romantic confessions, which he had published the following year. In this book he set forth the circumstances of the crime in great, but unreliable, detail. He made it very plain, however, that he and Callahan alone planned the crime and carried it out.

Crowe personally conceived the whole plan and took Callahan into the conspiracy only because he needed help. The two held up the boy, as already related. As soon as they had him safe in the old house, Crowe drove back to the Cudahy home in his buggy and threw the note, wrapped about the stick and decorated with the red cloth, upon the lawn, where it was found the next morning by the coachman. Of the twenty-five thousand dollars in gold, Crowe gave his assistant only three thousand dollars, used one thousand for expenses, and buried the rest, recovering it later when the coast was clear. He selected Cudahy for a victim because he knew that the packer was a fond father, had a nervous wife, and would be strong enough to resist any mad police advice.

A few years later I first encountered Crowe in New York, when he came to see me with a petty favor to ask and an article of his reminiscences to sell. He had meantime become a kind of peregrine reformer, lecturer, pamphlet seller and semi-mendicant, now blessed with a little evanescent prosperity, again sleeping in Bowery flops and eking out a miserable living by any device short of lawbreaking. And he has called upon me or crossed my wanderings repeatedly in the intervening years, always voluble, plausible and a trifle pathetic. Now he is off to call upon the President, to memorialize a governor or to address a provincial legislature. He is bent on abolishing prisons, has a florid set-speech, which he delivers in a big sententious voice, and perhaps he impresses his rural hearers, though the tongue in the cheek and the twinkle in the eye never escape those who know him of old.

This grand rascal is no longer young—rising sixty, I should say—and life has treated him shabbily in the last twenty years. Yet neither poverty nor age has quite taken from him a certain leonine robustness, a kind of ruined strength and power that shines a little sadly through his charlatanry.

Only once or twice, when he has lost himself in the excited recounting of his adventures, of his hardy old crimes, of the Cudahy kidnapping, have I ever caught in him the quality that must once have been his—the force, the fire that made his name shudder around the world. Convention has beaten him as it beats them all, these brave and baneful men. It has made a sidling apologist of a great rogue in Crowe's case—and what a sad declension!

IX

THE WHITLA KIDNAPPING

Abduction is always a puzzling crime. The risks are so great, the punishment, of late years, so severe, and the chances of profit so slight that logic seems to demand some special and extraordinary motive on the part of the criminal. It is true that kidnapping is one of the easiest crimes to commit. It is also a fact that it seems to offer a quick and promising way of extorting large sums of money without physical risk. But every offender must know that the chances of success are of the most meager.

A study of past cases shows that child stealing arouses the public as nothing else can, not even murder. This state of general alarm, indignation, and alertness is the first peril of the kidnapper. Again, the problem of getting the ransom from even the most willing victim without exposing the criminal to capture, is a most intricate and unpromising one. It is well known that child snatchers almost never succeed with this part of the business. The cases in which the kidnapper has actually got the ransom and made off without being caught and punished are so thinly strewn upon the long record that any criminal who ever takes the trouble to peruse it must shrink with fear from such offenses. Finally, it is familiar knowledge among police officers that professional criminals usually are aware of this fact and consequently both dread and abhor abductions.

The fact that kidnapping persists in spite of these recognized discouragements probably accounts for the proneness of policemen and citizens to interpret into every abduction case some moving force other than mere hope of gain. Obscure impulses and springs of action, whether real or surmised, are often the inner penitentials of child stealing mysteries. So with the famous Whitla case.

At half past nine on the morning of March 18, 1909, a short, stocky man drove up to the East Ward Schoolhouse, in the little steel town of Sharon, in western Pennsylvania, in an old covered buggy and beckoned to Wesley Sloss, the janitor.

“Mr. Whitla wants Willie to come to his office right away,” said the stranger.

It may have been more than irregular for a pupil to be summoned from his classes in this way, but in Sharon no one questioned vagaries having to do with this particular child. Willie Whitla was the eight-year-old son of the chief lawyer of the place, James P. Whitla, who was wealthy and politically influential. The boy was also, and more spectacularly, the nephew by marriage of Frank M. Buhl, the multimillionaire iron master and industrial overlord of the region.

Janitor Sloss bandied no compliments. He hurried inside to Room 2, told the teacher, Mrs. Anna Lewis, that the boy was wanted, helped bundle him into his coat, and led him out to the buggy. The man in the conveyance tucked the boy under the lap robe, muttered his thanks, and drove off in the direction of the town’s center, where the father’s office was situated.

When Willie Whitla failed to appear at home for luncheon at the noon recess, there was no special apprehension. Probably he had gone to a chum’s house and would be along at the close of the afternoon session. His mother was vexed, but not worried.

At four o’clock the postman stopped on the Whitla veranda, blew his whistle, and left a note which had been posted in the town some hours before. It was addressed to the lawyer’s wife in the childish scrawl of the little boy. Its contents, written by another hand, read:

“We have your boy, and no harm will come to him if you comply with our instructions. If you give this letter to the newspapers, or divulge any of its contents, you will never see your boy again. We demand ten thousand dollars in twenty-dollar, ten-dollar, and five-dollar bills. If you attempt to mark the money, or place counterfeit money, you will be sorry. Dead men tell no tales. Neither do dead boys. You may answer at the following addresses: *Cleveland Press*, *Youngstown Vindicator*, *Indianapolis News*, and *Pittsburgh Dispatch* in the personal columns. Answer: ‘A. A. Will do as you requested. J. P. W.’”

A few minutes later the whole town was searching, and the alarm had been broadcast by telegraph and telephone. Before nightfall a hundred thousand

officers were on the lookout in a thousand cities and towns through the eastern United States.

At four thirty o'clock, when Sharon first heard of the abduction, a boy named Morris was found, who had seen Willie Whitla get out of a buggy at the edge of the town, drop a letter into the mail box, and get back into the vehicle, which was driven away.

This discovery had hardly been made when it was also learned that a stranger had rented a horse and buggy, fitting the description of those used by the kidnapper, in South Sharon early in the morning. At five o'clock, the jaded horse, still hitched to the rented buggy, was found tied to a post in Warren, Ohio, twenty-five miles from Sharon.

The search immediately began in the northern or lake cities and towns of Ohio, the trend of the search running strongly toward Cleveland, where it was believed the abductor or abductors would try the hiding properties of urban crowds.

The Whitla and Buhl families acted with sense and caution. They were sufficiently well informed to know that the police are doubtful agencies for the safe recovery of snatched children. They were rich to the point of embarrassment. Ten thousand dollars meant nothing. The safety and speedy return of the child were the only considerations that could have swayed them. Accordingly, they did not reveal the contents of the note, as I have quoted it. Neither did they confide to the police any other details, or the direction of their intentions. The fact of the kidnapping could, of course, not be concealed, but all else was guarded from official or public intrusion.

On the advice of friends the parents did employ private detectives, but even their advice was disregarded, and Mr. Whitla without delay signified his willingness to capitulate by inserting the dictated notice into all the four mentioned newspapers.

The answer of the abductors came very promptly through the mails, reaching Whitla on the morning of the twentieth, less than forty-eight hours after the boy had been taken.

Again following instructions, Whitla did not communicate to the police the contents of this note or his plans. Instead, he set off quietly for Cleveland, evidently to mislead the public officers, who seemed to take delight in their

efforts to seize control of the case. At eight o'clock in the night Whitla left Cleveland, accompanied by one private detective, and went to the neighboring city of Ashtabula. Here the detective was left at the White Hotel, and the father of the missing boy set out to meet the demands of the kidnapers.

They, it appears, had written him that he must go at ten o'clock at night to Flatiron Park, a lonely strip of land on the outskirts of Ashtabula, and there deposit under a certain stone the package of bills. He was told what route to follow, commanded to go alone, and warned not to communicate with the police. Having left the money as commanded, Whitla was to return to the hotel and wait there for the coming of his son, who would be restored as soon as the abductors were safely in possession of the money.

So the father set out in the dark of the night, followed the route given him by the abductors, deposited the money in the park, and returned forthwith to the hotel, reaching it before eleven o'clock. Here he sat with his bodyguard, waiting for the all-desired apparition of his little son. The hours went wearily by, while the father's nervousness mounted. Finally, at three o'clock in the morning, some local officers appeared and notified the frenzied lawyer that they had been watching the park all night, and that no one had appeared to claim the package of money.

Police interference had ruined the plan.

The local officers naturally assumed that, as the kidnapers were to call for the money in the park, they must be in Ashtabula. They accordingly set out, searched all night, invaded the houses of sleeping citizens, turned the hotels and rooming houses inside out, prowled their way through cars in the railroad yards and boats in the harbor, watched the roads leading in and out of the city, searched the street cars and generally played the devil. But all in vain. There were no suspicious strangers to be found in or about the community.

The following morning the father of the boy visited the mayor and requested that the police cease their activities. He pointed out that there were no clues of definite promise, and the peril in which the child stood ought to command official coöperation instead of dangerous interference. Whitla finally managed to convince the officers that they stood no worse

chance of catching the criminals after the recovery of the boy, and the Ashtabula officers were immediately called off.

The disappointed and harried father was forced to return to Sharon in defeat and bring the disappointing news to his prostrated wife. The little steel town had got the definite impression that news of the child had been got, and preparations for the boy's return had been made. Many citizens were up all night, ready to receive the little wanderer with rockets, bands, and jubilation. Crowds besieged the Whitla home, and policemen had to be kept on guard to turn away a stream of well-meaning friends and curious persons, who would have kept the breaking mother from such little sleep as was possible under the circumstances.

The excitement of the vicinity had by this time spread to all the country. As is always the case, arrests on suspicion were made of the most unlikely persons in the most impossible situations. Men, women, and children were stopped in the streets, dragged from their rooms, questioned, harried, taken to police stations, and even locked into jails for investigation, while the missing boy and his abductors succeeded in eluding completely the large army of pursuers now in the field.

Nothing further was heard from the kidnappers on the twenty-first, and the hearts of the bewildered parents and relatives sank with apprehension, but the morning mail of the twenty-second again contained a note which, properly interpreted, seems to indicate that the business of leaving the money in the park at Ashtabula may have been a test maneuver, to find out whether Whitla would keep the faith and act without the police. This note read:

"A mistake was made at Ashtabula Saturday night. You come to Cleveland on the Erie train leaving Youngstown at 11:10 a. m. Leave the train at Wilson Avenue. Take a car to Wilson and St. Clair. At Dunbar's drug store you will find a letter addressed to William Williams.

"We will not write you again in this matter. If you attempt to catch us you will never see your boy again."

This time Whitla decided to be rid of the police. He accordingly had his representatives announce that all activities would cease for the time being,

in the hope that the kidnappers would regain their confidence and reopen communications. At the same time he told the Ashtabula police to resume their activities. With these two false leads given out, Whitla slipped away from his home, caught the train, and went straight to Cleveland.

Late that afternoon, having satisfied himself that he had eluded the overzealous officers, Whitla went to Dunbar's drug store and found the note waiting, as promised. It contained nothing but further directions. He was to proceed to a confectionery conducted by a Mrs. Hendricks at 1386 East Fifty-third Street, deliver the ransom, carefully done into a package, to the woman in charge. He was to tell her the package should be held for Mr. Hayes, who would call.

Whitla went at once to the candy store, turned over the package of ten thousand dollars to Mrs. Hendricks, and was given a note in return. This missive instructed him to go forthwith to the Hollenden Hotel, where he was to wait for his boy. The promise was made that the child would be returned within three hours.

It was about five o'clock when this exchange was made. The tortured father turned and went immediately to the Hollenden, one of the chief hostelrys of Cleveland, engaged a room and waited. An hour passed. His anxiety became intolerable. He went down to the lobby and began walking back and forth, in and out of the doors, up and down the walk, back into the hotel, up to his room and back to the office. Several noticed his nervousness and preoccupation, but only a lone newspaper man identified him and kept him under watch.

Seven o'clock came and passed. At half past seven the worn lawyer's agitation increased to the point of frenzy. He could do no more than retire to a quiet corner of the lobby, huddle himself into a big chair, and sink into the half stupor of exhaustion.

A few minutes before eight o'clock the motorman of a Payne Avenue street car saw a man and a small boy come out of the gloom at a street corner in East Cleveland and motion him to stop. The man put the child aboard and gave the conductor some instructions, paying its fare, and immediately vanished in the darkness. The little boy, wearing a pair of dark goggles and a large yellow cap that was pulled far down over his ears, sat quietly in the back seat and made not a sound.

A few squares further along the line two boys of seventeen or eighteen years boarded the car and were immediately intrigued by the glum little figure. The newcomers, whose names were Edward Mahoney and Thomas W. Ramsey, spoke to the child, vaguely suspicious that this might be the much-sought Willie Whitla. When they asked his name the lad said he was Willie Jones. In response to other questions he told that he was on his way to meet his father at the Hollenden.

The two young men said no more till the hotel was reached. Here they insisted on leaving the car with the boy and at once called a policeman to whom they voiced their suspicions. The officer, the two youths, and the child thus entered the hotel and approached the desk. In response to further interrogation, the little fellow still insisted that he was Jones, but, being deprived of his big cap and goggles and called Willie Whitla, he asked:

“How did you know me? Where is my daddy?”

The gloomy man in the corner chair got one tinkle of the childish voice, ran across the big room, caught up the child and rushed hysterically to his own apartment, where he telephoned at once to the boy’s mother. By the time the attorney could be persuaded to come back down stairs, a crowd was gathered, and the father and child were welcomed with cheers.

The boy shortly gave his father and the police his story. The man who had taken him from school in the buggy had told him that he was being taken out of town to the country at his father’s request, because there was an epidemic of smallpox, and it was feared the doctors would lock him up in a dirty pest house. He had accordingly gone willingly to Cleveland, where he had been taken to what he believed to be a hospital. A man and woman had taken care of him and treated him well. They were Mr. and Mrs. Jones. They had not abused him in any way. In fact, he liked them, except for the fact that they made him hide under the kitchen sink when any one knocked at the door, and they gave him candy which made him sleepy. Mr. Jones himself, the boy said, had put him aboard the street car, paid his fare, instructed him to tell any inquirers that his name was Jones, and warned him to go immediately to the hotel and join his father. The only additional information got from the boy, besides fairly valuable descriptions of the abductors, was to the effect that he had been taken to the “hospital” the

night following his abduction and had not left the place till he was led out to be sent to the hotel.

The child returned to Sharon in triumph, was welcomed with music and a salute from the local militia company, displayed before the serenading citizens, and photographed for the American and foreign press.

Meantime the search for the kidnappers was under way. The private detectives in the employ of the Whitlas were immediately withdrawn when the boy was recovered, but the police of Cleveland and other cities plunged in with notable energy. The druggist, with whom the note had been left, and the woman confectioner, who had received the package of ransom money, were immediately questioned. Neither knew that the transaction they had aided was concerned with the Whitla case, and both were frightened and astonished. They could give little information that has not already been indicated. Mrs. Hendricks, the keeper of the candy store, however, was able to particularize the description of the man who had come to her place, left the note for Mr. Whitla, and returned later for the package of money. He was, she said, about thirty years old, with dark hair, a smoothly shaved, but pock-marked face, weighed about one hundred and sixty pounds, and seemed to be Irish.

Considering the car line which had brought the boy to the Hollenden Hotel, the point at which he had boarded the car, and the description he gave of the place he termed a hospital, the Cleveland police were certain Willie had been detained in an apartment house somewhere in the southeast quarter of the city, and detectives were accordingly sent to comb that part of the city in quest of a furnished suite in which the kidnappers might still be hiding.

Willie Whitla had returned to his father on Monday night. Tuesday evening, about twenty-two hours after the boy had made his dramatic entry into the Hollenden, the detectives went through a three-story flat building at 2022 Prospect Avenue and found that a couple answering the general descriptions furnished by Willie Whitla and Mrs. Hendricks had rented a furnished apartment there on the night following the kidnapping and had departed only a few hours ahead of the detectives. They had conducted themselves very quietly while in the place, and the woman who had sublet the rooms to them was not even sure there had been a child with them. Willie Whitla afterward identified this place as the scene of his captivity.

The discovery of this apartment might have been less significant for the moment, had the building not been but a few squares from the point at which Willie had been put aboard the street car for his trip to join his father. As it was, the detectives felt they were hot on the trail. Reserves were rushed to that part of town, patrolmen were not relieved at the end of their tours of duty, and the extra men were stationed at the exits from the city, with instructions to stop and question all suspicious persons. The pack was in full cry, but the quarry was by no means in sight.

At this tense and climactic moment of the drama far broader forces than the police were thrown upon the stage. The governor of Pennsylvania signed a proclamation in the course of the afternoon, offering to continue the reward of fifteen thousand dollars which had been posted by the State for the recovery of the boy and the arrest and conviction of his abductors. Since the boy had been returned, the money was to go to those who brought his kidnappers to justice. Accordingly, the people of several States were watching with no perfunctory alertness. High hopes of immediate capture were thus based on more than one consideration; but the night was aging without result.

At a few minutes past nine o'clock a man and woman of the most inconspicuous kind entered the saloon of Patrick O'Reilly on Ontario Street, Cleveland, sat down at a table in the rear room, and ordered drink. The liquor was served, and the man offered a new five-dollar bill in payment. He immediately reordered, telling the proprietor to include the other patrons then in the place. Again he offered a new bill of the same denomination, and once again he commanded that all present accept his hospitality. Both the man and the woman drank rapidly and heavily, quickly showing the effects of the liquor and becoming more and more loquacious, spendthrift and effusive.

There was, of course, nothing extraordinary in such conduct. Men came in often enough who drank heavily, spent freely, and insisted on "buying for the house." But it was a little unusual for a man to let go of thirty dollars in little more than an hour, and it was still more unusual for a customer to peel off one new five-dollar note after the other.

O'Reilly had been reading the newspapers. He knew that there had been a kidnapping; that there was a reward of fifteen thousand dollars outstanding;

that a man and woman were supposed to have held the boy captive in Cleveland, and not too far from the saloon. Also he had read about the package of five, ten, and twenty dollar bills. His brows lifted. O'Reilly waited for an opportune moment and went to his cash drawer. The bills this pair of strangers had given him were all new; that was certain. Perhaps they would prove to be all of the same issue, even of the same series and in consequent numbers. If so——

The saloonkeeper had to move with caution. When his suspect callers had their attention on something else, he slipped the money from the till and moved to the end of the bar near the window, where he was out of their visional range. He laid the bills out on the cigar case, adjusted his glasses, and stared.

In that moment the visitors got up to go. O'Reilly urged them to stay, insisted on supplying them with a free drink, did what he could, without arousing suspicion, to detain them, hoping that an officer would saunter in. At last they could be held no longer. With an exchange of unsteady compliments, they were out of the door and gone into the night, whose shadows had yielded them up an hour before.

O'Reilly noted the direction they took and flew to a telephone. In response to his urgings, Captain Shattuck and Detective Woods were hurried to the place and set out with O'Reilly's instructions and description. They had no more than moved from the saloon when the rollicking pair was seen returning.

The officers hailed these sinister celebrants with a remark about the weather and the lateness of the hour. Instantly the man took to his heels, with Captain Shattuck in pursuit. As they turned a corner, the officer drew and fired high.

The fleeing man collapsed in a heap, and the policeman ran to him, marveling that his aim had been so unintentionally good. He found, however, that the fugitive had merely stumbled in his sodden attempt at flight.

Both prisoners were taken forthwith to the nearest police station and subjected to questioning. They were inarticulately drunk, or determinedly reticent and pretending. Tiring of the maneuvers and half assured that he

was probably face to face with the kidnappers, Captain Shattuck ordered them searched.

At various places in the linings of the woman's clothing, still in the neat packages in which it had been taken from the bank, were nine thousand, seven hundred and ninety dollars.

The prisoners turned out to be James H. Boyle and Helen McDermott Boyle—he a floating adventurer known to the cities of Pennsylvania and Ohio, she the daughter of respectable Chicago parents, whom she had quit several years before to go venturing on her own account.

From the beginning both the police and the public held the opinion that these two people had not been alone in the kidnapping. When exhaustive investigation failed to reveal the presence of others at any stage of the abduction, flight, hiding and attempted removal in Cleveland, it was concluded that the prisoners had possibly been the sole active agents, but the opinion was retained that some one else must have plotted the crime.

Why had these strangers singled out Sharon, an obscure little town? Why had they chosen Willie Whitla, when there were tens of thousands of boys with wealthier parents and many with even richer relatives? Who had acquainted them with the particularities of the Whitlas' lives, the probable attitude at the school, the child's fear of smallpox and pest houses? Was it not obvious that some one close to the family had supplied the information and laid the plans?

James H. Boyle was led into court on the sixth of May, faced with his accusers, and swiftly encircled with the accusing evidence, which was complete and unequivocal. He accepted it without display of emotion and offered no defense. After brief argument the case went to the jury, which reached an affirmative verdict within a few minutes.

Mrs. Boyle was placed on trial immediately afterward and also presented no defense. A verdict was found against her with equal expedition on May 10, and she was remanded for sentence.

On the following day both defendants were called before the court. The judge imposed the life sentence on Boyle and a term of twenty-five years on his wife. A few hours afterward Boyle called the newspaper reporters to his cell in the jail at Mercer and handed them a written statement.

Boyle's writing went back fourteen years to 1895, when the body of Dan Reeble, Jr., had been found lying on the sidewalk on East Federal Street, Youngstown, Ohio, before the house where Reeble lived. There had been some mysterious circumstances or rumors attached to Reeble's end.

Boyle did not attempt to explain the death of Reeble, but he said in his statement that he and one Daniel Shay, a Youngstown saloonkeeper, who had died in 1907, had caught Harry Forker, the brother of Mrs. James P. Whitla and uncle of the kidnapped boy, taking a number of letters from the pockets of the dead man, as his body lay on the walk. Boyle recited that not only had he and Shay found Forker in this compromising position, but they had picked up two envelopes overlooked by Forker, in which were found four letters from women, two from a girl in New York State and the other two from a Cleveland woman. The contents were intimate, he said, and they proved beyond peradventure that Forker had been present at Reeble's death.

Boyle's statement went on to recite that he had subsequently written Forker, told him about the letters, and suggested that they were for sale. Forker had immediately replied and made various efforts to recover the incriminating missives, but Boyle had held them and continued to extort money from Forker for years, threatening to reveal the letters unless paid.

Finally, in March, 1908, Boyle's statement went on to recite, a demand for five thousand dollars had been made on Forker, who said he could not raise the money, but would come into an inheritance later and would then pay and recover the dangerous evidence. When Forker failed in this undertaking, fresh threats were made, with the result that Forker suggested the kidnapping of his nephew, the demand for ten thousand dollars' ransom, and the division of this spoil as a way to get the five thousand dollars Boyle was demanding.

Boyle also recited that Forker had planned the kidnapping and attended to the matter of having the boy taken from the school. He said that some one else had done this work and delivered the child to him, Boyle, in Warren, Ohio, where the exhausted horse was found.

This statement, filling the gap in the motive reasoning as it did, created a turmoil. Forker and Whitla immediately and indignantly denied the accusation and brought to their support a Youngstown police officer, Michael Donnelly, who said he had found the body of Dan Reeble.

Donnelly recited that he had been talking to Reeble on the walk before the building in which Reeble resided, early in the morning of June 8, 1895. Reeble had gone upstairs, and Donnelly was walking slowly down the street when he heard a thump and groans behind him. Returning to the spot where he had left Reeble, he found his companion of a few minutes before, dying on the walk.

Donnelly said that Reeble had had the habit of sitting on his window sill, and that the man had apparently fallen out to his death. He swore that neither Forker, Boyle, nor Daniel Shay had been present when Reeble died.

There are, to be sure, some elements which verge upon improbability in this account, but the denials of Forker and Whitla were strongly reinforced by the testimony of Janitor Sloss and the keeper of the livery where the horse and buggy had been hired. Both firmly identified Boyle as the man they had seen and dealt with, thus refuting the latter part of Boyle's accusative statement.

Mrs. Boyle was released after having served ten years of her long term. Her husband, on the other hand, continued his servitude and died of pneumonia in Riverside Penitentiary on January 23, 1920.

X

THE MYSTERY AT HIGHBRIDGE

A few minutes past seven o'clock, on the evening of March 27, 1901, Willie McCormick, a ten-year-old schoolboy, started to attend vespers in the little Church of the Sacred Heart, in the Highbridge section of New York City. His mother gave him a copper cent for the collection plate, and he ran out of the door, struggling into his short brown overcoat, in great haste to overtake two of his elder sisters who had started ahead of him. Three doors down the street he stopped and blew a toy whistle to attract the attention of a playmate. This boy's mother called from the porch that her son was to take a music lesson and could not go to church. So Willie McCormick lifted his cap and went his way.

It was a cold spring evening, and cutting winds were piping through the woods and across the open spaces of that then sparsely settled district of the American metropolis. Dusk had fallen, and the thinly planted electric lights along Ogden Avenue threw the shadows of the curbside trees across the walks in moving arabesques. The boy buttoned his coat closely about him, running away into the gloom, while the neighbor woman watched him disappear. In that moment the profounder darkness enveloped him, swallowed him into a void from which he never emerged alive, and made him the chief figure of another of the abiding problems of vanishment.

Highbridge is an outlying section of New York, fringing the eastern bank of the Harlem River and centering about one approach to the old and beautiful stone bridge from which it takes its name. The tracks of the New York Central Railroad skirt the edge of the river on their way up-state. Further back from the stream the ground rises, and along the ridge, paralleling the river, is Ogden Avenue. Near the southern foot of this thoroughfare, at One Hundred and Sixty-first Street, the steel skeleton of the McComb's Dam bridge thrust itself across the Harlem, with its eastern arch spanning high above the muddy mouth of Cromwell Creek,^[9] which empties into the Harlem at this point. At the shore level, under the great bridge approach, a hinged steel platform span, raised and lowered by means of balance weights

to permit the passage of minor shipping up and down the creek, carried the tracks across the lesser stream. Three blocks to the north of this confluence, which plays an important part in the mystery, stood the McCormick home, a comfortable brick and frame house of the villa type, set back from the highest point of Ogden Avenue in a lawn.

[9] This creek has since been filled in and a playground marks its site.

Twenty-five and more years ago, when Willie McCormick disappeared, the vicinity bore, as it still bears to a lesser degree, the air of suburbia. Then houses were few and rather far apart. Some of the side streets were unpaved, and all about were patches of unimproved land, where clumps of trees, that once were part of the Bronx Woods, still flourished in dense order. The first apartment houses of the district were building, and gangs of Italian laborers, with a sprinkling of native mechanics, were employed in the excavations and erections.

Kilns and a brick yard disfigured one bank of Cromwell Creek, while a factory, a coal dump, and two lumber yards sprawled along the other. Five squares to the north of the creek's mouth and two squares to the west is the Highbridge police station. The Church of the Sacred Heart, then in charge of the wealthy and venerable Father J. A. Mullin, stands two blocks to the east of Ogden Avenue and practically on the same cross street with the police building. Neither of these places is more than a third of a mile from the McCormick home.

Shortly after nine o'clock on the important evening already noted, the two young daughters of William McCormick returned from church without their brother. He had not overtaken them on the way, or joined them at the services. They had not seen him and supposed he had either remained at home, or played truant from church and gone to romp with other boys. The father was immediately alarmed. It was not like Willie to stay out in the dark. He was the eleventh of twelve children, all the others being girls, and he was accordingly petted, overindulged, and feminine. He had an especially strong dread of the dark and had never been known to venture out in the night without his older sisters or other boys. Besides, there had been kidnapping rumors in the neighborhood. It was not long after the notorious abduction of Eddie Cudahy, and parents in all parts of the United States were still nervous and watchful.

Whether because of threats, local suspicions, or because of the general alarm, the richest man in the neighborhood had gone to almost ludicrous extremes in his precautions. This man, a cloak manufacturer named Oscar Willgerodt, occupied a large house about a hundred yards from that of the McCormicks. He had a young son, also ten years old. His apprehensions for the safety of this lad, who was a playmate of Willie McCormick, resulted in a ten-foot stone wall across the front of his property, with an ornamental iron gate that was kept padlocked at night, though this step invalidated the fire insurance, an eight-foot iron fence about the sides and rear of the property, topped with strands of barbed wire, and several formidable dogs that ran at large day and night.

The fears of the neighborhood rich man had naturally communicated themselves to other parents, and they seethed in William McCormick's mind, as he hurried from his home to seek the absent boy. Willie was not to be found at the home of any of his chums; he was not playing at a near-by street corner, where some older boys were congregated, and apparently no one had seen him since the neighbor woman, Mrs. Tierney, had told him that her son could not go to church. The father, growing more and more excited, stormed about the Highbridge district half the night and then set out to visit relatives, to whose homes the boy might have gone. But Willie McCormick was not to be traced anywhere. On the following morning, when he did not appear, his father summoned the police.

What followed provides an excellent exposition of the phenomenon of public unconcern being gradually rallied to excitement and finally driven to hysteria. The police listened to the statements of the missing boy's parents and sisters, made some perfunctory investigations, and said that Willie McCormick had evidently run away from home. Many boys did that. Moreover, it was spring, and such vagaries were to be expected in youngsters. The newspapers noted the case with short routine paragraphs. A street-car conductor brought in the information that he had carried a boy, whom he was willing to identify as Willie McCormick, judging from nothing better than photographs, to a site in South Brooklyn, where Buffalo Bill's Wild West Show was encamped. Another conductor reported that he had taken a boy answering the description of Willie McCormick to the Gravesend race course, where the horses were tuning up for the spring

meeting. But the police found no trace of the wanderer at either place, nor at several others that were suggested.

The McCormicks took the attitude at once that their son had not gone away voluntarily. He was, they said, far too timid for adventuring, much too beloved and pampered at home to seek other environment, and too young to be troubled with the dromomania that attacks adolescents. To these objections one of the police officials responded with the charge that the McCormicks were not telling all they knew, and that he was satisfied they had an idea what had happened to the runaway, as he insisted on terming him.

At this point two interventions brought the McCormick case out of obscurity. Father Mullin, having been appealed to by the McCormicks, pointed out to the police in an interview that Willie McCormick had vanished with one cent in his pocket, that he could have taken a sum which must have seemed sufficient for long wanderings to a childish mind from his mother's purse, which lay at hand; that he had started to church with his sisters and returned for his overcoat, and that the departure was wholly unprepared and assuredly unpremeditated. The astute priest said that every runaway made preparations for flight, and that, no matter how carefully the plans might be laid, there always remained behind the evidence of intent to disappear. A child, he said, could not have planned more cunningly than many clever men, and he insisted that there must be another explanation for the absence of the boy.

Naturally the newspapers paid more attention to the priest, and they began printing pictures of the boy, with scare headlines. Father Mullin had just taken in hand the affair when Oscar Willgerodt, the man of the stone wall and iron fences, came forward with an offer of a thousand dollars' reward for information leading to the discovery of the missing boy. He said that he felt sure kidnappers had been at work, and that they had taken the McCormick boy in mistake for his own son. He added that he had received threats of abduction at intervals for more than a year.

A few days later, the boy's uncle appeared in the press with an offer of five thousand dollars for the safe return of the child and the production of his abductors. By this time the newspapers were flaming with accounts of the disappearance in every edition. Their reporters and detectives swarmed over

Highbridge, and that quiet district was immediately thrown into the wildest excitement, which rose as the days succeeded.

Father Mullin next offered ten thousand dollars for the apprehension of the kidnappers and return of the boy. Then a restaurant keeper of the neighborhood, whose nephew had been threatened by anonymous letter writers, offered two thousand dollars more for the return of the McCormick boy, and he said he would pay an additional thousand for evidence against kidnappers. Thus the total of fees offered was nineteen thousand dollars. Still no word came from the absent lad, and the efforts of a thousand officers failed to disclose any abductors.

The constant appearance of these articles in the newspapers and the offers of such high rewards succeeded, however, in throwing a city of five or six million people into general hysteria. Parents refused to allow their children out of doors without escort; rich men called up at all hours of the day and night, demanding special police to protect their homes; excited women throughout the city and later throughout the State and surrounding communities proceeded to interpret the apparition of every stranger as evidence of kidnappers and to bombard the police of a hundred towns and cities with frantic appeals. The absence of this obscure child had become a public catastrophe.

Developments in the investigation came not at all. The police, the reporters, and numberless private officers, who were attracted to the case by the possibility of achieving celebrity and rich reward, all bogged down precisely where they started. Willie McCormick had vanished within a hundred feet of his father's door. The night had simply swallowed him up, and all efforts failed to penetrate a step into the gloom.

Only two suggestive bits of information could be got from the McCormicks and the missing boy's friends. The father, being closely interrogated as to possible enemies, could recall only one person who might have had a grievance. This was a mechanic, who lived a few squares away, and with whom there had been a disagreement as to pay. But this man was at home and going steadily about his work; he was vouched for by neighbors and his employers, and he came out of a police grilling completely absolved.

Launcelot Tierney, the playmate for whom Willie McCormick had blown his whistle a minute or two before he vanished, supplied the information

that Willie had tormented an Italian laborer on the morning before the disappearance, and that this man had nursed his grudge until the afternoon, when the boys were returning home from school. Then, said the Tierney boy, this workman had lain in wait behind a pile of lumber and dashed out after Willie, as the children passed. Willie had run for safety and proved fleeter than his pursuer, who gave up the attempt after running a few rods. Investigation showed that none of the laborers employed at the indicated building was absent. However the Tierney boy was unable to identify the man he had accused, when the workmen were lined up for his inspection. A good deal was made of this circumstance.

The public police, however, always came back to their original attitude. Kidnappers were actuated by the hope of extorting money, they said. Since William McCormick was a poor man, there could have been no motive for the abduction of his son. Consequently it was almost certain that the boy had gone away.

Mr. McCormick replied that while he was now poor, he had formerly been well to do. He reasoned that the kidnapper might very well have been ignorant of his decline in fortune and taken the boy in the belief that his parent was still wealthy. Others joined the controversy by pointing out in the newspapers that abductions were sometimes motivated by revenge or spite on the part of persons quite unknown or unsuspected by the parents; that children were often stolen by irrational or demented men or women, and that there was at least some basis for faith in the abduction theory, but no evidence to support the idea of a runaway.

Meantime events had added their spice of immediate drama. A few nights after the disappearance of Willie McCormick, Doctor D. A. McLeod, a surgeon occupying the next house but one to the McCormick's, had found a masked man skulking about the rear of his property just after nightfall, and tried to grapple with the intruder. A week later, from a house two blocks away, another neighbor reported that he, too, had found the masked man prowling about his place and had followed him into the woods, where he had been lost. This informant said that the mysterious stranger was a negro. Detectives were posted in hiding throughout the district, but the visitant did not appear again.

Next two Gypsy girls visited a photographer in Washington, and one of them showed the camera man a slip of paper with some childish scrawl. Somehow this bit of writing came to be identified as that of one of Willie McCormick's sisters. It was said the scrap of paper must have been taken from the McCormick house. The two Gypsy children were seized and held in jail, while detectives hurried off to interrogate their elders and search through the Romany camps up and down the Atlantic seaboard. No trace of the missing boy was found, and the girls were quickly released.

Finally the expected note from the kidnapper reached William McCormick. It was scrawled awkwardly on a piece of nondescript paper by some illiterate person who was apparently trying to conceal his normal handwriting. It said that Willie was being held for ransom; that he was well; that he would be safe so long as no attempt was made to bring the police into the negotiations, and that disaster would follow if the father played false. The writer then demanded the absurdly small sum of two hundred dollars for the release of the boy and directed that the money be taken at night to the corner of Third Avenue and One Hundred and Thirty-fifth Street, and there placed in an old tin bucket which would be found inside an abandoned steam boiler. The missive bore the signature "Kid."

The police immediately denounced the letter as the work of some mental defective, but instructed the father to go to the rendezvous at the appointed time and deposit a bundle of paper which might look like the demanded sum in bank notes.

McCormick did as commanded. He found the corner of Third Avenue and One Hundred and Thirty-fifth Street to be a half-abandoned spot near the east bank of the Harlem, at its juncture with the East River. A low barroom, a disused manufacturing plant, and some rookeries of dubious tenantry ornamented the place, while coarsely dressed men, the dregs of the river quarter, lounged about and robbed the stranger of any gathered reassurance. The old boiler was there, standing in the center of open, flat ground that sloped down to the railroad tracks and the river under the Third Avenue bridge. Plainly the writer of the letter had chosen a likely spot, which might be kept under observation from a considerable distance and could not be surrounded or approached without the certain knowledge of a watcher posted in any one of a hundred windows commanding the view. McCormick deposited the package and went his way, while disguised

detectives lay in various vantages and watched the boiler for days. No one went near it, and the game was abandoned.

But, at the end of ten days, McCormick received a second letter from Kid, in which he was reproached for having enlisted the police; he was told that such crude tactics would not work, and he was ordered to place two thousand dollars in cash under a certain stone, which he was directed to find under the approach of the McComb's Dam bridge, a few rods from the mouth of Cromwell Creek. He was told that the amount of the ransom had been increased because of his association with the police, and the letter closed with the solemn warning that the demand must be met if McCormick hoped to see his son again. A postscript said that if the police appeared again the boy's ears would be thrown upon his father's porch.

Relatives, friends, and neighbors were at hand to furnish the demanded money, and the father was more than willing to deposit it according to the stipulation, but the police again intervened and had McCormick leave another dummy packet. Once more he saw, and the police should have noted, that the spot selected by the letter writer was most suited to the purpose. Once more it was an open area in the formidable shadow of a great bridge, freely observable from all sides and impossible to surround effectively.

No one was baited to the trap, but McCormick got a third letter from Kid, in which he was told that his silly tactics would avail him nothing; that his boy had been taken out to sea, and that he would not hear again until he reached England. He was told to blame his own folly if he never beheld his child alive.

It must be said in favor of the police point of view that these were not the only letters from supposed kidnappers which reached the distraught parents. Indeed, there was a steady accumulation of all sorts of missives of this type, most of them quite obviously the work of lunatics. These were easily distinguishable, however. An experienced officer ought to be able to choose between such vaporings of disjointed intelligences and letters which bore some evidence of reason, some mark of plausibility. The police who handled this case committed the common blunder of lumping them all together. They had determined that the boy was a runaway and were naturally inhospitable to contrary evidences.

But others were as firmly convinced on the other side. The father now became genuinely alarmed and feared that further activity by the police might indeed lead to the murder of the child. Accordingly Father Mullin withdrew his ten-thousand-dollar offer for the apprehension of the criminals, and Michael McCormick, the lost boy's uncle, moved swiftly to change the terms of his five-thousand-dollar reward. In seeking for a way to make an appeal directly to the abductors and assure them of their personal safety, he brought into the case at this point the redoubtable Pat Sheedy.

Sheedy had just achieved worldwide notoriety by recovering from the thieves' fence, Adam Worth, the famous Gainsborough painting of Elizabeth, Duchess of Devonshire, which had been stolen from Agnew's Art Rooms in London in 1876, and which had been hunted over half the earth for twenty-five years. This successful intermediacy between the police and the underworld gave the New York and Buffalo "honest gambler" a tremendous reputation for confidential dealing, and the McCormicks counted on Sheedy's trusted position among criminals to convince the kidnappers that they could deliver the boy, collect five thousand dollars, and be safe from arrest or betrayal. So Sheedy came forward, announced that he was prepared to pay over the money on the spot and without question, the moment the boy was delivered and identified.

The public, hysterical with sympathy and apprehension, disgusted by the police failures and thrilled by Sheedy's performance in the matter of the stolen painting, received the news of his intervention in the case with signs of thanksgiving. Willie McCormick's return was breathlessly expected, and many believed the feat as good as accomplished. But this time the task was beyond the powers of even the man who enjoyed the confidence of the foremost professional criminals of the day, counted the Moroccan freebooter and rebel, Raisuli, as an intimate, forced the celebrated international fence and generalissimo of thieves, Adam Worth, to leave London and follow him across the ocean after the lost Gainsborough, rescued Eddie Guerin, the burglar of the American Express office in Paris, from Devil's Island,^[10] and seemed able to compel the most abandoned lawbreakers to his wishes. Days and weeks passed, but Sheedy got no word and could find no trace.

^[10] Or so says one of the most persistent of underworld legends.

On the rain-drenched afternoon of May 10, John Garfield, bridge tender for the New York Central Railroad at Cromwell Creek, worked the levers and lifted the steel span to allow the passage of a steam lighter bound up the muddy estuary for a load of bricks. After he had lowered the platform again he observed that a large floating object had worked its way to the shore and threatened to get caught in the machinery which operated his bridge. He crawled out on the bulkhead with a boat hook, intending to dislodge it. At the extreme end he leaned over and bent down, prodding the object with his pole. The thing turned in the stream and swam into better view. It was the body of a boy.

Garfield drew back in surprise and horror, crawled back to the bridge, called to two boys and a man, who were angling near by, and soon put out with them in a rowboat. In five minutes the body had been brought to shore and tied. Before the end of half an hour it had been identified as that of Willie McCormick. While detectives had been seeking him thousands of miles away, and European port authorities had been watching the in-coming ships for the lad or his abductors, he had lain dead in the ooze of the creek bottom, three squares from his home. The churning propeller of the steam lighter had brought the body to the surface.

A coroner's autopsy revealed that the body had been in the water for a period which could not be fixed with any degree of precision. It might have been two weeks, but the coroner felt unable to state that the body had not been in the creek for six weeks, the full length of time since the disappearance. There was no way to make sure. Again, it was not possible to determine if the boy had been choked to death before being cast into the waters. There was no skull fracture, no breakage of bones, and no discernible wound. There was also no evidence of poison—no abnormal condition of the lungs. The official physicians were inclined to believe that death had been caused by drowning, but they would not make a definite declaration.

The police dismissed the case with the assertion that they had been vindicated. It was clear that the boy had played truant from church, wandered away, fallen into the river, probably on the night of his disappearance, and lain under the water for six weeks.

But to this conclusion the McCormicks and many others, among them several distinguished private officers, took exception, and it must be said that the police explanation leaves some important questions suspended. Why did the boy turn and go three blocks to the south of his home, when he had last been seen hurrying northward toward church? What could have led this timid and dark-frightened boy to go voluntarily down to the sinister and gloomy river bank on the edge of night? How did it happen that the Kid directed William McCormick to deposit the two-thousand-dollar ransom within a few score yards of the spot where the body was recovered? Who was the mysterious masked man?

We shall never know, and neither shall we be able to answer whether accident or foul design lurks in the shadow of this mystery.

XI

A NUN IN VIVISEPULTURE

Whoever is familiar with Central European popular literature has tucked away in his memory some part or parcel of the story of Barbara Ubrik. The romance of her life and parentage has furnished material for countless novels, plays, short stories, tales and poems of the imaginative kind. Bits of her history appear in more serious literature, in religious and social polemics, even in the memoirs of personages. And more than one of the tragic incidents of opera may be, if diligence and intuition are not lacking, traced back to this forgotten Polish woman and her exorbitant adventures. Time and creative interpretation have fashioned her case into one of the classic legends of disappearance.

In the Polish insurrection of 1830-31, a certain Alexander Ubrik played a part sufficiently noteworthy to get himself exiled to Siberia for life, leaving behind him a wife and four young daughters, the third of whom, Barbara, was the chief figure of the subsequent affair. But the Ubrik family had already known the feel of the romantic fabric and there had already been a remarkable disappearance mystery involving a relative no more remote than the mother of Barbara and wife of the banished Alexander. It is with this part of the family history that much of the literary offspring deals.

About the year 1800, according to the account of the celebrated Polish detective Masilewski, extensively quoted by his American friend and compeer, the late George S. McWatters of the United States Secret Service, the first of the series of astonishing scenes involving the Ubrik family was played in Warsaw. There was then resident in the Polish capital one Jaromir Ubrik, the profligate son of an old and noble Polish house who had wasted his substance in gambling and roistering. Ubrik, though fallen into disrepute among his former friends, was still intimate with a few of the aristocratic families, among them that of Count Michael Satorin.

The Countess Satorin had borne her lord several daughters but no son to succeed to the title. When, in the year mentioned, Mme. Satorin yielded still another daughter, her husband being then absent in Russia, she sought to

forestall the wrath and disappointment of her spouse by substituting a male child. It happened that the wife of Jaromir Ubrik had borne a son only two days earlier and died in childbirth. For the consideration of ten thousand florins, Ubrik consented to exchange children with the countess, who said she was additionally persuaded to the arrangement by the fact that the Ubrik blood was as good as her own and the boy thus fit to wear a title. The little Ubrik boy was, accordingly, delivered to the countess and her little daughter turned over to Jaromir Ubrik, nestled in a down lined basket with a fine gold chain and cross about her neck.

The elements of a thousand plots will be apparent even at this early stage of the story. But far more fabulous-seeming things followed immediately.

Ubrik took the basket containing the little girl and started home. On the way, following his unhappy weakness, he entered a tavern and began to spend some of the money he had been paid. He got drunk, staggered home without the little girl in her basket and returned the following day to find that a nameless Jew had claimed this strange parcel and disappeared.

Not long afterwards, it seems, Countess Satorin, plagued by her natural feelings, came to see her daughter and had to be told the story. The outraged mother finally exacted an oath that he devote his worthless life to the quest for the stolen child. Ubrik began his work, apparently sobered by the death of his wife, the theft of the little girl and the charge her mother had laid upon him. After several years he rose in the ranks of the Russian intelligence service and was made captain of the Warsaw police.

About this time the keeper of the inn where Ubrik had lost the little girl was seized with a mortal disease and called the police captain to his bedside, confessing that he had turned the little girl over to a Jewish adventurer named Aaron Koenigsberger, whose address in Germany the dying man supplied. Captain Ubrik proceeded to Germany, confronted Koenigsberger with the confession of his accomplice and dragged the abductor back to Poland to face the courts. Koenigsberger, to avoid punishment, assisted in the search for the little girl and guided Captain Ubrik to Kiev, where he had sold the child to another Jew named Gerson. The Gersons appeared to be respectable people, who had taken the little girl to console them in their own childlessness. They deplored that she had been stolen several years earlier by a band of Gypsies. Captain Ubrik, at length satisfied that this

story was true, set out on an Odyssean journey in quest of the child. For more than eleven years he followed Gypsy bands through all parts of western and southern Russia and into Austria and Germany. At last, in a village not an hour's journey from Warsaw, he discovered the missing daughter of the Countess Satorin and returned her to her mother, as a grown woman who believed herself to be a Jewess and could now at last explain why her supposed people had always said she looked like a "Goy."

The woman recovered as Judith Gerson seems to have been satisfactorily documented as the missing daughter of the countess. At any rate, she was taken into the Satorin family and christened Elka Satorin. Her father had meantime died, leaving the bulk of his fortune and the title to his supposed son, Alexander. Elka Satorin, however, inherited her mother's property and, a few years later, married the boy who had been substituted for her in the cradle.

This was the strange match from which Barbara Ubrik was spawned into a life that was to be darkened with more sinister adventures. The year of her birth is given as 1828, so that she was a tot of three when her father was dragged away to the marshes and mines of Russia in Asia.

I must confess that I set down so fantastic a tale only after hesitation and skeptical misgiving. It, and what is to follow, reads like a piece of motion picture fustian, an old wives' tale. The meter of reasonableness and probability is not there. The whole yarn is too crudely colored. It is sensation; it is melodrama. But it seems also to be the truth. My sources are old books by reputable chroniclers, containing long quotations from the story of Masilewski, the detective, from the testimony of Wolcech Zarski, the lover who appeared in Barbara Ubrik's life at a disastrous moment, from the proceedings of an ecclesiastical trial. Indeed, the whole thing seems to be a matter of court record in Warsaw and in Cracow, the old Polish capital. This being so, we must conclude that fiction has been once more detected in the act of going to life even for its ultimate extravagances.

The years following the great revolt of 1831 were full of torment for Poland. Nicholas I, weary of what he termed the obstinacy of the people, began a series of the most dire repressions, including the closing of the Polish universities, the revocation of the constitution, the persecution of the Roman priests and a general effort to abolish the Polish language and

national culture. The old nobility, made up of devout Roman Catholics and chauvinistic patriots, was especially sought out for the reactionary discipline of the czar, and a family like that of Barbara Ubrik, whose chief had been sent to Siberia for treason, was naturally among the worst afflicted.

The attempt from St. Petersburg to uproot the church of Rome was the cause of an intense devotionism among the Poles, with the result that many men and women of distinguished families gave themselves up to the religious life and entered the monasteries and convents. This passion touched the Ubriks as well as others and Barbara, naturally of a passionate and enthusiastic nature, decided as a girl that she would retire from the world and devote herself to her forbidden faith. Her mother, Elka Satorin-Ubrik, once a ward of the Jewish family in Kiev and later the prisoner of the Gypsies, strongly opposed such a course, but in 1844, when she was 16 years old, the girl could no longer be restrained. She presented herself to the Carmelite cloister of St. Theresa in Warsaw in the spring of that year and was admitted to the novitiate.

From the beginning, however, the spirited young noblewoman seems to have been most ill-adapted to the stern regulations hedging life in a monastery of the unshod cenobite Carmelites. She had brought into the austere atmosphere of the nunnery something that has played havoc with rules and good intentions under far happier environments than that of the cloister; namely, young beauty. The older and less favored nuns saw it first with misgiving and soon with envy, a sin which seems not altogether foreign to the holiest places. What was more directly in line with evil consequences, Father Gratian, the still youthful confessor of the cloister, also saw and appraised the charms of the youthful sister and was quite humanly moved.

The official story is silent as to details but it appears that in 1846 Sister Jovita, as Barbara Ubrik had been named in the convent, bore a child. Very naturally, she was called before the abbess, who appears in the accounts as Zitta, confronted with her sin and sentenced to the usual and doubtless severe punishments. In the progress of her chastisement she seems to have declared that Father Gratian was the guilty man.

This was the beginning of the young man's troubles. Detective Masilewski, in his report on the investigation of the case, says that the motivation of the nun's subsequent mistreatment was complex. Father Gratian naturally wanted to defend himself from the serious charge. The abbess, Zitta, was quite as anxious both to discipline the nun and to prevent the airing of a scandal, especially in times of suspicion and persecution, when the imperial attitude toward the holy orders was far from friendly and any pretext might have been seized for the closing of a nunnery and the expropriation of church property. Masilewski says, also, that Sister Jovita possessed a considerable property which was to belong to the cloister and that there was, thus, a further material motive.

But, whatever else may have actuated either the priest or the abbess, Sister Jovita aggravated matters by her own conduct. The severity of her punishment led her to desire liberty and she sought to renounce her vows and return to her family. Such a course would probably have been followed by a public repetition of the charges made by the young nun, and every effort was accordingly made to prevent her from leaving the order. She was locked into her cell, loaded with penances and almost unbelievably severe punishments and prevented from communicating with her mother and sisters.

Not long afterwards love again intruded itself into the story of Sister Jovita and further complicated the situation. This was in the last months of 1847. It appears that a young lay brother whose worldly name was Wolcech Zarski happened about this time to meet the beautiful young nun, while occupied at the convent with some official duties, and straightway fell in love with her. She told him of her experiences and sufferings and he, a spirited young man and not yet a monk, immediately laid plans to elope. Owing to the stringent discipline and the careful watch kept over the offending sister, this departure was not quickly or easily accomplished. Finally, however, on the night of May 25th, 1848, Zarski managed to pull his beloved to the top of the convent wall by means of a rope. In trying to descend outside, she fell and was injured, with the result that flight was impeded.

Zarski seems, however, to have had the strength to carry his precious burden to the nearest inn. Here friends and human nature failed him. The friends did not appear with a coach and change of feminine clothing, as

they had promised, and the superstitious dread of the innkeeper's wife led her to send immediate word to the convent. Before he could move from the neighborhood, Zarski was overcome by a bevy of stout friars and Sister Jovita carried back to the nunnery.

The monasteries and nunneries of Poland had still their own judicial jurisdiction, so Zarski could not enter St. Theresa's by legal means. He tried again and again to communicate with his beloved by stealth, but the Abbess Zitta was now fully awake to the danger and every effort was defeated. The young lover tried one measure after another, appealed to ecclesiastical authorities, consulted lawyers, besieged officials. At length he was told that the object of all this devotion was no longer in St. Theresa's but had been removed to another Carmelite seat, the name of which was, of course, refused.

Here political events intervened. Nicholas I had grown slowly but surely relentless in his attitude toward the Roman clergy in Poland, whom he considered to be the chief fomenters and supporters of the continued Polish resistance. Nicholas simply closed the monasteries and cloisters and drove the clergy out of Poland. It was the kind of drastic step always taken in the past in response to religious interference in political matters.

Now the unfortunate Zarski was at his dark hour. The nuns were scattered into foreign lands where he, as a foreigner, could have little chance of either legal or official aid, where he knew nothing of the ways, was acquainted with no one, could count on no encouragement. Worse yet, he was not rich. He had to stop for months and even years at a time and earn more money with which to press his quest. His tenacity seems to have been heroic; his faith tragic.

One evening in the summer of 1868, twenty years after Sister Jovita had last been seen, Detective Masilewski was driving homeward toward Warsaw, after a day's hunt, when an old peasant stepped before the horse, doffed his hat and asked:

"Are you the secret detective, Mr. Masilewski?"

On being answered affirmatively he handed the investigator a letter, explaining that an unknown man had handed it to him with a tip to pay for its delivery. The note said simply:

“Dear Sir: In the convent of St. Mary of the Carmelites at Cracow, a nun by the name of Jovita, her real name being Barbara Ubrik, has been held a captive for twenty years, which imprisonment has made her a lunatic. I do not care to mention my name but vouch for the truth of my assertion. Seek and you will find.

“Your correspondent.”

Masilewski drove on in silence, puzzled and not a little incredulous. True, he had heard of this nun and her disappearance, but she had vanished long ago and surely death had sealed the lid of this mystery, as of others. No doubt this was another of those romantic reappearances of the famous missing. Still—what if there were truth in it. But no, it must be a figment, else why had the informant hidden himself? It was an attempt to make a fool of an honest detective.

So Masilewski hesitated and waited, but the remote possibility of something grotesque and extraordinary plagued him and drove him at last to action. Even when he had determined to move, however, he knew that he must act with caution. If he were to go to the bishop of the diocese, for instance, and ask for permission to search the nunnery of St. Mary’s, the very possible result might be the transfer of the unfortunate nun to some new hiding place and the infliction of worse penalties and tortures.

If he appealed to the Austrian civil authorities (Austria having annexed the province of Cracow in 1846), he might enter the convent and find himself the victim of a hoax, which is, after all, the ultimate humiliation for a detective. There was no possible course except cautious investigation.

So Masilewski went to work. Carefully and slowly he traced back the stories of Barbara Ubrik’s mother, the exchanged babies, the theft by the old Jew and the captivity with the Gypsies. He discovered the record of Barbara’s parents’ marriage, got the young nun’s birth certificate, learned about her admittance to the convent, the part played in her life by Father Gratian and the early chastisement. How he did these things one needs hardly to recount, but unrelenting care and watchful judgment were necessary. He must never let the enemies of the nun know that a detective was at work. All he did had to be handled through intermediaries. Probably

it would even be a thankless job, but it was an enigma, a temptation. He went ahead.

Finally Masilewski stumbled upon the fact that the convent of St. Mary's contained a celebrated ecclesiastical library. The inspiration came to him at once. He or someone else must play the part of a learned student of religious and local ecclesiastical matters and get permission to use the library in St. Mary's. After some seeking, Masilewski came upon a renegade theological student and sent this man first to the bishop and then to the Abbess Zitta. Since the head of the diocese apparently approved the student, he was permitted to enter and use the rare old books and records.

Under instructions from Masilewski, the man worked with caution. The detective invented a subject with which the man busied himself for days before a chance question, skillfully introduced into his research problem, called for an inspection of the old church law records of the convent. There was a moment of suspense and the investigator feared that he had been suspected or that the abbess would rule against any such liberty. But no suspicion had been aroused and the abbess decided that so holy and studious a young man might well be permitted to see the secret papers.

Once the records were in his hands, the mock student turned immediately to the date of the nun's escape and found under date of June 3, 1848, this remarkable record:

“Barbara Ubrik, known under the name of Jovita, is accused of immoral actions, continued disturbances in the convent, manifold irregularities and trespasses of the rules of the convent, even of theft and cunningly plotted crime; she has refused the mercy of baptism and given her soul to the devil, for which cause she was unworthy of the holy Lord's Supper, and by this act she has calumniated God; she has clandestinely broken the vows of purity, in so far that she held a love correspondence with the novice, Zarski, and allowed herself to elope with him; at last she has offended against the law of obedience of poverty and seclusion, and on the 25th of May, 1848, she has accomplished an escape from the convent.”

Trial was held before the abbess and judgment was thus rendered:

“The criminal has to do three days’ expiation of sins in the church, afterwards she will be lashed by all the sisters of the order and be forfeited of her clerical dignity; she herself will be considered as dead and her name will be taken from the list of the order. At last, she has forfeited the right to the holy Mass and the Lord’s Supper, and is condemned to perpetual imprisonment.”

The reader is warned not to take this as a sample of monastic life or justice as it might be discovered to-day or even as it generally existed then. Sister Jovita had simply got herself involved in one of those sad tangles of scandal which had to be kept hid at any and every price. She was the victim not of monasticism or of any form of religion but of a political situation and of her relations with other men and women, some of whom have been hard and evil from the beginning of the world, regardless of vows or trust.

In one particular, however, her treatment was a definite result of certain religious beliefs then prevalent in all strict churches. She was accused of being devil ridden or possessed by the fiend and many of her cries of anguish, screams of madness and acts of defiance were attributed to such a possession. It was then customary in certain parts of Europe to drive the devil out by means of torture. This was in no sense a belief peculiar to Catholics. Martin Luther held it, and so did John Wesley, as any historian must tell you. Therefore many of Jovita’s sufferings were the result of beliefs general in those days except among the exceptionally enlightened.

With this record copied and safely in his hand, Masilewski moved immediately and directly. One morning he and a squad of Gallician gendarmes appeared before the convent of St. Mary’s and demanded admittance in the name of the emperor. The abbess, certain what was about to happen, tried to temporize, but Masilewski entered, arrested the abbess with an imperial warrant and commanded a search of the place. The mother superior, seeing that there was nothing to be gained by resistance led the company down to the lowest cellars of the building and turned over to Masilewski a key to a damp cell.

The detective opened the door, felt rats run across his shoes as he stepped inside and found, crouched in a corner on a pile of wet straw, the shrunken form of what had been the beautiful Barbara Ubrik. She was brought forth

to the light of day, to see the sheen upon the autumn trees once more and the clouds sailing in the skies. Alas, she was no Bonnivard. Life had lost its colors and symmetries for her. She had long been hopelessly mad.

There is still a detail of this famous case of mystery and detection to be told. Father Gratian had disappeared when Russia drove out the clergy. Masilewski was determined to complete his work and bring the malefactor back to answer for his crimes. After the ruin of Barbara Ubrik had been lodged in an asylum, Masilewski set out to find the priest. After seven months of wandering through Austria, Prussia and Poland, the detective was rewarded with the information that Father Gratian had gone to Hamburg. He went immediately to the great German seaboard town, searched there for months and found that the man he sought had gone to London years before.

The quest began anew in the British capital. It was like seeking a flea in a hayloft, but success came at last. Masilewski was passing through one of the obscure streets when he noticed a man with the peculiar gait and bearing of priests, which seems to mark them apart to the expert eye, no matter what their physique or dress, going into a bookstall where foreign books were sold.

The detective, who was, of course, totally unknown to Father Gratian, followed into the shop and found to his delight that the priestly person was the owner of the shop. Many of the books dealt in were German or Polish. Masilewski rummaged for a long time, made a few purchases and ingratiated himself with the bibliophile. When he left he went directly to the first book expert he could find, stuffed himself with the terms and general knowledge of the book dealer and soon returned to the little shop.

On his second visit he let drop a few Polish terms which made the shopkeeper prick up his ears. As Masilewski learned more and more of the new rôle he was to play he gradually revealed that he was himself a great continental expert. Later he informed the shopkeeper of a huge sale of famous libraries that was about to be held in Hamburg and invited the London dealer to accompany him. The priestly man was too much interested and beguiled to refuse a man who could speak his own language and loved his own subject.

On the trip to Hamburg the London bookseller told, after skillful questioning, that he had once been a priest, that he had lived in Warsaw, that a love affair had driven him from the church—in short, that he was Father Gratian.

Masilewski waited until he got his man safely on the continent and then, knowing the extradition agreements in force between Austria and the various German states, placed his man under arrest, not without a feeling of pain and regret. Father Gratian, like one relieved of a strange weight, immediately accompanied Masilewski to Cracow and faced his accusers without denying the facts. He could offer no extenuation save that nature had not ordained him to be a priest and “the devil had been too strong for his weak flesh.” He confessed his part in the whole transaction and even added that he had given the unfortunate nun drugs to bereave her of her reason. He made every attempt to shield the abbess, but she, too, face to face with the authority of the empire and the church, refused to deny or extenuate.

For once the courts were more merciful than their victims. Mother Zitta was sentenced to expulsion from the order, imprisonment for five years and exile from the empire. Father Gratian was likewise expelled from the church, which he had long deserted, put to prison for ten years and exiled.

XII

THE RETURN OF JIMMIE GLASS

In the early spring of 1915, Charles L. Glass, long employed as an auditor by the Erie Railroad and living in Jersey City, was grievously ill. In May, when he had recovered to the point of convalescence, it was decided he should go to the country to recuperate. For several years he and his family had been spending their vacations in the little hamlet of Greeley, five miles from Lackawaxen, Pennsylvania, in the pleasant hill country. So Glass bundled his wife and three small children to a train and shortly arrived at Greeley and the Frazer farm, where he had arranged for rooms and board. This on May eleventh.

The Frazer farmhouse was one of those country establishments which take boarders for the season. Before it ran the main road leading to the larger towns along the line. Beside and behind it were fields, and beyond the road began the tangle of wild woods and hilly ground rising up to the wrinkle of mountains.

Breakfast done, the children were dressed for play, and Mrs. Glass started for the post office, about two hundred yards up the road, to mail some post cards to her parents, noting the safe arrival of the family. She called to her eldest child, Jimmie, but he shook his head and went out into the field beside the house, interested in a hired man who was plowing in the far corner. The elder girl went with her up the road. The baby was romping indoors. Glass himself sat on the porch watching his son. The little boy, just past four years old, was running about in the young green of the field.

Charles Glass got up from the porch and went inside for a glass of water. He stayed there a minute or two. When he came out he saw his wife and little girl coming back down the road from the post office. They had been gone from the house not more than ten minutes.

Mrs. Glass came up to the porch, took one look about, and asked: "Where's Jimmie?"

Glass looked out into the field, saw its vacancy, and surmised: “Maybe he went up the road after you.”

The road was scanned and then the field. Then the farm hand was called and questioned. He had seen the youngster crawling through a break in the fence a few minutes before, but had paid no attention.

One of the strangest of all hunts for the strangely missing of recent history had begun. This hunt, which extended over years and covered a continent, taking advantage of several modern inventions never before employed in the quest of a human being, started off with alarmed calls on neighbors and visits to the more adjacent woods, gullies, and thickets. In the course of the evening, however, the organized quest began. It is interesting to note some of the confusion that overcame the people most concerned and the little town of a hundred souls. The suspicion of abduction was not slow in forming, and the question as to who might have done the deed immediately followed. Mrs. Glass was sure that no vehicle of any sort had passed on the road going to or coming from the post office. William Losky, the farm hand who was plowing in the field, and Fred Lindloff, who was working on the road, felt sure they had seen a one-seated motor car pass down the road, occupied by one man and one woman who had a plush lap robe pulled up about their knees to protect them from the May breezes.



~~ JIMMIE GLASS ~~

Going a little farther, to the village of Bohemia, three miles down the road, a Mrs. Quick, whose house stands all of seven hundred feet back, saw a one-seated car stop, heard a child screaming, and thought she might be of assistance to some sick travelers. But the people in the car saw her approaching and at once drove off.

Still farther on, at the town of Rowlands, a Mrs. Konwickie noted a one-seated motor car with a sobbing child, a woman and two men inside, the child crouching on the floor against the woman's knees and being covered with the same black plush lap robe.

All these testimonies came to naught, as we shall see, and I cite them only to show how unreliable is the human mind and how quickly panic and forensic imagination get hold of people and cause them to see the unseen.

On the afternoon of the twelfth a bloodhound was brought from near by—just what kind of bloodhound the record does not show. The dog was given a scent of the child's clothing. It trailed across the field, out through the

break in the fence to the far side of the road, passed a little distance into the woods, and there stopped still, whined, and quit.

The following morning word of the disappearance or kidnapping had been flashed to surrounding towns and many came to aid in the search. A committee was formed of forty men familiar with the surrounding terrain. These men labored all the thirteenth and all the fourteenth. On the fifteenth of May a much larger committee undertook the work and the surrounding mountains were searched foot after foot. This work took several days. Then a cordon was thrown all about, whose members worked slowly inward, covering all the ground as they came to a center at Greeley. This maneuver also failed to yield hail or trail of the child. At last the weary and foot-sore hunters gave it up.

The search was now begun in a more methodical way. The State constabulary took charge of a systematic review of the ground. Ponds were drained, culverts blown up, wells cleaned out, the dead leaves of the preceding autumn raked out of hollows or from the depths of quarries—all in vain.

Meantime, the mayor and director of public safety in Jersey City, appealed to by the distracted parents, began the official quest. Descriptions of the boy were broadcast. He was four years old, blond, with blue eyes, had good teeth, a double crown or cowlick in his hair, weighed about thirty-five pounds, and wore new shoes, tan overalls with a pink trimming, but no hat. Every town and hamlet in the United States, Canada, and the West Indies was sooner or later placarded with the picture and description of the boy. The film distributors were prevailed upon to assist in the search and, for the first notable occasion, at least, the movies were used to search for a missing person, more than ten thousand theaters having shown Jimmie Glass' lineaments and flashed his description.

A few years later the radio broadcasting stations spread through the air the story of his disappearance and the particulars of his description.

To understand the drama of the hunt for Jimmie Glass, one must, however, begin with events closely following his vanishment and try to trace their succession through more than eight years. When once the idea of kidnapping had been formed the neighbors whose interest in the affair was partly sympathetic but more morbid, sat about shaking their heads and

sagely talking of Charlie Ross. No doubt there would be a demand for ransom in a few days. When the few days had passed without the receipt of any request for money, the wiseacres shook their heads more gravely and opined that the kidnappers had taken the boy to some safe and distant place, whence word would be slow in coming. But time gave the soft quietus to all these speculations. Except for an obvious extortion letter received the following year, no ransom demand ever came to the Glasses or any one connected with the case.

Therefore, since neither the living boy nor his dead body could be found, and since there seemed to be no sustenance for the idea of kidnapping for ransom, the theorists were forced into another position, one full of the ripe color of centuries.

On the day Jimmie Glass had vanished, a traveling carnival show had been at Lackawaxen, and with it had toured a band of Gypsy fortune tellers. Later on, Mr. John Bentley, the director of public safety in Jersey City, and Captain Rooney of the Jersey City police, found that these Gypsies, two or three men and one woman, known sometimes as Cruze and sometimes as Costello, had suddenly left the carnival show. It could be traced, but not they. But the mere fact that there had been Gypsies in the neighborhood was enough to give fresh life to the old fable. Gypsies stole children to bring luck to the tribe. Ergo, they had taken Jimmie Glass, and the way to find him was to run these nomads to earth and force them to give up the child.

Besides, a woman promptly appeared who told Captain Rooney that she had seen a swart man and woman in an automobile on the day of the kidnapping, not far from Greeley, struggling with a fair-haired boy.

Now the Gypsy baiting was on. Captain Rooney and many other officers engaged in a systematic investigation of Gypsy camps wherever they were found, following the nomads south in the winter and north again with the sun. Again and again fair-haired children were found about the smoky fires of these mysterious caravaners, with the result that Mrs. Glass, now fairly set out upon her travels in quest for her son, visited one tribe after another, but without finding the much-sought Jimmie.

The discovery of blond or blondish children in Tzigane encampments always stirred the finders and the public to the same emotions, to the indignant belief that such children must have been stolen. All this is part of

the befuddlement concerning the Romany people and the American Gypsies in especial. No one knows just what the original Gypsies were or whence they came. The only hint is contained in the fact that their language contains strong Aryan and Sanscrit connections and suggestions. They appeared in Eastern Europe, probably in the thirteenth century and in France somewhat later, being there mistaken for Egyptians, whence the name Gypsy. The original stocks were certainly dark skinned, black haired, and black or brown eyed. But several Gypsy clans appeared in England all of five hundred years ago and there soon began to mix and marry with other vagabonds not of Tzigane blood. In the course of the generations the English Gypsy came to be anything but a swart Asiatic. Tall, straight, dark men, with piercing eyes and the more or less typical Gypsy facial characteristics appeared among them, but these usually occur in cases where there has been marriage with strains from the Continent, from Hungary and Roumania. For instance, Richard Burton, the great traveler and anthropologist, was half Gypsy, and one of the first scholars of the last century.

The Gypsies in America to-day are mostly of English origin, though there are a good many from Eastern Europe. Among both kinds there is frequent intermarriage with American girls from the mountain countries of the southern and central regions. With these Gypsies pure blond children are of frequent occurrence and one often sees the charming contradiction of light hair and dark, emotive eyes.

Now I do not say that Gypsies do not steal children. Nomads have very little sense of the property rights of others and may take anything, animal, mineral or vegetable, that strikes their fancy. But so much for the facts on which rests what must be termed a popular superstition.

Nevertheless, these light children in the Gypsy camps kept the police and Mrs. Glass herself constantly on the move. The Cruze party gave them especial trouble and contributed one of the high dramatic moments of the eight years of search and suspense.

When Captain Rooney found that the Gypsy woman called Rose Cruze had been near Greeley on the day the child vanished, he set out to trace her down with her male companions. The Gypsies were moving south at the time, separating sometimes and meeting once more, a most puzzling matter

to one who does not understand the motives and habits of nomads. Rose Cruze and the blond boy she was supposed to have with her kept just a little ahead of the authorities. She crossed into Mexico and continued southward with her band, having meantime married Lister Costello, the head of another clan. Later she was heard of in Venezuela, then in Brazil.

One morning in the summer of 1922, a cablegram was brought to Director Bentley in Jersey City. It came from Porto Rico, was signed with the mysterious name Ismael Calderon, and said that Jimmy Glass or a boy answering his description was in the possession of Gypsies encamped near the town of Aguadilla. The cablegram also gave the information that the men were Nicholas Cruze and Miguel, or Ristel, Costello, and the woman was Costello's wife.

Mr. Bentley acted at once, but the Porto Rican authorities, probably a good deal more skeptical about Gypsy stories than are Americans, questioned whether the thing was not a canard and moved cautiously. By the time they finally got to Aguadilla, spurred too late by the American officials on the island, the band had moved on into the mountains.

Ismael Calderon turned out to be a young man of no special standing, and he was severely questioned. But this time there was no foolery. He stuck to his story very closely, produced witnesses to substantiate practically everything he said, and firmly established the fact that among the Gypsies were the much-sought Costello-Cruze family.

The pursuit began at once. It failed. The report went out that the hunted nomads had crossed to Cuba. In Jersey City, Captain Rooney made ready to sail. Further reports came from Porto Rico which caused him to delay a little. Then came fresh news that set him to packing his bags. He was almost ready to embark when the thing dropped with sudden and sad deflation. The Costello-Cruzes had been found. The boy was not Jimmie Glass.

This pricking of a hope bubble strikes the keynote of the eight years of quest. Ever and again, not ten times but ten hundred, came reports that Jimmy Glass had been found. Many of them came from irresponsible enthusiasts and emotional sufferers. Others were honest but mistaken. A few were cruel hoaxes, like that of the marked egg.

One morning an egg was found in a Jersey City grocery store with the following scrawled on the shell:

“Help. James Glass held captive in Richmond, Va.”

The police chased themselves in excited circles. One of them was off to Richmond at once. The eggs were carefully traced back to the nests of their origin. It was found that they came from a place much nearer than Richmond, and that the inscription was the work of a fifteen-year-old boy.

Long before the Gypsy excitement had been abated by the final running down of the much-sought band, another form of thrill had played its fullest ravages with the unhappy parents and given the public its crooked satisfactions. The constant advertising for the boy, the showing of his picture on the screens and the repeated newspaper summations of the strange case, all had the effect of putting idle brains and fevered imaginations to work. From almost every part of the country came reports of missing children who looked as though they might be Jimmie Glass.

The distracted mother, suffering like any other woman in a similar predicament from the idea that her child could not fail to be restored, traveled from one part of the country to the other under the lash of these reports and the spur of undying hope. I believe the newspapers have estimated that she traveled more than forty thousand miles in all, seeking what she never found.

As happens in many excitements of this kind, the hunt for James Glass resulted in the finding of many other strayed or stolen children, from San Diego to Eastport. In one case a pretty child was found in the possession of a yeggman and his moll. They were able to show that the child had been left with them, and they readily gave it up to the authorities for lodgment in an institution. But, alas, none of these was Jimmie Glass.

The affair of the one demand for money came near ending in a tragedy. The blackmail note demanded that five thousand dollars be placed in a milk bottle near a shoe-shining stand in West Hoboken. The Glasses filled the milk bottle with stage money and placed it at the agreed spot, after the police had taken up watch near by. The bottle stayed where it had been placed for hours. Finally the proprietor of the stand saw the thing. His curiosity got the better of him; he broke the bottle, and was promptly

pounced upon and taken to police headquarters, protesting that he did not mean to steal anything. It developed that this honest workman knew nothing about the whole affair. The real extortioners had, of course, been much too alert for the police.

One other piece of dramatic failure must be recited before the end. The quest for Jimmy Glass was at its height when news came from the little town of Norman, Oklahoma, that the boy had been left there in a shoe store. The Glasses, not wishing to make the long trip in vain, asked that photographs be sent, and they were received at the end of the week. What they thought of the matter is attested by the fact that they caught the first train West, alighted in Oklahoma City, and motored to Norman.

Their coming had been heralded in advance, and the town had suspended business and hung the streets and houses with flags in their honor.

Mrs. Glass and her husband were taken immediately to one of the houses of the town, where the child was being kept, and ushered into the parlor, while a large crowd gathered on the lawn or stood out in the streets, giving vent to its emotion by repeated cheers.

Mr. and Mrs. Glass being seated, a little blond boy was brought in. Mrs. Glass saw her son in the flesh and held out her arms. The child rushed to her and was showered with kisses. Asked its name, the child promptly responded: "Jimmy Glass." The mother, choking with sobs, clasped the little fellow closely to her. He struggled, and she released him. He ran to sit on Mr. Glass' lap.

"It was then," said Mrs. Glass afterward, "that I was convinced. Surely this boy was Mr. Glass' son. He had his every feature. For the time there was no doubt in either of our minds. We were too happy for words."

But then the examination of the child began and the discrepancies appeared. The child was Jimmie's size and age. His hair and eyes were of the same color and the facial characteristics were remarkably alike. This child even had the mole on the ear that was one of Jimmie's peculiar marks. But the toes were not those of Mr. Glass' son; there was an old scar on one foot that was unlike anything that had disfigured Jimmie, and there were other slight differences.

Even so, it was more than two hours before Mrs. Glass could make up her mind, and the crowd stood outside crying for news and being told to wait, that the child was still being examined. Finally the negative word was given, and the disappointed townsmen went sorrowfully away. Even then the Glasses stayed two days longer in the town, eager to find other evidence that might yet change their minds.

A few weeks afterward the true mother of the child was found. She confessed that her husband had abandoned and would not support her, that she had been unable to feed and rear the little boy properly, and that in a desperate situation she had left the boy in the shoe store, hoping that some one would adopt him. The little boy had learned to say he was Jimmie Glass through the overenthusiasm of the storekeeper and other local emotionals.

So the years went by in turmoil for the poor nervous man who had gone to the country to recover and been struck with this fatality, and for the sorrowing mother who would not resign her hope. The Glasses seemed about to be engulfed in the slow quagmire of doubt and grief that took in the Rosses years before.

One morning on the first days of December of 1923, Otto Winckler, of Lackawaxen, went hunting rabbits not far from Greeley, where Jimmie Glass had disappeared. There had been a very dry autumn and the marshy ground about two miles from the Frazer farmhouse, ordinarily not to be crossed afoot, was caked and firm. A light snow had powdered the accumulations of brown leaves, enough to hold the rabbit footprints for a few hours till the sun might heat and melt it away.

Over this unvisited ground Winckler strode, hunter fashion, his shotgun ready in his hands, his eyes fixed ahead, covering the ground for some sudden flurry of a furred body. His foot kicked what looked like a round stone. It was light and rolled away. He stepped after it; picked it up. A child's skull! Instantly the man's memory fled back over the eight and one half years to the hunt for Jimmie Glass in which he, too, had taken part. Could this be—— He did not stop to ponder much, but looked about. Very near the spot from which he had kicked the skull were a pair of child's shoes. He picked them up carefully and found them to contain the foot bones. The rest of the skeleton was missing, carried away in those long seasons by beasts and birds, no doubt.

Winckler immediately went back to Lackawaxen and telegraphed to Charles Glass. The father responded at once and went over the ground with the hunter and with Captain Rooney. They found, judging from the relative positions of the shoes and the skull, that the little boy must have lain down on his side and wakened no more.

Little was found in addition to the shoes and the skull, except a few bone buttons, the metal clasps from a child's garters and such like. The skull and shoes furnished the evidence needed. The former, examined by experts, revealed the double crown which had caused the upstanding of the missing boy's back hair. The shoes, washed free of the encasing mud, showed the maker's name still sharply cut into the instep sole. All the facts fitted. Only a new pair of shoes would have retained the mark so remarkably, and Jimmie had worn a brand new pair the morning he strayed out.

Charles Glass was satisfied that his son had wandered away that seductive May morning, gone on and on, as children sometimes do, got into the boggy ground and been unable to get out. Exhaustion had overtaken him, and he had lain down and never risen. Perhaps, again, this place had been the edge of a little pool in the spring of 1915, and Jimmie, venturing too close, had fallen in and been drowned, only to have his bones cast up again by the droughty fall eight years later.

With these views Mrs. Glass agreed, but Captain Rooney refused absolutely to entertain them. He had been over the ground many times. It was of the most difficult character, loose and swampy, and literally strewn with jagged stones that cut a man to pieces if he tried to do more than creep among them, absolutely impassable to a child. Again, there was the matter of distance. How could a child of four years, none too firm a walker on easy ground, as many a childish bruise and scar will testify, have made its way for more than two miles over this hellish terrain into a morass? Must it not have fallen exhausted long before and rested till the voices of the searchers in that first night had wakened it?

And how about those little shoes? Captain Rooney asks us. Of what leather were they made to have lain for eight and one half years in that impassable bog and yet to have been so well preserved as to retain the maker's imprint?

"No, sir," the gallant captain concludes, "those may be the bones of Jimmie Glass, but if they are, some one must have taken him there."

Perhaps—and then again? How far a lost and desperate child will stray is not too simple a question. If, as Captain Rooney suggests, Jimmie Glass probably would have tired and lain down to rest, would he not also have risen again and blundered on? As for the durability of the leather, any one may go to any well-stocked museum and find hides of the sixteenth century still tolerably preserved. And if some one took the pitiful body of the child and tossed it into that morass, who was it?

It is much easier to believe with the parents. The enchantment of spring and sunshine, the allure of unvisited and undreamed places unfolding before a child's eyes, and straying from flower to flower, wonder to wonder, depth to depth. And at the end of the adventure, disaster; at the wane of the sunshine, that darkness that clouds all living. It is more pleasant to think of the matter so, to believe that Jimmy Glass, four years in the world, was but a forthfarer into the mysteries, who lay down at the end of mighty explorations and went to sleep—a Babe in the Woods.

XIII

THE FATES AND JOE VAROTTA

On an afternoon in the autumn of 1920, Salvatore Varotta took his eldest son for a ride on Long Island. Perhaps it was not quite the right thing to do. The big motor truck did not belong to him. His employers might not like the idea of a child being carted about the countryside in their delivery van. Still, what did it matter? The day had been hot. Little Adolfo had begged to go. No one would ever know the difference, and the boy would be happy. So this simple-hearted Italian motor driver set out from the reeks and throngs of New York's lower East Side on what was to be a pilgrimage of pleasure.

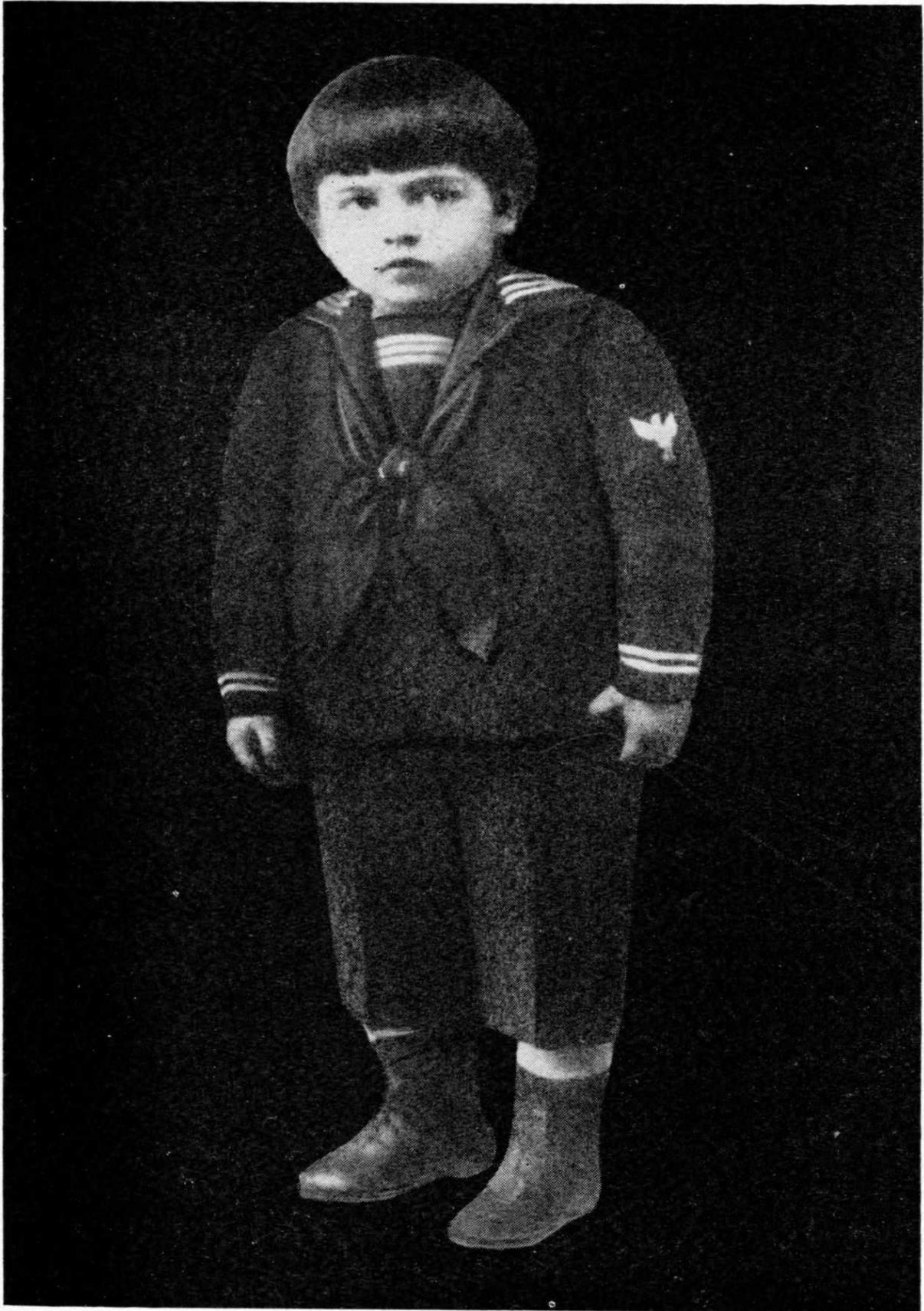
There was a cool wind in the country and the landscape was still green. The truck chauffeur enjoyed his drive as he rolled by fields where farmers were at their late plowing. The nine-year-old Adolfo sat beside him, chattering with curiosity or musing in pure delight. After all, it was a bright and perfect world, for all men's groans and growls.

Presently, Salvatore came to a crossing. Another truck lurched drunkenly across his path. There was a horrid shriek of collision, the shattering tinkle of glass, the crunch of riven steel. Salvatore Varotta was tossed aside like a cork and landed in the ditch. He picked himself up and staggered instinctively toward the wreck and little Adolfo. There was a volcanic spout of flame as one of the tanks blew up. The undaunted father plunged into the smoke and managed to draw out the boy, cut and crushed and burned to pitiful distortions, but breathing and alive.

Adolfo was carried to Bellevue Hospital suffering from a frightfully cut and burned face and a crushed leg. The surgeons looked at the mangled child and shook their heads. There was a chance of putting that wretched leg into some kind of shape again, and it might be possible to restore that ruined face to human semblance, but the work would take many months. It would cost a good deal of money, in spite of free hospital accommodations and the gratuitous services of the doctors.

The Varottas were shabbily poor. They lived in a rookery on East Thirteenth Street, the father, the mother and five children, of whom the injured boy was, as already noted, the eldest. Varotta's pay as truck driver was thirty dollars a week. In the history of such a family an accident like that which had overtaken Adolfo means about what a broken leg does to a horse: Death is the greatest mercy. In this case, however, some one with connections got interested either in the boy or in the surgical experiment and appealed to a rich and charitable woman for aid. This lady came down from her apartment on Park Avenue and stood by the bedside of the wrecked Adolfo. She gave instructions that he was to be restored at any cost. She grew interested not only in the boy but his family.

One day the neighbors in East Thirteenth Street were appalled to see the limousine of the Varotta's benefactress drive up to their tenement. They watched her enter the humble home, pat the children, talk with the burdened mother, and then drive away perilously through the swarms of children screaming and pranking in the street. The "great lady" came again and again. It was understood that she had paid much money to help little Adolfo. Also, she was helping the Varotta family. That Varotta was a lucky dog, for the injury of his son had brought him the patronage of the rich. Surely, he would know how to make something of his good fortune. To certain ranks of men and women, kindness is no more than weakness and must be taken advantage of accordingly. The neighbors of Salvatore Varotta were such men and women.



~~ JOE VAROTTA ~~

Little Adolfo was still in the hospital, being patched and mended, when his father sued the owner of the colliding truck for fifty thousand dollars, alleging carelessness, permanent injury to the child, and so on. The neighbors heard of this, too. By San Rocco, that Salvatore *was* a lucky dog! Fifty thousand dollars! And he would get it, too. Did he not have a rich and powerful patroness?

Thus, through the intervention of a charitable woman and a lawsuit, Varotta became a dignitary in his block, a person of special and consuming interest. He had or would soon have money. In that case he would be profitable.... But how? Well, he was a simple and guileless fellow. A way would be found.

In April, 1921, when Adolfo was discharged from the hospital with his leg partly restored but with his face still in need of skin grafting and other treatments, Salvatore Varotta decided to buy a cheap, second-hand automobile. He could make money with it and also use it to give his family an airing once in a while. The car, for which only one hundred and fifty dollars had been paid, attracted the attention of the East Thirteenth Street neighbors again. What? Salvatore had bought an automobile? Then there must have been a settlement in the damage suit over little Adolfo's injuries. Salvatore had money, then. So, so!

One of the neighbor women happened to pass when the rickety car was standing at the curb, and Mrs. Varotta was on the stoop, her youngest child in her arms.

"Ha! Salvatore can't have much money when he buys you a hundred-and-fifty-dollar car," mocked the woman.

"He could have bought a thousand-dollar one if he wanted to," said the wife with a surge of false pride.

That was enough. That was confirmation. The damage suit had been settled. Salvatore Varotta had the money. He could have bought an expensive car, but he had spent only a hundred and fifty. The niggardly old rascal! He meant to hold on to his wealth, eh? So the word fled up and down the street, to the amusement of some and the closer interest of others.

As a matter of fact, the damage suit had not been settled. It was even doubtful whether Salvatore would ever get a cent for all his son's injuries and suffering. The man whose car had collided with Salvatore's had no means and could not be made to give what he did not possess. So it was an entirely false rumor of prosperity and a word of bragging from a sensitive wife that brought about many things.

At about two o'clock on the afternoon of May 24, 1921, Giuseppe Varotta, five years old, the younger brother of the wounded Adolfo, put on his clean sailor suit and his new shoes and went out into East Thirteenth Street to wait for the homecoming of his father and the automobile. Giuseppe, familiarly called Joe, did not know or care whether the car had cost a hundred or a thousand dollars. It was a car, it belonged to his father, and Joe intended to have a ride in it.

For some minutes Joe played about the doorstep. Then his childish patience forsook him, and he ran down the block to spend a penny which a passer-by had given him. Other children playing in the street observed him by the doorstep, saw him get the penny, and watched him go down the walk to the confectioner's. They did not mark his further progress.

At half past three, Salvatore Varotta came home in his car. He ran up the steps into the house to his wife. She greeted him and asked immediately:

"Where's Joe?"

Varotta had not seen his little son. No doubt he was playing in the street and would be in soon.

The father sat down to rest and smoke. When Joe did not appear, and twenty minutes had passed, his mother went out to the stoop to call him. She could not find him in the street, and he did not respond to her voice. There was another wait for half an hour and another looking up and down the street. Then Salvatore Varotta was forced to yield to his wife's anxious entreaties and set out after the lad.

He visited the stores and houses, inquired of friends and neighbors, questioned the children, circled the blocks, looked into cellars and areaways, visited the kindergarten where the child was a pupil, implored the aid of the policemen on the beats, and finally, late at night, went to the East Fifth Street police station and told his story to the captain, who was

sympathetic but busy and inclined to take the matter lightly. The child would turn up. Lots of children strayed away in New York every day. They were almost always found again. It was very seldom that anything happened.

So Salvatore Varotta went wearily back to his wife and told her what the “big chief policeman” had said. No doubt, the officer spoke from experience. They had better try to get a little sleep. Joe would turn up in the morning.

On the afternoon of the following day the postman brought a letter to Salvatore Varotta. The truck driver read it and trembled with fear and apprehension. His wife glanced at it and moaned. She lighted a candle before the tinselled St. Anthony in her bedroom and began endless prayers and protestations.

The letter was written in Italian, evidently by one habited to the Sicilian dialect. It said that the writer was a member of a powerful society, too secret and too strong to be afraid of the police. The society had taken little Joe. He was being held for ransom. The price of his life and restoration was twenty-five hundred dollars. Varotta was to get the money at once in cash and have it ready in his home, so that he could hand it over to a messenger who would call for it. If the money were promptly and quietly paid the boy would be restored safe and sound, but if the police were notified and any attempt were made to catch the kidnappers, the powerful society would destroy the child and take further vengeance upon the family.

There was a black hand drawn at the bottom of this forbidding missive with a dripping dagger at its side.

Varotta and his wife conferred all day in despair. They did not know whom they might trust, or whether they dared speak of the matter at all. But necessity finally decided their course for them. Varotta did not have twenty-five hundred dollars. He could not have it ready when the fateful footfall of the messenger would sound on the stairs. In his extremity he had to seek aid. He went to the police again and showed the letter to Captain Archibald McNeill.

The same evening the case was placed in the hands of the veteran head of the New York Italian Squad, Sergeant Michael Fiaschetti, successor of the

murdered Petrosino and the agent who has sent more Latin killers to the chair and the prison house than any other officer in the country. Fiaschetti saw with immediate and clear vision that this job was probably not the work of any organized or powerful society. He knew that professional criminals act with more caution and better information. They would never have made the blunder of assuming that Varotta had money when he had none. The detective also saw that the plan of sending a messenger to the house for the ransom was the plan of resourceless amateurs. He reasoned that the work had been done by relatives or neighbors, who knew something but not enough of Varotta's affairs, and he also concluded that the child was not far from its home.

Fiaschetti quickly elaborated a plan of action in accordance with these conclusions. His first work was to get a detective into the Varotta house unobserved or unsuspected. For this work he chose a woman officer, Mrs. Rae Nicoletti, who was of Italian parentage and could speak the Sicilian dialect.

The next day, Mrs. Varotta, between weeping and inquiring after her child, let it be known that she had telegraphed to her cousin in Detroit, who had a little money. The cousin was coming to aid her in her difficulties.

That night the cousin came. She drove up to the house in a station taxicab with two heavy suit cases for baggage. After inquiring the correct address from a bystander, the visiting cousin made her way into the Varotta home. So the detective, Mrs. Nicoletti, introduced herself to her assignment.

The young woman was not long in the house before things began to happen. First of all, she observed that the Varotta tenement was being constantly watched from the windows across the street. Next she noted that she was followed when she went out, ostensibly to do a little shopping for the house, but really to telephone to Fiaschetti. Finally came visitors.

The first of these was Santo Cusamano, a baker's assistant, who dwelt across the street from the Varottas and knew Salvatore and the whole family well.

Cusamano was very sympathetic. It was too bad. Undoubtedly the best thing to do was to pay the money. The Black Handers were terrible people, not to be trifled with. What? Varotta had no money? He could raise only

five hundred dollars? Sergeant Fiaschetti had instructed Varotta to mention this sum. The Black Handers would laugh at such an amount. Varotta must get more. He must meet the terms of the kidnappers. As for the safety of the boy, the Varottas could rest easy on that point, but they must get the money quickly.

The following day there were other callers from across the street. Antonio Marino came with his wife and his stepdaughter, Mrs. Mary Pogano, née Ruggieri. The Marinos, too, were full of tender human kindness and advice. When Antonio found out that Varotta had reported the kidnapping to the police he shook his head in alarm. That was bad; very bad. The police could do nothing against a powerful society of Black Handers. It was folly. If the police were really to interfere, the Black Handers would surely kill the boy. Antonio had known of other cases. There was but one thing to do—pay the money. Another man he had known had done so promptly and without making any fuss. He had got his son back safely. Yes, the money must be raised.

Then Cusamano came again. He inquired for news and said that perhaps the Black Handers would take five hundred dollars if that was really all Varotta could raise. He did not know, but Varotta had better have that sum ready for the messenger when he came. As he left the house, Cusamano accidentally made what seemed a suggestive statement.

“You will hear from me soon,” he remarked to Varotta.

While these conversations were being held, Mrs. Nicoletti, the detective, was bustling about the house, listening to every word she could catch. She had taken up the rôle of visiting cousin, was busy preparing meals, working about the house, and generally assisting the sorrowing mother. Whatever suspicion of her might have existed was soon allayed. She even sat in on the council with Cusamano and told him she had saved about six hundred dollars and would advance Varotta five hundred of it if that would save the child.

Mrs. Nicoletti and her chief were by this time almost certain that their original theory of the crime was correct. The neighbors were certainly a party to the matter, and it seemed that a capture of the whole band and the quick recovery of the child were to be expected. Plans were accordingly

laid to trap the messenger coming for the money and any one who might be with him or near the place when he came.

On June first, a man whom Varotta had never seen before came to the house late at night and asked in hushed accents for the father of the missing boy. The caller was, of course, admitted by Mrs. Nicoletti, who thus had every opportunity to look at him and hear his voice. He was led upstairs to a room where Varotta was waiting.

When the dark and midnight emissary of the terrible Black Hand strode across the threshold, the tortured father could hold back his emotion no longer. He threw himself on his knees before the visitor, lifted his clenched hands to him, and kissed his dusty boots, begging that his child be sent safely home and pleading that he had only five hundred dollars to pay. It was not true that he had received any money. It was impossible for him to ask his rich patroness who had befriended Adolfo for anything. All he had was the little money his wife's good cousin was willing to lend him for the sake of little Joe's safety. Would the Black Hand not take the five hundred dollars and send back the child, who was so innocent and so pretty that his teacher had taken his picture in the kindergarten?

The grim caller had very little to say. He would report to the society what Varotta had told him and he would return later with the answer. Meantime, Varotta had better get ready all the money he could raise. The messenger might come again the next night.

The detectives were ready when the time came. In the course of the next day Varotta went to the bank as if to get the money. While there he was handed five hundred dollars in bills which had previously been marked by Sergeant Fiaschetti. Later on it was decided that Mrs. Nicoletti would need help in dealing with the kidnappers' messenger, who might not come alone. Varotta himself was shaken and helpless. Accordingly, Detective John Pellegrino was dressed as a plumber, supplied with kit and tools, and sent to the Varotta house to mend a leaking faucet and repair some broken pipes. He came and went several times, bringing with him some new tools or part when he returned. In this way he hoped to confuse the watchers as to his final position. The trick was again successful. Pellegrino remained in the house at last, and the lookouts for the kidnappers evidently thought him gone.

A little after ten o'clock on the night of June second there was a knocking at the Varotta door. Two men were there, one of them the emissary of the Black Hand who had called the night before. This man curtly announced the purpose of his visit and sent his companion up to get the money from Varotta, remaining downstairs himself.

Varotta received the stranger in the same room where he had kissed the boots of the first messenger the night before, talked over the details with him, inquired anxiously as to the safety of Joe, and was told that he need not worry. Joe had been playing happily with other children and would be home about midnight if the money were paid. This time Varotta managed to retain some composure. He counted out the five hundred dollars to the messenger, asked this man to count the money again, saw that the bills were stuffed into the blackmailer's pocket and then gave the agreed signal.

Pellegrino, who had lain concealed behind the drapery, sprang into the room with drawn revolver, covered the intruder, handcuffed him and immediately communicated with the street by signal from a window. Other detectives broke into the hallway, seized the first emissary who was waiting there. On the near-by corner, Sergeant Fiaschetti and others of his staff clapped the wristlets on the arm of Antonio Marino and James Ruggieri, his stepson. A few moments later Santo Cusamano was dragged from the bakeshop where he worked. Five of the gang were in the toils and five more were seized before the night was over.

Cusamano and the first messenger, who turned out to be Roberto Raffaelo, made admissions which were later shown in court as confessions. All the prisoners were locked into separate and distant cells in the Tombs, and the search for Joe Varotta was begun. Sergeant Fiaschetti, amply fortified by the correctness of his surmises, took the position that the child was not far away and would be released within a few hours now that the members of the gang were in custody.

Here, however, the shrewd detective counted without a full consideration of the desperateness and deadliness of the amateur criminal, characteristics that have repeatedly upset and baffled those who know crime professionally and are conversant with the habits and conduct of experienced offenders. There can be no doubt that professionals would, in this situation, have released the boy and sent him home, though the Ross case furnishes a

fearful exception. The whole logic of the situation was on this side of the scale. Once the boy was safely at home, his parents would probably have lost interest in the prosecution, and the police, busy with many graver matters, would probably have been content with convicting the actual messengers, the only ones against whom there was direct evidence. These men might have expected moderate terms of imprisonment and the whole affair would have been soon forgotten.

But Little Joe was not released. The days dragged by, while the men in the Tombs were questioned, threatened, cajoled and besought. One and all they pretended to know nothing of the whereabouts of Joe Varotta. More than a week went by while the parents of the child grew more and more hysterical and finally gave up all but their prayers, convinced that only divine intervention could avail them. Was little Joe alive or dead? They did not know. They had asked the good St. Anthony's aid and probably he would give them his answer soon.

At seven o'clock on the morning of July eleventh, John Derahica, a Polish laborer, went down to the beach near Piermont, a settlement just below Nyack, in quest of driftwood. The tide was low in the Hudson, and Derahica had no trouble reaching the end of a small pier which extended out into the stream at this point. Just beyond, in about three feet of water, he found the body of a little boy, caught hold of the loose clothing with a stick, and brought it out.

Derahica made haste to Piermont and summoned the local police chief, E. H. Stebbins. The body was carried to a local undertaker's and was at once suspected of being that of the missing Italian child. The next night Sergeant Fiaschetti and Salvatore Varotta arrived at Piermont and went to see the body, which had meantime been buried and then exhumed when the coming of the New York officer was announced.

The remains were already sorely decomposed and the face past recognition, but Salvatore Varotta looked at the swollen little hands and feet and the blue sailor suit. He knelt by the slab where this childish wreck lay prone and sobbed his recognition and his grief.

A coroner's autopsy showed that the child had been thrown alive into the stream and drowned. Calculating the probable results of the reaction of

tides and currents, it was decided that Giuseppe had been cast to his death somewhere above the point at which the recovery of the corpse was made.

Long and tedious investigations followed. When had the child been killed and by whom? Was the little boy still alive when the two messengers arrived at the Varotta home for the ransom and the trap was sprung which gathered in five chief conspirators and five supposed accessories? If so, who was the confederate who had committed the final deed of murderous desperation? Who had done the actual kidnapping? Where had the child been concealed while the negotiations were proceeding?

Some of these questions have never been answered, but it is now possible, from the confession of one of the men, from the evidence presented at four ensuing murder trials, and from the subsequent drift of police information, to reconstruct the story of the crime in greater part.

On the afternoon of May twenty-fourth, when little Joe Varotta went into the candy store with his penny, he was engaged in talk by one of the men from across the street, whom Joe knew well as a friend of his father's. The child was enticed into a back room, seized, gagged, stuffed into a barrel and then loaded into a delivery wagon. Thus effectively concealed, the little prisoner was driven through the streets to another part of town and there held in a house by some member of the conspiracy. The men engaged in the plot up to this point were all either neighbors or their relatives and friends.

On the afternoon of May twenty-ninth, Roberto Raffaello was sitting despondently on a bench in Union Square when a stranger sat down beside him and accosted him in his own Sicilian dialect. This chance acquaintance, it developed later, was James Ruggieri. Raffaello was down on his luck and had found work hard to get. He was, as a matter of fact, washing dishes in a Bowery lunch room for five dollars a week and meals. Ruggieri asked how things were going, and being informed that they might be better, he told Raffaello of a chance to make some real money, explaining the facts about the kidnapping, saying that a powerful society was back of the thing, and representing that Varotta was a craven and an easy mark. All that was required of Raffaello was that he go to the Varotta house and get the money. For his pains he was to have five hundred dollars.

Raffaello was subsequently introduced to Cusamano and Marino. The next night he went to visit Varotta with the result already described.

After Raffaello had made one visit it was held to be better tactics to send some one else to do the actual taking of the money. This man had to be a stranger, so Raffaello looked up John Melchione, an old acquaintance. Melchione, promised an equal reward and paid fifty dollars in advance as earnest money, went with Raffaello to the Varotta home on the night of June second, to get the money. Melchione went upstairs and took the marked bills while Raffaello waited below in the vestibule. It was the former whom Detective Pellegrino caught in the act. Neither he nor Raffaello had ever seen little Joe and both so maintained to the end, nor is there much doubt on this point.

On June second, the night when Raffaello, Melchione, Cusamano, Marino and Ruggieri were caught and the others arrested a little later, Raffaello made some statements to Detective Fiaschetti which sent the officers off the right track for the time being. This prevarication, which was done to shield himself and his confederates, he came to regret most bitterly later on.

On June third, as soon as the word got abroad that the five men and their five friends had been arrested and lodged in jail, another confederate, perhaps more than one, took Joe Varotta up the Hudson and threw him in, having first strangled the little fellow so that he might not scream. The boy was destroyed because the confederates who had him in charge were frightened into panic by the sudden collapse of their scheme and feared they would either be caught with the boy in their possession or that the arrested men might "squeal" and be supported by the identification from the little victim's lips were he allowed to live.

Raffaello was brought to trial in August and quickly convicted of murder in the first degree. He was committed to the death house at Sing Sing and there waited to be joined by his fellows. When the hour for his execution had almost come upon him, Raffaello was seized with remorse and declared that he was willing to tell all he knew. He was reprieved and appeared at the trials of the others, where he told his story substantially as recited above. Largely as a result of his testimony, Cusamano, Marino and Ruggieri were convicted and sentenced to electrocution while Melchione went mad in the Tombs and was sent to Matteawan to end his life among the criminal insane. Governor Smith finally granted commutations to life imprisonment in each of these cases, because it was fairly well established that all the convicted men had been in the Tombs at the time Joe Varotta was drowned

and had probably nothing to do with his actual murder. They are still in prison and will very likely stay there a great many years before there can be any question of pardon.

In spite of every effort on the part of the police and every inducement held out to the convicted men, no information could ever be got as to the identity of the man or men who threw the little boy into the river. The arrested and convicted men, except for Raffaello, who evidently did not know any more than he told, absolutely refused to talk, saying it would be certain death if they did so. They tried all along to create the impression that they were only the minor tools of some great and mysterious organization, but this claim may be dismissed as fiction and romance.

XIV

THE LOST MILLIONAIRE

Some time before three o'clock on the afternoon of December 2, 1919, Ambrose Joseph Small deposited in the Dominion Bank, of Toronto, a check for one million dollars. At seven fifteen o'clock that evening the lean, swart, saturnine master of Canadian playhouses bought his habitual newspapers from the familiar boy under the lamps of Adelaide Street, before his own Grand Theater, turned on his heel, and strode off into the night, to return no more.

In the intervening years men have ferreted in all corners of the world for the missing rich man; rewards up to fifty thousand dollars have been offered for his return, or the discovery of his body; reports of his presence have chased detectives into distant latitudes, and the alarm for him has been spread to all the trails and tides without result. By official action of the Canadian courts, Amby Small, as he was known, is dead, and his fortune has been distributed to his heirs. To the romantic speculation he must still exist, however. And whatever the fact, his case presents one of the strangest stories of mysterious absenteeism to be found upon the books.

Men disappear every day. The police records of any great city and of many smaller places bear almost interminable lists of fellows who have suddenly and curiously dropped out of their grooves and placements. Some are washed up as dead bodies—the slain and self-slain. Some return after long wanderings, to make needless excuses to their friends and families. And others pass from their regular haunts into new fields. These latter are usually poor and fameless gentry, weary of life's routine.

Ambrose Small, however, was a person of different kidney. He was rich, for one thing. Thirty-five years earlier, Sir Henry Irving, on one of his tours to Canada had found the youthful Small taking tickets in a Toronto theater. Attracted by some unusual quality in the youngster, Irving shrewdly advised him to quit the study of law and devote himself to the theatrical business. Following this counsel, Small had risen slowly and surely until he controlled theaters in all parts of the Dominion and was rated at several

millions. On the afternoon before his disappearance he had consummated a deal with the Trans-Canada Theaters, Limited, by which he was to receive nearly two millions in money and a share of the profits, in return for his theatrical holdings. The million-dollar check he deposited had been the first payment.

Again, Small was a familiar figure throughout Canada and almost as well acquainted in New York, Boston, Philadelphia, and other cities of the United States. Figuratively, at least, everybody knew him—thousands of actors, traveling press agents, managers, real estate men, promoters, newspaper folk, advance agents; indeed, all the Wandering Jews and Gentiles of the profession of make-believe, with which he had been connected so long and profitably. With such a list of acquaintances, whose roving took them to the ends of the earth, how almost impossible it seemed for Small to drop completely out of sight.

Finally, Amby Small was a man with a wife and most deeply interested relatives. Entirely aside from the questions of inheritance and the division of his estate, which netted about two millions, as was determined later on, Mrs. Small would certainly want to know whether she was a wife or widow, and the magnate's sisters would certainly suspect everything and everybody, leaving nothing undone that would bring the man back to his home, or punish those who might have been responsible for any evil termination of his life.

Thus the Small case presents very different factors from those governing the ordinary disappearance case. It is full of the elements which make for mystery and bafflement, and it may be set down at once as an enigma of the most arresting and irritating type, upon whose darkneses not the slightest light has ever been shed.

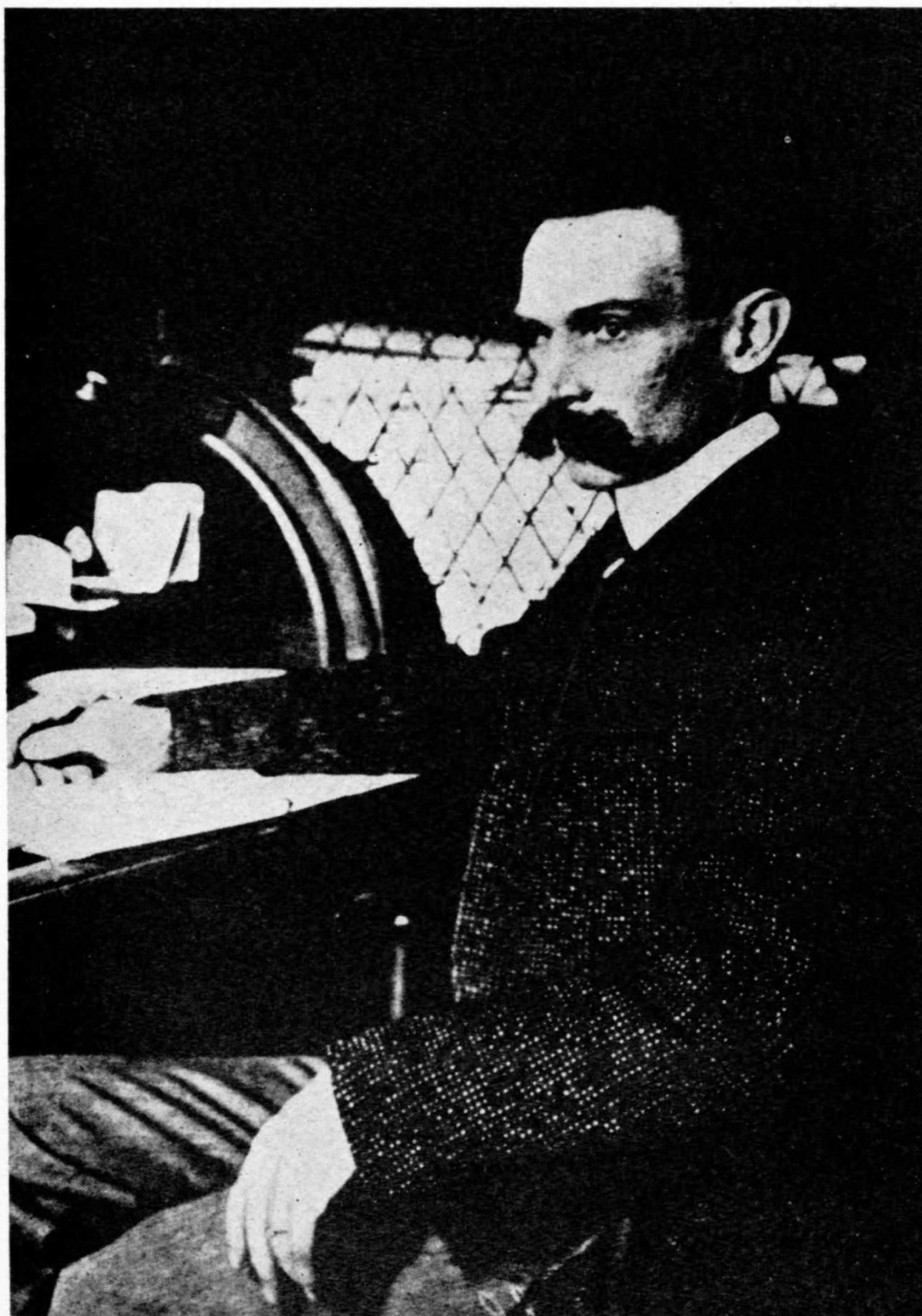
So far as can be learned, Small had no enemies and felt no apprehensions. He was totally immersed for some months before his disappearance in the negotiations for the sale of his interests to the Trans-Canada Company, and apparently he devoted all his energies to this project. He had anticipated a favorable conclusion for some time and looked upon the signing of the agreements and writing of the check on December 2 as nothing more than a formality.

Late in the morning of the day in question, Small met his attorney and the representatives of the Trans-Canada Company in his offices, and the formalities were concluded. Some time after noon he deposited the check in the Dominion Bank and then took Mrs. Small to luncheon. Afterward he visited a Catholic children's institution with her and left her at about three o'clock to return to his desk in the Grand Theater, where he had sat for many years, spinning his plans and piling up his fortune.

There seems to be not the slightest question that Small went directly to his office and spent the remainder of the afternoon there. Not only his secretary, John Doughty, who had been Small's confidential man for nineteen years, and later played a dramatic and mysterious part in the disappearance drama, but several other employees of the Grand Theater saw their retiring master at his usual post that afternoon. Small not only talked with these workers, but he called business associates on the telephone and made at least two appointments for the following day. He also was in conference with his solicitor as late as five o'clock.

According to Doughty, his employer left the Grand Theater at about five thirty o'clock and this time of departure coincided perfectly with what is known of Small's engagements. He had promised his wife to be at home for dinner at six thirty o'clock.

There is also confirmation at this point. For years Small had been in the habit of dropping into Lamb's Hotel, next door to his theater, before going home in the evening. He was intimately acquainted there, often met his friends in the hotel lobby or bar, and generally chatted a few minutes before leaving for his residence. The proprietor of the hotel came forward after Small's disappearance and recalled that he had seen the theater man in his hotel a little after five thirty o'clock. He was also under the impression that Small had stayed for some time, but he could not be sure.



~~ AMBROSE J. SMALL ~~

The next and final point of time that can be fixed is seven fifteen o'clock. At that time Small approached the newsboy in Adelaide Street, who knew the magnate well, and bought his usual evening papers. The boy believed that Small had come from the theater, but was not sure he had not stepped out of the hotel adjoining. Small said nothing but the usual things, seemed in no way different from his ordinary mood, and tarried only long enough to glance at the headlines under the arc lamps.

Probably there is something significant about the fact that Small did not leave the vicinity of his office until seven fifteen o'clock, when he was due at home by half past six. What happened to him after he had left his theater in plenty of time to keep the appointment with his wife? That something turned up to change his plan is obvious. Whether he merely encountered some one and talked longer than he realized, or whether something arrested him that had a definite bearing on his disappearance is not to be said; but the latter seems to be the reasonable assumption. Small was not the kind of man lightly to neglect his agreements, particularly those of a domestic kind.

Mrs. Small, waiting at home, did not get excited when her husband failed to appear at the fixed time. She knew he had been going through a busy day, and she reasoned that probably something pressing had come up to detain him. At half past seven, however, she got impatient and telephoned his office, getting no response. She waited two hours longer before she telephoned to the home of John Doughty's sister. She found her husband's secretary there and was assured that Doughty had been there all evening, which seems to have been the fact. Doughty said his employer had left the theater at five thirty o'clock, and that he knew no more. He could not explain Small's absence from home, but took the matter lightly. No doubt Small would be along when he got ready.

At midnight Mrs. Small sent telegrams to Small's various theaters in eastern Canada, asking for her husband. In the course of the next twenty-four hours she got responses from all of them. No one had seen Small or knew anything about his movements.

Now there followed two weeks of silence and waiting. Mrs. Small did not go to the police; neither did she employ private detectives until later. For two weeks she evidently waited, believing that her husband had gone off on

a trip, and that he would return soon. Those of his intimates in Toronto who could not be kept out of the secret of his absence took the same attitude. It was explained later that there was nothing unprecedented about Small's having simply gone off on a jaunt for some days or even several weeks. He was a moody and self-centered individual. He had gone off before in this way and come back when he got ready. He might have gone to New York suddenly on some business. Probably he had not been alone. Mrs. Small evidently shared this view, and her reasons for so doing developed a good deal later. In fact, she refused for months to believe that anything had befallen her husband, and it was only when there was no remaining alternative that she changed her position.

Finally, a little more than two weeks after Small's disappearance, his wife and attorneys went to the Dominion police and laid the case before them. Even then the quest was undertaken in a cautious and skeptical way. This attitude was natural. The police could find not the least hint of any attack on Small. The idea that such a man had been kidnapped seemed preposterous. Besides, what could have been the object? There had been no demand for his ransom. No doubt Small had gone away for reasons sufficient unto himself. Probably his wife understood these impulsions better than she would say. There were rumors of infelicity in the Small home, and these proved later to be well grounded. The police simply felt that they would not be made ridiculous. Neither did they want to stir up a sensation, only to have Small return and spill his wrath upon their innocent heads.

But the days spun out, and still there was no news of the missing man. Many began to turn from their original attitude of knowing skepticism. Other rumors began to fly about. Gradually the conviction gained ground that something sinister had befallen the master of theaters. Could it not be possible that Small had been entrapped in some blackmailing plot and perhaps killed when he resisted? It seemed almost incredible, but such things did happen. How about his finances? Was his money intact in the bank? Had he drawn any checks against his account? It was soon discovered that no funds had been withdrawn either on December 2 or subsequently, and it seemed likely that Small had only a few dollars in his pockets when he vanished, unless, as was suggested, he kept a secret cache of ready money.

Attention was now directed toward every one who had been close to the theater owner. One of the most obvious marks for this kind of inquiry was John Doughty, the veteran secretary. Doughty had, as already remarked, been Small's right-hand man for nearly two decades. He knew his employer's secrets, was close to all his business affairs, and was even known to have been Small's companion on occasional drinking bouts. At the same time Small had treated Doughty in a niggardly way as regards pay. The secretary had been receiving forty-five dollars a week for years, never more. At the same time, probably through other bits of income which his position brought him, Doughty had saved some money, bought property in Toronto, and established himself with a small competence.

That Small regarded this faithful servant kindly and was careful to provide for him, is shown by the fact that Small had got Doughty a new and better place as manager of one of the Small theaters in Montreal, which had been taken over by the syndicate. In his new job Doughty received seventy-five dollars a week. He had left to assume his new duties a day or two after the consolidation of the interests, which is to say a day or two after Small vanished.

Doughty had, of course, been questioned, but it seemed obvious that this time he knew nothing of his old employer's movements. He had accordingly stayed on in Montreal, attending to his new duties and paying very little attention to Small's absence. Less than three weeks after Small had gone, and one week after the case had been taken to the police, however, new attention began to be paid to Doughty, and there were some unpleasant whisperings.

On Monday morning, December 23, just three weeks after Small had walked off into the void, came the dramatic break. Doughty, as was his habit, left Montreal the preceding Saturday evening to spend Sunday in Toronto with his relatives and friends. On Monday morning, instead of appearing at his desk, he telephoned from Toronto that he was ill and might not be at work for some days. His employers took him at his word and paid no further attention until, three days having elapsed, they telephoned to the home of Doughty's sister. She had not seen him since Monday. The man was gone!

If the Small disappearance case had heretofore been considered a somewhat dubious jest, it now became a genuine sensation. For the first time the Canadian and American newspapers began to treat the matter under scare headlines, and now at last the Dominion police began to move with force and alacrity.

An investigation of the safe-deposit vaults, where Small was now said to have kept a large total of securities, showed that Doughty had visited this place twice on December 2, the day of Small's disappearance, and he had on each occasion either put in, or taken away, some bonds. A hasty count of the securities was said to have revealed a shortage of one hundred and fifty thousand dollars.

Even this discovery did not change the minds of the skeptics, in whose ranks the missing magnate's wife still remained. It was now believed that Doughty had received a secret summons from Small, and that he had taken the bonds, which had previously been put aside, at Small's instruction, and gone to join his chief in some hidden retreat. A good part of Toronto believed that Small had gone on a protracted "party," or that he had seized the opportunity offered by the closing out of his business to quit a wife with whom he had long been in disagreement.

When neither Small nor Doughty reappeared, opinion gradually veered about to the opposite side. After all, it was possible that Small had not gone away voluntarily, that he was the victim of some criminal conspiracy, and that Doughty had fled when he felt suspicion turning its face toward him. The absence of the supposed one hundred and fifty thousand dollars in bonds provided sufficient motivation to fit almost any criminal hypothesis.

As this attitude became general, Toronto came to examine the relationship between Small and Doughty. It was recalled that the secretary had, on more than one occasion when he was in his cups, spoken bitterly of Small's exaggerated wealth and his cold niggardliness. Doughty had also uttered various radical sentiments, and it was even said that he had once spoken of the possibility of kidnapping Small for ransom; though the man who reported this conversation admitted Doughty had seemed to be joking. The conclusion reached by the police was not clear. Doughty, they found, had been faithful, devoted, and long-suffering. They had to conclude that he was careful and substantial, and they could not discover that he had ever had the

slightest connection with the underworld or with suspect characters. At the same time they decided that the man was unstable, emotional, imaginative, and probably not hard to mislead. In short, they came to the definite suspicion that Doughty had figured as the tool of conspirators, in the disappearance of Small. They soon brought Mrs. Small around to this view. Now the hunt began.

A reward of five hundred dollars, which had been perfunctorily offered as payment for information concerning Small's whereabouts, was withdrawn, and three new rewards were offered by the wife—fifty thousand dollars for the discovery and return of Small; fifteen thousand dollars for his identified body, and five thousand dollars for the capture of Doughty.

The Toronto chief constable immediately assigned a squad of detectives to the case, and Mrs. Small employed a firm of Canadian private detectives to pursue a line of investigation which she outlined. Later on she employed four more widely known investigating firms in the United States to continue the quest. Small's sisters also summoned American officers to carry out their special inquiries. Thus there were no fewer than seven distinct bodies of police working at the mystery.

Circulars containing pictures of Small and Doughty, with their descriptions, and announcement of the rewards, were circulated throughout Canada and the United States; then from Scotland Yard they were sent to all the police offices in the British Empire, and, finally, from the American, Canadian, and British capitals to every known postmaster and police head on earth. More than half a million copies of the circulars were printed, it is said, and translations into more than twenty languages were distributed. I am told by eminent police authorities that this campaign, supported as it was by advertisements and news items in the press of almost every nation, some of them containing pictures of the missing millionaire, has never been approached in any other absent person case. Mrs. Small and her advisers set out to satisfy themselves that news of the disappearance and the rewards should reach to the most remote places, and they spent a small fortune for printing bills and postage. Even the quest for the lost Archduke John Salvator, to which the Pope contributed a special letter addressed to all priests, missionaries and other representatives of the Roman Catholic Church in every part of the world, seems to have been less far-reaching.

Rumors concerning Small and Doughty began to come in soon after the first alarms. Small and Doughty were reported seen in Paris, on the Italian Riviera, at the Lido, in Florida, in Hawaii, in London, at Calcutta, aboard a boat on the way to India, in Honduras, at Zanzibar, and where not? A skeleton was found in a ravine not far from Toronto, and for a time the fate of Small was believed to be understood. But physicians and anatomists soon determined that the bones could not have been those of the theatrical man for a variety of conclusive reasons. So the hunt began again.

Gradually, as time went on, as expense mounted, and results failed to show themselves, the private detective firms were dismissed, one after the other, and the task of running down rumors in this clewless case was left to the Toronto police. The usual sums of money and of time were wasted in following blind leads. The usual failures and absurdities were recorded. One Canadian officer, however, Detective Austin R. Mitchell, began to develop a theory of the case and was allowed to follow his ideas logically toward their conclusion. Working in silence, when the public had long come to believe that the search had been abandoned as bootless, Mitchell plugged away, month after month, without definite accomplishment. He was not able to get more than an occasional scrap of information which seemed to bear out his theory of the case. He made scores of trips, hundreds of investigations. They were all inconclusive. Nevertheless, the Toronto authorities permitted him to go on with his work, and he is probably still occupied at times with the Small mystery.

Detective Mitchell was actively following his course toward the end of November, 1920, eleven months after the flight of Doughty, when a telegram arrived at police headquarters in Toronto from Edward Fortune, a constable of Oregon City, Oregon, a small town far out near the Pacific. Once more the weary detective took a train West, arriving in Oregon City on the evening of November 22.

Constable Fortune met the Canadian officer at the train and told him his story. He had seen one of the circulars a few months earlier and had carried the images of Small and Doughty in his mind. One day he had observed a strange laborer working in a local paper mill, and he had been struck by his likeness to Doughty. The man had been there for some time and risen from the meanest work to the position of foreman in one of the shops. Fortune dared not approach the suspect even indirectly, and he failed on various

occasions to get a view of the worker without his hat on. Because the picture on the circular showed Doughty bare-headed, the constable had been forced to wait until the suspected man inadvertently removed his hat. Then Fortune had sent his telegram.

Detective Mitchell listened patiently and dubiously. He had made a hundred trips of the same sort, he said. Probably there was another mistake. But Constable Fortune seemed certain of his game, and he was right.

Shortly after dusk the local officer led the detective to a modest house, where some of the mill workers boarded. They entered, and Mitchell was immediately confronted with Doughty, whom he had known intimately in Toronto.

“Jack!” said the officer, almost as much surprised as the fugitive. “How could you do it?”

In this undramatic fashion one part of the great quest came to an end.

Doughty submitted quietly to arrest and gave the officer a voluntary statement. He admitted without reservation that he had taken Canadian Victory bonds to a total of one hundred and five thousand dollars from Small’s vault, but insisted that this had been done after the millionaire had disappeared. He denied absolutely and firmly any knowledge of Small’s whereabouts; pleaded that he had never had any knowledge of or part in a kidnapping plot, and he insisted that he had not seen Small nor heard from him since half past five on the evening of the disappearance. To this account he adhered doggedly and unswervingly. Doughty was returned to Toronto on November 29, and the next day he retrieved the stolen bonds from the attic of his sister’s house, where he had made his home with his two small sons, since the death of his wife several years before.

In April of the following year Doughty was brought to trial on a charge of having stolen the bonds, a second indictment for complicity in the kidnapping remaining for future disposal. The trial was a formal and, in some ways, a peculiar affair. All mention of kidnapping and all hints which might have indicated the direction of Doughty’s ideas on the central mystery were rigorously avoided. Only one new fact and one correction of accepted statements came out. It was revealed that Small had given his wife a hundred thousand dollars in bonds to be used for charitable purposes on

the day before his disappearance. This fact had not been hinted before, and some interpreted the testimony as a concealed way of stating the fact that Small had made some kind of settlement with his wife on the first of December.

Doughty in his testimony corrected the statement that he had taken the bonds after Small's disappearance. He testified that he had been sent to the vault on the second of December, and that he had then extracted the hundred and five thousand dollars' worth of bonds. He had not, he swore, intended to steal them, and he had no notion that Small would disappear. He explained his act by saying that Small had long promised him some reward for his many years of service, and had repeatedly stated that he would arrange the matter when the deal with the Trans-Canada Company had been concluded. Knowing that the papers had been signed that morning, and the million-dollar check turned over, Doughty had planned to go to his chief with the bonds in his hands and suggest that these might serve as a fitting reward for his contribution to the success of the Small enterprises. He later saw the folly of this action and fled.

The prosecution naturally attacked this story on the ground that it was incredible, but nothing was brought out to show what opposing theory might fit the facts. Doughty was convicted of larceny and sentenced to serve six years in prison. The kidnapping charge was never brought to trial. Instead, the police let it be known that they believed Doughty had not played any part in the "actual murder" of Amby Small, and that he had revealed all he knew. Incidentally, it was admitted that the police believed Small to be dead. That was the only point on which any information was given, and even here not the first detail was supplied. Obviously the hunt for nameless persons suspected of having kidnapped and killed Small was in progress, and the officials were being careful to reveal nothing of their information or intentions.

Doughty took an appeal from the verdict against him, but abandoned the fight later in the spring of 1921, and was sent to prison. Here the unravelling of the Small mystery came to an abrupt end. A year passed, then two years. Still nothing more developed. Doughty was in prison, the police were silent and seemed inactive. Perhaps they had abandoned the hunt. Possibly they knew what had befallen the theater owner and were refraining from making revelations for reasons of public policy. Perhaps, as was

hinted in the newspapers, there were persons of influence involved in the mess, persons powerful enough to hush the officials.

But the matter of Small's fortune was still in abeyance, and there were indications of a bitter contest between the wife and Small's two sisters, who had apparently been hostile for years. This struggle promised to bring out further facts and perhaps to reveal to the public what the family and the officials knew or suspected.

Soon after Small had vanished, Mrs. Small had moved formally to protect his property by having a measure introduced into the Dominion Parliament declaring Small an absentee and placing herself and a bank in control of the estate. This measure was soon taken, with the result that the Small fortune, amounting to about two million dollars, net, continued to be profitably administered.

Early in 1923, after Doughty had been two years in prison, and all rumor of the kidnapping or disappearance mystery had died down, Mrs. Small appeared in court with a petition to have her husband declared dead, so that she might offer for probate an informal will made on September 6, 1903. This document was written on a single small sheet of paper and devised to Mrs. Small her husband's entire estate, which was of modest proportions at the time the will was drawn.

The court refused to declare the missing magnate dead, saying that insufficient evidence had been presented, and that the police were apparently not satisfied. Mrs. Small next appealed her case, and the reviewing court reversed the decision and declared Small legally dead. Thereupon the widow filed the will of 1903 and was immediately attacked by Small's sisters, who declared that they had in their possession a will made in 1917, which revoked the earlier testament and disinherited Mrs. Small. This will, if it existed, was never produced.

There followed a series of hearings. At one of these, opposing counsel began a line of cross-questioning which suggested that Mrs. Small had been guilty of a liaison with a Canadian officer who appeared in the records merely as Mr. X. The widow, rising dramatically in court, indignantly denied these imputations as well as the induced theory that her misbehavior had led to an estrangement from her husband and, perhaps, to his disappearance. The widow declared that this suspicion was diametrically

opposed to the truth, and that if Small were in court he would be the first to reject it. As a matter of fact, she testified, it was Small who had been guilty. He had confessed his fault to her, promised to be done with the woman in the matter, and had been forgiven. There had been a complete reconciliation, she said, and Small had agreed that one half of the million-dollar check which he received on the day of his disappearance should be hers.

To bear out her statements in this matter, Mrs. Small soon after obtained permission of the court to file certain letters which had been found among Small's effects after his disappearance. In this manner the secret love affair in the theater magnate's last years came to be spread upon the books. The letters presented by the wife had all come from a certain married woman who, according to the testimony of her own writings and of others who knew of the connection, had been associated with Amby Small since 1915. It appears that Mrs. Small discovered the attachment in 1918 and forced her husband to cause his inamorata to leave Toronto. The letters, which need not be reprinted here, contained only one significant strain.

A letter, which reached Small two or three days before he disappeared, concluded thus: "Write me often, dear heart, for I just live for your letters. God bless you, dearest."

Three weeks earlier, evidently with reference to the impending close of his big deal and his retirement from active business, the same lady wrote: "I am the most unhappy girl in the world. I want you. Can't you suggest something after the first of December? You will be free, practically. Let's beat it away from our troubles."

And five days later she amended this in another note: "Some day, perhaps, if you want me, we can be together all the time. Let's pray for that time to come, when we can have each other legitimately."

Mrs. Small declared that she had found these letters immediately after her husband's departure, and that they had kept her from turning the case over to the police until two weeks after the disappearance. Meantime the other woman had been summoned, interrogated by the police, and released. She had not seen Small nor had she heard from him either directly or indirectly. It was apparent that, while she had been corresponding with Small up to the very week of his last appearance, he had not gone to see her.

Finally the will contest was settled out of court, Small's sisters receiving four hundred thousand dollars, and the widow retaining the balance.

And here the darkness closes in again. Even in the progress of the will controversy no hint was given of the official or family beliefs as to the mystery. There are only two tenable conclusions. Either there is a further skeleton to be guarded, or the police have some kind of information which promises the eventual solution of the case and the apprehension of suspected criminals. How slender this promise must be, every reader will judge for himself, remembering the years of fruitless attack on this extraordinary and complex enigma.

XV

THE AMBROSE BIERCE IRONY

Some time in his middle career, Ambrose Bierce wrote three short tales of vanishment—weird and supernatural things in one of his favorite veins. The three sketches—for they are no more—he classed under the heading, “Mysterious Disappearances,” a subject which occupied his speculations from time to time. Herein lies a complete irony. Bierce himself was later to disappear as mysteriously as any of his heroes.

No one will understand his story, with its many implications, or get from it the full flavor of romance and sardonics without some brief glance at the man and his history. Nor need one make apology for intruding a short account of him in a story of mystery, for Bierce alive was almost as strange and enigmatic a creature as Bierce dead.

Ambrose Bierce, whom a good many critics have regarded as the foremost master of the American short story after Poe, was born in Ohio in 1841. He joined the Union armies as a private in 1861, when he was in his twenty-first year, rose quickly through the ranks to the grade of lieutenant, fought and was wounded at Chickamauga as a captain of engineers under Thomas, and retired with the brevet rank of major. After the war he took up writing for a living, and soon went to London, where his early short stories, sketches and criticisms attracted attention. His cutting wit and ironic spirit soon won him the popular name “Bitter Bierce.”

After 1870, the banished Empress Eugénie of France, alarmed at the escape of her implacable journalistic enemy, Henri Rochette, and the impending revival in London of his paper, *La Lanterne*, in which she had been intolerably lampooned, sought to forestall the French writer by establishing an English paper called *The Lantern*, thus taking advantage of the law which forbade a duplication of titles. For this purpose she employed Bierce, purely on his polemical reputation, and Bierce straightway began the publication of *The Lantern*, and devoted his most vitriolic explosions to the baffled Rochette, who saw that he could not succeed in England without the

name which he had made famous at the head of his paper and could not return to France, whence he was a political exile.

In this employment Bierce exhibited one of his peculiarities. His assaults on her old enemy greatly pleased the banished empress, and she finally sent for Bierce. Following the imperial etiquette, which she still sought to maintain, she “commanded” his presence. Bierce, who understood and obeyed military commands, did not like that manner of wording an invitation from a dethroned empress. He did not attend and *The Lantern* soon disappeared from the scene of politics and letters.

Bierce returned to America and went to San Francisco, where he in time became the “dean of Western writers.” His journalistic work in San Francisco and later in Washington set him apart as a satirist of the bitterest strain. His literary productions marked him as a man of the most independent thought and distinctive taste. Most of his tales are Poe plus sulphur. He reveled in the mysterious, the dark, the terrible and the bizarre.

Between intervals of writing his tales, criticisms and epigrams, Bierce found time to manage ranches and mining properties, to fight bad men and frontier highwaymen, to grill politicians, and to write verse.

Bierce went through life seeking combat, weathering storm after storm, by some regarded as the foremost American literary man of his time, by others denounced as a brute, a pedant, even as a scoundrel. In the West he was generally lionized, in the East neglected. One man called him the last of the satirists, another considered him a strutting dunce. Bierce contributed to the confusion by making something of a riddle of himself. He loved mystery and indirection. He liked the fabulous stories which grew up about him and encouraged them by his own silence and air of concealment. In the essentials, however, he was no more than an intelligent and perspicacious man of high talent, who hated sentiment, reveled in the assault on popular prejudices, liked nothing so much as to throw himself upon the clay idols of the day with ferocious claws, and yet had a tender and humble heart.

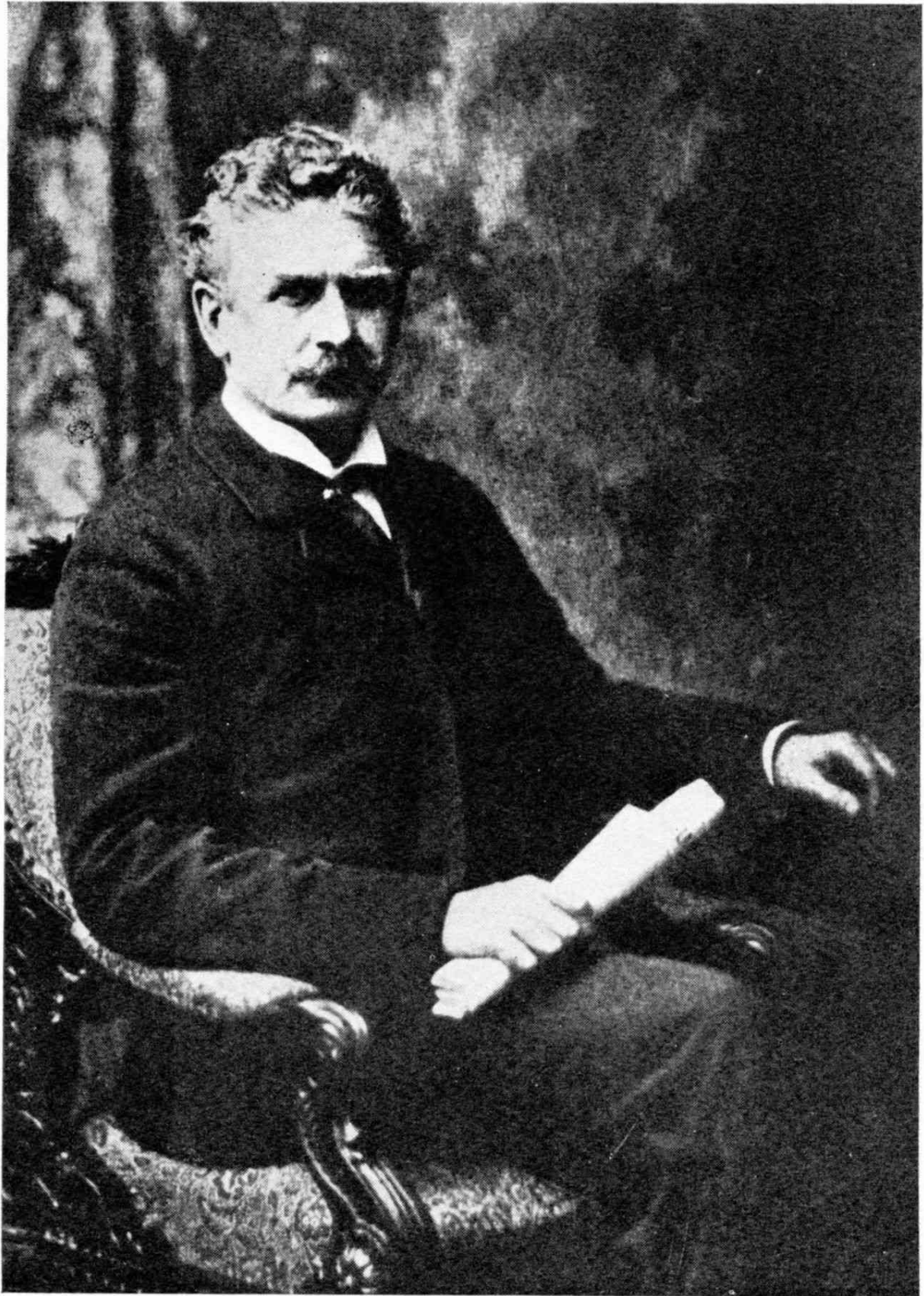
Toward the end of 1913, Mexico was in another of its torments. The visionary Madero had been assassinated. Huerta was in the dictator’s chair, Wilson had inaugurated his “watchful waiting,” and the new rebels were moving in the north—Carranza and Villa. At the time Ambrose Bierce was living, more or less retired, in Washington, probably convinced that he had

had his last fling, for he was already past seventy-two and “not so spry as he once had been.” But along came the order for the mobilization along the border. General Funston and his little army took up the patrol along the Rio Grande, the newspapers began to hint at a possible invasion of Mexico, and there was a stir of martial blood among the many.

Some say that when age comes on, a man’s youth is born again. Everything that belonged to the dawn becomes hallowed in the sunset of manhood. It must have been so with Bierce. Old and probably more infirm than he fancied, long written out, ready for sleep, the trumpets of Shiloh and Chickamauga, rusty and silent for fifty years, called him out again and he set out for Mexico, saying little to any one about his plans or intentions. Some believed that he was going down to the Rio Grande as a correspondent. Others said he planned to join the Constitutionals as a military adviser. Either might have been true, for Bierce was as good an officer as a writer. He knew both games from the roots up.

Even the preliminary movements of the man are a little hazy, but apparently he went first to his old home in California and then down to the border. He did not stop there, for in the fall of 1913 he was reported to have crossed into Mexico, and in January his secretary in Washington, Miss Carrie Christianson, received a letter from him postmarked in Chihuahua.

Then followed a long silence. Miss Christianson expected to hear again within a month. When no letter came, she wondered, but was not alarmed. Bierce was a man of irregular habits. He was down there in a war-torn country, moving about in the wilderness with armies and bands of insurgents; he might not be able to get a letter through the lines. There was no reason to feel special apprehension. In September, 1914, however, Bierce’s daughter, Mrs. H. D. Cowden of Bloomington, Illinois, decided that something must be amiss, no word having come from her father in eight months. She appealed to the State Department at Washington, saying that she feared for his life.



~~ AMBROSE BIERCE ~~

The Department quickly notified the American chargé d'affaires in Mexico to make inquiries and the War Department shortly afterwards instructed General Funston to send word along his lines and to communicate with the Mexican commanders opposite him, asking for Bierce. The Washington officials soon notified Mrs. Cowden that a search was being made. General Funston also answered that he was proceeding with an inquiry. Again some months elapsed. Finally both the diplomatic and the military forces reported that they had been unable to find Bierce or any trace of him. Probably, it was added, he was with one of the independent rebel commands in the mountains and out of touch with the border or the main forces of the Constitutionals.

Now the rumoring began. First came the report that Bierce had really gone to Mexico to join Villa, whose reputation as a guerrilla fighter had attracted the veteran, and whose emissaries were said to have asked Bierce to join the so-called bandit as a military aide. Bierce, it was reported, had joined Villa and had been with that commander in Chihuahua just before the battle there, in which the rebel forces were unsuccessful. Possibly Bierce had fallen in action. This story was soon discarded on the ground that Villa, had Bierce been on his staff, would certainly have reported the death of so widely-known a man and one so close to himself.

A little later came a second report, this time backed by what seemed to be more credible evidence. It was said that Bierce had been at the later battle of Torreon in command of the Villista artillery, that he had taken part in the running campaign through the province of Sonora and that he had probably died of hardships and exposure in those trying days.

A California friend now came forward with the report of a talk with Bierce, said to have been held just before the author set out for Mexico. The old satirist was reported to have said that he had grown weary of the stodgy life of literature and journalism, that he wanted to wind up his career with some more glorious end than death in bed and that he had decided to go down into Mexico and find a "soldier's grave or crawl off into some cave and die like a free beast."

It sounded very rebellious and Byronic, but Bierce's other friends immediately declared that it was entirely out of character. Bierce had gone

to Mexico to fight and see another war. He had not gone to die. He was a fatalist. He would take whatever came, but he would not go out and seek a conclusion.

So the talk went on and the months went by. There were no scare headlines in the papers. After all, Bierce was only a distinguished man of letters.

But there was a still better reason for the lack of attention. The absence of Bierce had not yet been reported officially when the vast black cloud of war rolled up in Europe. All men's eyes were turned to the Atlantic and the fields of Flanders. The American adventure along the Mexican border seemed trivial and grotesque. The little puff of wind in the South was forgotten before the menacing tornado in the East. What did a poet matter when the armies of the great powers were caught in their bloody embrace?

Yet Bierce was not altogether forgotten. In April, 1915, more than a year after his last letter from Chihuahua, another note, supposedly from him, was received by his daughter. It said that Major Bierce was in England on Lord Kitchener's staff and that he was taking a prominent part in the recruiting movement in Britain. This sensation lasted ten days. Then, inquiry having been made of the British War Office, the sober report was issued that Bierce's name did not appear on the rolls and that he certainly was not attached to Lord Kitchener's staff.

Now, at last, the missing writer's secretary put the touch of disaster to the fable. Miss Christianson announced in Washington that careful investigation abroad showed that Major Bierce was not fighting with the Allies, and that she and his family had been forced to the melancholy conclusion that he was dead.

But how and where? The State Department continued its inquiries in Mexico, but many private individuals also began to investigate. Journalists at the southern front tried to get trace or rumor of the man. Old friends went into the troubled region to seek what they could find. The literary world was touched both with curiosity and grief and with a romantic interest in the man's fate. Bierce became a later Byron, and it was held he had gone forth to fight for the oppressed and found himself another Missolonghi.

Out of all this grew a vast curiosity. Probably Bierce was dead, though even this was by no means certain. There was no evidence save the fact that he

had not written for more than a year, which, in view of the man's character and the situation in which he was caught, might be no evidence at all. But, granting that he was dead, how had his end come? Where was his body? It was impossible to escape the impression that one whose life had been touched with such extraordinary color should have died without a flame. The men and women who knew and loved Bierce—and they were a considerable number—kept saying over and over to themselves that this heroic fellow could not have passed out without some signal. Surely some one had seen him die and could tell of his end and place of repose. So the quest began again.

For years, there was no fruit. Northern Mexico, where Bierce had certainly met his end, if indeed, he was dead, was no place for a hunter after bits of literary history to go wandering in. First there was the constant fighting between Huerta and the Constitutionalists. Then Huerta was eliminated and Carranza became president. There followed the various campaigns of pacification. Next Villa rebelled against his old ally, leading to a fresh going to and fro of armies. Finally the whole region was infested by marauding bands of irregular and rebellious militia, part soldiers and part bandits. To cap the climax came the invasion of Mexico by the expedition under Pershing.

In 1918 was heard the first report on Bierce which seemed to have some basis in fact. A traveler had heard in Mexico City and at several points along the railroad that an aged American, who was supposed to have been fighting with either Villa or Carranza, had been executed by order of a field commander. From descriptions, this man was supposed to have been Bierce. At any rate, he might have been Bierce as well as another, and, since Bierce was both conspicuous and missing, there was some reason for credence. But no one could get any details or give the scene of the execution. The report was finally discarded as no more reliable than several others.

Another year went by. In February, 1919, however, came a report which carries some of the marks of credibility.

One of the several persons who set out to clear up the Bierce enigma was Mr. George F. Weeks, an old friend and close associate of the old writer's, who went to Mexico City and later visited the various towns in northern Mexico where Bierce was supposed to have been seen shortly before his

death. Weeks went up and down and across northern Mexico without finding anything definite. Then he returned to Mexico City and by chance encountered a Mexican officer who had been with Villa in his campaigns and had known Bierce well. Weeks mentioned Bierce to this soldier and was told this story:

Bierce actually did join the Villista forces soon after January, 1914, when he wrote his last letter from Chihuahua. He said to those who were not supposed to know his affairs too intimately that he, like other American journalists and writers, had gone to Mexico to get material for a book on conditions in that unhappy country. In reality, however, he was acting as adviser and military observer with Villa, though not attached to the eminent guerilla in person. The Mexican officer related that Bierce could speak hardly any Spanish and Villa's staff hardly any English. On the other hand, this particular man spoke English fluently. Naturally, he and Bierce had been thrown together a great deal and had held numerous conversations. So much for showing that he had known Bierce well, and how and why.

After Chihuahua, the officer continued, he and Bierce had parted company, due to the exigencies of military affairs, and he had never seen the American alive again. He had often wondered about him and had made inquiries from time to time as he encountered various commandos of the Constitutionalist army. Finally, about a year later, which is to say some time toward the end of 1915, the relating officer met a Mexican army surgeon, who also had been with Villa, and this surgeon had told him a tale.

Soon after the breach between Villa and Carranza in 1915, a small detachment of Carranza troops occupied the village of Icamole, east of Chihuahua State in the direction of Monterey and Saltillo. The Villista forces in that quarter, commanded by General Tomas Urbina, one of the most ruthless of all the Villa subcommanders, who was himself later put to death, were encamped not far from Icamole, attempting to beleaguer the town or, at least, to cut the Carranza garrison off from its base of supplies and the main command. Neither side was strong enough to risk an engagement and the whole thing settled down into a waiting and sniping campaign.

In the gray of one oppressive morning toward the end of 1915, according to the surgeon who was with Urbina, one of that commander's scouts gave an

alarm, having seen four mules and two men on the horizon, making toward Icamole. A mounted detachment was at once sent out and the strangers were brought in. They turned out to be an American of advanced years but military bearing, a nondescript Mexican, and four mules laden with the parts of a machine gun and a large quantity of its ammunition.

Both men were immediately taken before General Urbina, according to the surgeon's story, and subjected to questioning. The Mexican said that he had been employed by another Mexican, whose name he did not know, to conduct the American and his convoy to Icamole and the Carranza commander. Urbina turned to the American and started to question him, but found that the man could speak hardly any Spanish and was therefore unable to explain his actions or to defend himself.

It may be as well to note the first objections to the credibility of the story here. Bierce had been in Mexico almost two years, according to these dates. He was a man of the keenest intelligence and the quickest perceptions. He had also lived in California for many years, where Spanish names are common and Spanish is spoken by many. It seems hard to believe that such a man could have survived to the end of 1915 in such ignorance of the speech of the Mexican people as to be unable to explain what he was doing or to tell his name and who he was. It seems hard to believe, also, that Bierce would have been doing any gun-running or that he could have been alive twenty months after the Chihuahua letter without communicating with some one in the United States, without being found or heard of by the military and diplomatic agents who had then already been seeking him for more than a year. Also, it is necessary to explain how the man who went down to fight with Villa happened suddenly to be taking a gun and ammunition to Villa's enemies, though this might be reconciled on the theory that Bierce had gone to fight with the Constitutionalists and had remained with them when Villa rebelled. But we may disregard these minor discrepancies as possibly capable of reconciliation or correction, and proceed further with the surgeon's story.

Urbina, after questioning the captives for a little while, lost patience, concluded that they must be enemies at best and took no half measures. Life was cheap in northern Mexico in those days, judgments were swift and harsh, and Urbina was savage by nature. He took away the lives of these two with a wave of the hand. Immediate execution was their fate.

Ambrose Bierce and the unknown Mexican were led out and placed against the wall of a building, in this case a stable. Faced with the terrible sight, the Mexican fell to his knees and began to pray, refusing to rise and face his executioners. Bierce, following the example of his companion, also knelt but did not pray. Instead, he refused the cloth over his eyes and asked the soldiers not to mutilate his face. And so he died.

“I was much interested in the whole affair,” the nameless Mexican officer told Mr. Weeks, “and I asked my surgeon friend many questions. He did not know Bierce at all and did not know he was describing the death of some one in whom I was deeply concerned. But I had known Bierce well and asked the surgeon for detail after detail of the murdered American’s appearance, age, bearing, and manner. From what he told me, I have not the slightest doubt that this was Ambrose Bierce and that he died in this manner at the hands of the butcher, Urbina.”

Following the reports of Mr. Weeks, the San Francisco *Bulletin* sent one of its special writers, Mr. U. H. Wilkins, down into Mexico, to further examine and confirm or discredit the report of the Mexican officer. Mr. Wilkins reported in March, 1920, confirming the Weeks report and adding what seems to be direct testimony. Mr. Wilkins says that he found a Mexican soldier who had been in Urbina’s command at Icamole and who was a member of the firing squad. This man showed Mr. Wilkins a picture of Bierce which, he said, he had taken from the pocket of the dead man just after the execution had taken place.

Still the doubt perseveres. No one has been able to find the grave of Bierce. The picture which the soldier said he took from the pocket of the dead man was not produced and has never, so far as I can discover, been shown.

Personally, I find in this material more elements for skepticism than for belief. Would Ambrose Bierce have been carrying a picture of himself about the wastes of Mexico? Perhaps, if it was on a passport or other credentials. In that case General Urbina must have known whom he was shooting. And would a guerilla leader, with much more of the brigand about him than the soldier, have shot a man like Bierce, who certainly was worth a fortune living and nothing dead? I must beg to doubt.

Nor do the other details ring true. If the captured Americano was Ambrose Bierce, one of two things must have happened. Either he would have

resorted, to save his life, to invective and persuasiveness, for which he was remarkable, or he must have shrugged and been resigned. This Bierce was too old, too cynical, too tired of living and pretending for valedictory heroics. And he was too much of a soldier to wince. For this and another reason the story of his execution will not go down.

Unhappily, the tale of a distinguished victim of the firing squad asking that his face be not disfigured is a piece of standard Mexican romance. According to the tradition of that country, the Emperor Maximilian, when he faced his executioners at Queretaro, begged that he be shot through the body, so that his mother might look upon his face again. Hence, I suspect the soldierly Mexican *raconteur* of having been guilty of a romantic anachronism, perhaps an unconscious substitution. If the man whom Urbina shot had been Ambrose Bierce, he would neither have knelt, nor made the pitiful gesture of asking the inviolateness of his face.

Adolphe de Castro, who won a lawsuit in 1926 compelling the publishers of a collected edition of Bierce's writings to recognize him as the co-author of "The Monk and the Hangman's Daughter," has within the year published a version of Bierce's end^[11] that has some of the same elements in it. Bierce, says de Castro, was shot by Villa's soldiers at the guerilla leader's command. Here is the story condensed:

^[11] "Ambrose Bierce as He Really Was," *The American Parade*, October, 1926.

Bierce was with Villa at the taking of Chihuahua in 1913. After this fight there was nothing for the novelist-soldier to do and he took to drinking *tequila*, a liquor which causes those who drink it any length of time to turn blue. (Sic!) Bierce had with him a peon who understood a little English and acted as valet and cup companion. When he was in his mugs Bierce talked too much, complained of inactivity and criticised Villa. One drunken night he suggested to the peon that they desert to Carranza. Someone overheard this prattle and carried it to Villa, who had the peon tortured till he confessed the truth. He was released and instructed to carry out the plan with the Gringo. That night, as they started to leave Chihuahua, the writer and his peon were overtaken by a squad, shot down "and left for the vultures."

Though Vincent Starrett^[12] records that Villa flew into a rage when questioned about Bierce, a reaction looked upon by some as confirming

Villa's guilt, others have pointed out objections that seem insuperable. The break between Carranza and Villa did not follow until a long time after the battle of Chihuahua, they point out, and Bierce must have been alive all the while without writing a letter or sending a word of news to anyone. Possible but improbable, is the verdict of those who knew him most intimately.

[\[12\]](#) "Ambrose Bierce," by V. Starrett.

So, applying the critical acid to the whole affair, there is still the mystery, as dark as in the beginning. We may have our delight with the dramatic or poetic accounts of his end if that be our taste, but really we are no closer to any satisfactory solution than we were in 1914.

Bierce is dead, past doubt. That much needs no additional proof. His fierce spirit has traveled. His bitter pen will scrawl no more denunciations across the page; neither will he sit in his study weaving mysteries and ironies for the delectation of those who love abstraction as beauty, and doubt as something better than truth.

My own guess is that he started out to fight battles and shoulder hardships as he had done when a boy, somehow believing that a tough spirit would carry him through. Wounded or stricken with disease, he probably lay down in some pesthouse of a hospital, some troop train filled with other stricken men; or he may have crawled off to some water hole and died, with nothing more articulate than the winds and stars for witness.

XVI

THE ADVENTURE OF THE CENTURY

No account of disappearances under curious and romantic circumstances, or of the enigmatic fates of forthfaring men in our times, would approach completeness without some narration of one of the boldest and maddest projects ever undertaken by human beings, in many ways the crowning adventure of the nineteenth century. Particularly now, when a circumnavigation of the earth by airplane has been accomplished, when the Atlantic has been bridged by a dirigible flight, and men have flown over the North Pole in plane and airship, the heroic and pathetic story of Doctor Andrée and his attempt to reach the top of the world by balloon is of fresh and abiding interest.

No one who was not alive in the late nineties of the last century and of age to read and be thrilled, can have any conception of the wonder and excitement this man and his voyage caused, of the cloud of doubt and mystery which hung about his still unexplained end, of the rumors and tales that came out of the North year after year, of the expeditions that started out to solve the riddle, of the whole decade of slowly abating preoccupation with the terrible romance of this singular man and his undiscoverable end.

In the summer of 1895, at the International Geographical Congress in London, Doctor Salomon August Andrée, a noted engineer, and chief examiner of the Royal Swedish Patent Office in Stockholm, let it be known that he was planning for a flight to the pole in a balloon, and that active preparations were under way. At first the public regarded the whole thing with an interested incredulity, though geographers, meteorologists, geodesists, and some students of aëronautics had been discussing the possibilities of such a voyage for much longer than a generation, and many had expressed the belief in its feasibility. Sivel and Silbermann, of the University of Paris, had declared as early as 1870 that this was the practical way of attaining the pole.

Even so, they had not by long anticipated Doctor Andrée. His first inquiries into the possibility of such a flight had been made in the course of a voyage

to the United States in 1876 to visit the Centennial Exposition at Philadelphia. On shipboard he had made numerous observations of the winds and air currents, which led him to the belief that there was a general suction or drift of air toward the pole from the direction of the northern coast of Europe and from the pole southward along the Siberian or Alaskan coasts.

With this belief in mind, Andrée had gone back to Sweden and begun a series of experiments in ballooning. He built various gas bags and made a considerable number of voyages in them, on several occasions with nearly fatal results. Mishaps, however, did not daunt him, and he became, in the course of the following twenty years, perhaps the best versed aëronaut on earth. He was not, of course, an ordinary balloonist, but a scientific experimenter, busy with an attempt to work out a serious, and to him a practical, problem. In the early nineties Andrée succeeded in making a flight of four hundred kilometers in a comparatively small balloon, and it was on the observations taken in the course of this voyage that he based mathematical calculations which formed his guide in the polar undertaking.

If, as I have said, the first public announcement of the Andrée project was received by the rank and file of men as an entertaining, but impossible, speculation, there was a rapid change of mind in the course of the following months. News came that Andrée had opened a subscription for funds, and that the hundred thousand dollars he believed necessary had been quickly provided by the enthusiastic members of the Swedish Academy of Science, by King Oscar from his private purse, and by Alfred Nobel, the inventor of nitroglycerin and provider of the prizes which bear his name. Evidently this fellow meant business.

In the late spring of 1896 Andrée and a party of scientists and workmen, including two friends who had decided to make the desperate essay with him, sailed from Gothenburg in the little steamer *Virgo* for Spitzbergen. They had on board a balloon made by Lachambre of Paris, the foremost designer of that day, with a gas capacity of more than six thousand cubic meters, the largest bag which had been constructed at that time. The gas container was of triple varnished silk, and there was a specially designed gondola, whose details are of surviving interest.

This compartment, in which three men hoped to live through such temperatures as might be expected in the air currents fanning the North Pole, was made of wicker, covered outside with a rubberized canvas and inside with oiled silk, these two substances being considered capable of making the big basket practically air and weather proof. The gondola was about six and one half feet long inside and about five feet wide. It contained a sleeping mattress for one, with provision for a second bed, though the plan was to keep two of the three men constantly on deck, while the third took two hours of sleep at a time. This basket was covered, to be sure, the top having a trapdoor or hatch, through which the voyagers could come up to the deck. Inside and outside the gondola, in various pockets and bags, were fixed the provisions and supplies, while the various nautical instruments, cameras, surveyors' paraphernalia, and a patent cookstove hung among the ropes, or were fixed to the gondola by specially invented devices. Everything had been thought out in great detail, most of the apparatus had been designed for the occasion, and Andrée had enjoyed the benefit of advice from all the foremost flyers and scientific theorists in Europe. His was anything but a haphazard or ill-prepared expedition.

Toward the end of June, Andrée and his party landed on the obscure Danes Island in the Spitzbergen group, where he found a log cottage built some years before by Pike, the British bear and walrus hunter. Here a large octagonal building was thrown up to shelter the balloon from the fierce winds, while it was being inflated. Finally all was ready, the chemicals were put to work, and the great bag slowly filled with hydrogen. Everything was in shape for flying by the middle of July, but now various mishaps and delays came to foil the eager adventurer, the worst of all being the fact that the wind steadily refused to blow from the south, as Andrée had anticipated. He waited until the middle of August, and then returned somewhat crestfallen to Sweden, where he was received with that ready and heartbreaking ridicule which often greets a brave man set out upon some undertaking whose difficulties and perils the fickle and callous public little understands.

Andrée himself was nothing damped by his reverses, and even felt that he had learned something that would be of benefit. For one thing, he had the gas bag of his balloon enlarged to contain about two hundred thousand cubic feet, and made some changes in its coating, which was expected to

prevent the seepage of the hydrogen, a problem which much more modern aircraft builders have had difficulty in meeting.

If the delay in Andrée's sailing had lost him a little of the public's confidence and alienated a few lay admirers, his prestige with scientific bodies had not suffered, and his popularity with the subscribers of his fund was undiminished. King Oscar again met the additional expenses with a subscription from his own funds, and Andrée was accordingly able to set out for the second essay in June of 1897. His goods and the reconstructed balloon were sent as far as Tromsø by rail, and there loaded into the *Virgo* and taken to Danes Island, accompanied by a small group of friends and interested scientists.

Almost at the last moment came a desertion, a happening that is looked upon by all explorers and adventurers as something of most evil omen. Doctor Ekholm, who had made the first trip to Danes Island and intended to be one of the three making the flight, had married in the course of the delay, the lady of his choice being fully aware of his perilous project. When it came time for him to start north in 1897, however, she had a not unnatural change of heart, and finally forced her husband to quit the expedition. Another man stepped into the gap without a day's delay, and so the party started north.

The enlarged bag was attached to the gondola and its fittings, and the process of inflation began anew in that strange eight-sided building on that barren arctic island. The bag was fully distended at the end of the first week in July, and Andrée impatiently waited for just the right currents of air before casting off.

In those last few days of waiting a good deal of foreboding advice was given the daring aëronauts by the group of admirers who had made the voyage to Danes Island with them. It is even said that one of the leading scientists with the expedition took Andrée aside, spent a night with him, and tried to convince the man that his theories and calculations were mistaken; that the air currents were inconstant, and could not be depended on to sweep the balloon across the pole and down on the other side of the earthly ball; that very low temperatures at the pole might readily cause the hydrogen to shrink and thus bring the balloon to earth; and that the whole region was full of such doubts and surprises as to forbid the adventure.

To all this Andrée is said to have answered simply that he had made his decision and must stand by it.

Indeed, the balloonist's plan seems to have been most thoroughly matured in his own mind. In twenty years of aëronautics he had worked out his ideas and theories in the greatest detail. He had not been blind to the problem of steering his machine, once it was in the air, but the plan of air rudders, or a type of construction that might lend itself to guidance through the air, had evidently not struck him as feasible, and was not brought to any kind of success until several years later under Santos Dumont. Yet Andrée was prepared to steer his balloon after a fashion. His gondola was, as already said, oblong, with a front and back. The front was provided with two portholes fitted with heavy glass, through which the explorer hoped to make observations in the course of his flight. As a practical balloonist, he knew that, once his car was in the air, the great bag was almost certain to begin spinning and to travel through the air at various speeds, increasing the rate of its giddy rotations as its rate of travel grew greater. That being so, the idea of front portholes and a prow for the gondola seemed something of a vanity, but Andrée had his own ideas as to this.

The balloonist explorer did not intend to ascend to any great heights, or to subject himself to the rotating action which is one of the unpleasantnesses and perils of ballooning. He had fixed to the stern of his gondola three heavy ropes, each about one hundred yards long, which descended from his craft, like elongated flaxen pigtails. In the center of each hundred-yard length of rope was a thinner spot or safety escapement, by means of which the lower half of any one of the ropes could be let go. And near the gondola was a second catch for releasing all of the rope or ropes.

These singular contrivances constituted Andrée's steering gear and antiwhirling apparatus. His intention was to fly at an elevation of somewhat less than one hundred yards, thus leaving the ends of his three ropes trailing out behind him on the ice, or in the water of any open sea he might cross. The tail of his craft was expected to keep his gondola pointed forward by means of its dragging effect. Realizing that one or all of the ropes might become entangled in some manner with objects on the ice surface, and that such a mishap might wreck the gondola, Andrée had provided the escapements to let go the lower half or all the ropes.

Just what the man expected to do, may be read from his own articles in the New York and European papers. He hoped to fly low over a great part of the arctic regions, make photographs and maps, study the land and water conformations, pick up whatever meteorological, geological, geographical, and other information that came his way, cross the pole, if he could, and find his way back on the other side of the earth to some point within reach of inhabited places. Andrée said that he might be carried the seven hundred-odd miles from Danes Island to the pole in anywhere from two days to two weeks, depending on the force and direction of the surface wind. He did not expect to consume more than three weeks to a month for the entire trip, but his ship carried condensed emergency provisions for three years.

While a widely known French balloonist, who had planned a rival expedition and then abandoned it, had intended to take along a team of dogs, Andrée's balloon had not sufficient lifting power or accommodations for anything of this kind, and he was content to carry two light collapsible sleds on which he expected to carry the provisions for his homeward trek after the landing.



~~ DOCTOR ANDRÉE ~~

When a correspondent asked Andrée, just before he set out, what provisions he had made for a mishap, and just what he would do if his balloon were to come down in open water, the explorer showed his spirit in the tersest of responses: "Drown."

Yet, for all his cold courage and dauntless determination, it is not quite certain in what spirit Andrée set forth. It has often been said that he was a stubborn, self-willed, and self-esteeming enthusiast, who had worked up a vast confidence in himself and an overweening passion for his project through his flying and experimenting. Others have pictured him as an infatuated scientific theorist, bound to prove himself right, or die in the attempt. And there is still the other possibility that the man was goaded into his terrifying attempt, in spite of his own late misgivings, by the ridicule of the public and the skepticism of some critics. He felt that he would be a laughingstock before the world and a discredit to his eminent backers if he failed to set out, it is said. But of this there is no evidence, and it remains a fact that Andrée's conclusions were sufficiently plausible to engage the attention and credence of a considerable number of scientists, and his enthusiasm bright enough to attach two others to him in his great emprise.

In the middle of the afternoon of July 11, 1897, Andrée got into the gondola of his car, tested the ropes and other apparatus, and was quickly joined by his two assistants, Nils Strindberg and K. H. F. Frankel, the latter having been chosen to take the place of the defected Ekholm.

At a little before four o'clock the cables were cast off, after Andrée had sent his farewell message, "a greeting to friends and countrymen at home." The great bag hesitated and careened a few moments. Then it shot up to a height of several hundred feet, turned slowly about, with its three ropes dragging first on the ice and then in the water of the sea, and set out majestically for the northwest, carried by a steady slow breeze.

The little group of men on the desolate arctic island stood late through the afternoon, with eyes straining into the distance, where the balloon hung, an ever-diminishing ball against the northern horizon. What doubts and terrors assailed that watching and speculating crowd, what burnings of the heart and moistenings of the eyes overcame its members, as they watched the intrepid trio put off upon their unprecedented adventure, the subsequent

accounts reveal. But the imagination of the reader will need no promptings on this score. A little more than an hour the ship of the air remained in sight. Then, at last, it floated off into the mist, and the doubt from which it never emerged.

Doctor Andrée had devised two methods of sending back word of his situation and progress. For early communication he carried a coop of homing pigeons. In addition, he had provided himself with a series of specially designed buoys, lined with copper and coated with cork. They were hollow inside and so fashioned as to contain a written message and preserve it indefinitely from the sea water, like a manuscript in a bottle. To the top of each of these buoys was fixed a small staff, with a little metal Swedish flag. The plan was to release one of the small buoys, as each succeeding degree of latitude was crossed, thus marking out, by the longitude observations as well, the precise route taken by the balloon in its drift toward or away from the pole.

About a week after Andrée's departure one of the carrier pigeons returned to Danes Island, with this message in the little cylinder attached to its legs:

"July 13, 10.30 P. M.—82.20 north latitude; 15.5 east longitude.
Good progress toward north. All goes well on board. This message is the third by carrier pigeon.

"ANDRÉE."

The earlier birds and any the balloonists may have released after the night of the thirteenth, about fifty-five hours out from Danes Island, must have been overcome by the distance and the excruciating cold. None except the one mentioned ever reached either Danes Island or any cotes in the civilized world.

All over the earth, men stirred by the vivid newspaper accounts of Andrée's daring undertaking, waited with something like bated breath for further news of the adventuring three. It was not expected that the brave Swedes could reach civilization again, even with every turn of luck in their favor, in less than two months. Even six months or a year were elapsed periods not considered too long, for the chances were that the balloon would land in some far northern and difficult spot, out of which the three men would not be able to make their way before winter. That being so, they would be

forced to camp and wait for spring. Then, very likely, they could find their way to some outpost and bring back the tidings of their monumental feat.

Meantime the world got to work on its preparations. The Czar, foreseeing the possibility that Andrée and his two companions might alight somewhere in upper Siberia, sent a communication by various agencies to the wild inhabitants of his farthest northern domains, explaining what a balloon was, who and what Andrée and his men were, and admonishing the natives to treat any such wayfarers with kindness and respect, aiding them in every way and sending them south as speedily as possible, the special guests of the imperial government and the great white father. In other northern countries similar precautions were taken, with the result that the news of Andrée and his expedition was circulated far up beyond the circle, among the Indians and adventurers of Alaska, the trappers and hunters of Labrador and interior Canada, the Greenland Eskimos, and scores of other tribes and peoples.

But the fall of 1897 passed without any further sign from Andrée, and 1898 died into its winter, with the pole voyagers still unreported. By this time there was a feeling of general uneasiness, but silvered among the optimistic with some shine of hope. It was strange that no further messages of any kind had been received. Another significant thing was that one of the copper-and-cork buoys had been picked up in the arctic current—empty. Still, it might have been dropped by accident, and it was yet possible that Andrée had reached a safe, if distant, anchorage somewhere, and he might turn up the following summer.

Alas, the open season of 1899 brought nothing except one or two more of the empty buoys, and the definite feeling of despair. Expeditions began to organize for the purpose of starting north in search of the balloonists, and Walter Wellman began talking of a pole flight in a dirigible balloon, but such projects were slow in getting under way, and the summer of 1900 came along with nothing accomplished.

On the thirty-first of August of this latter year, however, another, if not very satisfactory, bit of news was picked up. It was, once more, one of the buoys from the balloon. This time, to the delight of the finders, there was a message inclosed, which read, in translation:

“Buoy No. 4. The first to be thrown out. July 11, 10 P. M., Greenwich mean time.

“All well up to now. We are pursuing our course at an altitude of about two hundred and fifty meters. Direction at first northerly, ten degrees east; later northerly, forty-five degrees east. Four carrier pigeons were dispatched at 5.40 P.M. They flew westward. We are now above the ice, which is very cut up in all directions. Weather splendid. In excellent spirits.

“ANDRÉE, STRINDBERG, FRANKEL.”

“Above the clouds, 7.45 Greenwich mean time.”

It will be noted at once that the body of this communication was written the night after the departure from Danes Island, and the postscript probably at seven forty-five o'clock the next morning, so that it must have been put overboard nearly thirty-nine hours before the single returning pigeon was released. No light of hope in such a communication.

The North was by this time resonant with rumors and fables. Almost every traveler who came down from the boreal regions brought some fancy or report, sometimes supporting the product of his or another's imagination with scraps of what purported to be evidence. A prospector came down from the upper Alaskan gold claims with a bit of tarred and oiled cloth which had been given him by the chief of some remote Indian tribe. Was it not a part of the covering of the Andrée balloon? For a time there was a thrill of credulity. Then the thing turned out to be hide, instead of varnished silk, and so the tale came to an evil end.

In the spring of 1900 a report reached Berlin that Andrée and his party had been killed by Eskimos in upper Canada, when they descended from the clouds and started to shoot caribou. But why go into details? Month after month came other reports of all kinds, most of them of similar import. They came from all points, beginning at Kamtchatka and running around the world to the Alaskan side of Bering Strait, and they were all more or less fiction.

Finally, in the spring of 1902, came the masterpiece. A long dispatch from Winnipeg announced that C. C. Chipman, head commissioner of the Hudson's Bay Company, had received from Fort Churchill, the

northernmost outpost of the company, several letters from the local factor, Ashtond Alston, in which the sad fate of Doctor Andrée and his comrades was contained. The news had been received at Fort Churchill from wandering Eskimos. It was to the effect that a tribe of outlaw mushers, up beyond the Barren Islands, had seen a great ship descend from the sky and had followed it many miles till it settled on the ice. Three men had got out and displayed arms. The savage hunters, totally unacquainted with white men, and far less with balloons, believed the intentions of the trio to be hostile and attacked them, eventually killing all with their bows and arrows, though the white men were armed with repeating rifles and put up a good fight. There were many other confirmatory details in the report. The mushers were found with modern Swedish rifles and with cooking and other utensils salvaged from the wrecked balloon.

These reports led the late William Ziegler to write to the commissioner of the Hudson's Bay Company for confirmation, with the result that the story was at once exploded in these words:

“There is no probability of there being any truth in the report regarding the supposed finding of Andrée's balloon. The chief officer of the company on the west coast of Hudson's Bay who himself interviewed the natives on the matter, has reported as his firm conviction that the natives who are said to have seen the balloon imposed upon the clerk at Churchill, to whom the story was given. The sketches of the balloon which the company has been careful to distribute throughout northern Canada naturally gave occasion for much talk among these isolated people, and it is not greatly to be wondered at that some such tale might be given out by natives peculiarly cunning and prone to practice upon the credulity of those not familiar with them, or easily imposed upon.”

But the imagination of the world was nothing daunted by such cold douches of fact, and more reports of Andrée's death, of his survival in the igloos of detached tribes, of the finding of his camps, of his balloon, of parts of his equipment, of the skeletons of his party, and of many fancies came down from the northern sectors of the world, season after season. There was a great revival of these yarns in 1905, once more due to some imaginative Eskimo tale spinners, and in 1909, twelve years after Andrée's flight, there was an even more belated group of rumors, all centering about the fact that one Father Turquotille, a Roman Catholic missionary residing at Reindeer

Lake, and often making long treks farther into the arctic, had found a party of nomadic natives in possession of a revolver and some rope, which fact they explained to him by telling the story of the Andrée balloon, which was supposed to have landed somewhere in their territory. The good priest reported what he had been told to Bishop Pascal, of Prince Albert, and that worthy ecclesiastic transmitted the report to Ottawa, whence it was spread broadcast. But Father Turquotille, after having made a special journey to confirm the rumors, was obliged to discredit them. And so another end to gossip.

Thus it happens that there is to-day, more than thirty years after that heroic launching out from Danes Island, after the pole has long been attained, and all the regions of the Far North traversed back and forth by countless expeditions and hunting parties, no sure knowledge of Andrée's fate. All that is absolute is that he never returned, and all that can be asserted as beyond reasonable doubt is that he and his companions perished somewhere in the North. The probabilities are more interesting, though they cannot be termed more than inductions from the scattered bits of fact.

The chief matters of evidence are the buoys, which were picked up from time to time between the spring of 1899 and the late summer of 1912, when the Norwegian steamer *Beta*, outward bound on September 1st, from Foreland Sound, Spitzbergen, put into Tromsø on the fourteenth, with Andrée's buoy No. 10, which had been picked up on the eighth in the open ocean. This buoy, like all the others, except the one already described, was empty and had its top unsecured. It rests with the others in the royal museum at Stockholm. When Andrée flew from Danes Island he took twelve of these buoys, eleven small ones, which he expected to drop as each succeeding degree of latitude was crossed, and one larger float, which was to be dropped in triumph at the North Pole. This biggest buoy was picked up in the closing months of 1899, and identified by experts at Stockholm, who had witnessed the preparation for the flight. In all, seven of these floats have been retrieved from the northern seas.

We know that Andrée dropped one buoy on the morning of July 12, 1897, less than sixteen hours from his base, and that he liberated a pigeon on the following night, after an elapsed time of about fifty-five hours. At that time he had attained 82.20 degrees northern latitude and 15.5 degrees eastern longitude. Since Danes Island lies above the seventy-ninth parallel, and in

about 12 degrees of eastern longitude, the balloon had drifted about three degrees north and three east in fifty-five hours, a distance of roughly three hundred and fifty miles, as the crow flies. His net rate of progress toward the pole was thus no better than seven to eight miles an hour, and he was being carried northeast instead of northwest, as he had calculated. Evidently he was disillusioned as to the correctness of his theories before he was far from his starting point.

The recovered buoys offer mute testimony to what must have happened thereafter. When the big North Pole buoy was brought back to Sweden, the great explorer Nansen shook his head in dismay and said the emptiness of the receptacle was a sign portentous of disaster. Andrée would never have cast his largest and best buoy adrift, except in an emergency, or until he had reached the pole, in which case it would surely have contained a message. Nansen felt that the buoy had been thrown overboard as ballast, when the ship seemed about to settle into the sea. But even then, it would seem, Andrée would have scribbled some message and put it into the float, had there been time.

The fact that this main buoy and five others were picked up, with their tops unfastened and barren of the least scrap of writing, seems to argue that some sudden disaster overtook the balloon and its horrified passengers. Either it sprang a leak and dropped so rapidly toward the sea or an ice floe, that everything was thrown out in an attempt to arrest its fall, or there was an explosion, and the whole great air vessel, with all its human and mechanical freight, was dropped into the icy seas. In that case the unused buoys would have floated off and been found scattered about the northern ocean, while the explorer and his men must have met the fate he had so briefly described—"drowned."

The fact that no buoy has ever been recovered bearing any message later than that carried by the solitary homing pigeon would seem also to indicate that death overcame the party soon after the night of July 13th, with the goal of the pole still far beyond the fogs and ice packs of the North.

In some such desolation and bleak disaster one of the most splendid and mad adventures of any time came to its dark and mysterious conclusion, leaving the world an enigma and a legend.

XVII

SPECTRAL SHIPS

We have not yet lost that sense of terror before the vast power and wrath of the waters that wrought strange gods and monsters from the fancy of our ancestors. It is this fright and helplessness in us that gives disappearances at sea their special quality. In spite of all progress, all inventiveness, all the power of man's engines, every putting forth to sea is still an adventure. The same fate that overcomes the little catboat caught in a squall may overtake the greatest liner—the Titanic to note a trite example.

As a matter of fact, never a year passes without the loss of some ship somewhere in the wild expanse of the world's waters. Boats go down, leaving usually at least some indirect evidence of their fate. Now and again, as in the case of the Archduke Johann Salvator's *Santa Margarita* and Roger Tichborne's schooner *Bella*, not a survivor lives to tell the tale nor is any bit of wreckage found to give indication. Here we have the genuine marine mystery. The marvel lies in the number of such completely vanished ships. A most casual survey of the records turns up this generous list, from the American naval records alone:

The brig *Reprisal*, 1777; the *General Gates*, 1777; the *Saratoga*, 1781; the *Insurgent*, 1800; the *Pickering*, 1800; the *Hamilton*, 1813; the *Wasp III*, 1814; the *Epervier*, 1815; the *Lynx*, 1821; the *Wildcat*, 1829; the *Hornet*, 1829; the *Sylph II* and the *Seagull*, both in 1839; the *Grampus*, in 1843; the *Jefferson*, 1850; the *Albany*, with two hundred and ten men, in 1854; and *Levant II*, with exactly the same number aboard, in 1860. In 1910 the tug *Nina* steamed out of Norfolk and was never again heard from, and in 1921 the seagoing tug *Conestoga* put out from Mare Island, Cal., bound for Pearl Harbor, Hawaii, with four officers and fifty-two men aboard, and was never again reported. These are not mere marine disasters^[13] but complete mysteries. No one knows precisely what happened to any of these ships and their people.

^[13] For a handy list of these see The World Almanac, 1927 Edition, pages 691-95.

No account of sea riddles would be complete without mention of the American brigantine *Marie Celeste*, of New York, Captain Briggs, which was found floating abandoned and in perfect order in the vicinity of Gibraltar on the morning of December 5th, 1872. She had sailed from New York late in October with a cargo of alcohol, bound for Genoa. On the morning mentioned the British bark *Dei Gratia*, Captain Boyce, found the *Marie Celeste* in Lat. 38.20 N., Long. 17.15 W. with sails set but acting queerly, yawing and falling up into the wind. Captain Boyce ran up the urgent hoist but got no answer from the brigantine. The day being almost windless and the sea beautifully calm, Captain Boyce put off in a boat with his mate, Mr. Adams, and two sailors, reached the *Marie Celeste* and managed to board her. There was not a soul to be seen, not the least sign of violence or struggle, no indication of any preparations for abandonment, not a boat gone from the davits.

Captain Boyce and his mate, naturally amazed, made a careful inspection of the ship and wrote full reports of what they had found. In the cabin a breakfast had been laid for four persons and only partly eaten. One of these four was a child, whose half empty bowl of porridge stood on the table. A hard boiled egg, peeled and cut in two but not bitten into, lay near one of the other places. There were biscuits and other food on the table.

Investigation showed that the cargo had not shifted and was completely intact. None of the food, water or other supplies had been carried off, the captain's funds, of considerable amount, were safe and his gold watch hung in his bunk, as did the watches of two of the seamen. There was no evidence whatever of any struggle, and a report published by irresponsible papers, to the effect that a bloody sword had been found was officially denied. Neither was there any leak or any defect, except that there were two square cuts at the bow on the outside. They had been made with an axe or similar tool and might have been there for some time.

The *Dei Gratia* towed her prize into Gibraltar and notified the American consul, who again examined the brigantine with all care and reported to Washington. It was found that the *Marie Celeste* had set sail with a crew of ten men, the mate, the captain, his wife and their eight-year-old daughter. She was a vessel of six hundred tons.

Inquiries made by the American consuls in all the region near the finding place of the abandoned vessel resulted in nothing and a general quest throughout the world brought no better results. The British ship *Highlander* reported that she had passed the *Marie Celeste* and spoken her just south of the Azores, on December 4th, the day before she was picked up, and that the brigantine had answered "All well." This is obviously a mistake, for the most easterly of the Azores lies about five hundred miles from the place where the ship was found or about twice as far as she was likely to have sailed in twenty-four hours.

There are conflicting statements as to the actual state of affairs on the *Marie Celeste* when found. One report says the ship's clock was still ticking. On the other hand the log, which was found, had not been brought up beyond ten days prior to the discovery. One statement says that the ship's papers and some instruments were gone, another that everything was intact. All indications are, however, that the crew had not been long away. A bottle of cough medicine stood upright and uncorked on the table next to the child's plate. Any bit of rough weather or continued yawing and twisting before the wind with a loose rudder would have upset it. Again, on a sewing machine, which stood near the table in the cabin, lay a thimble, that must have rolled off to the floor if there had been any specially active dipping or lurching of the brigantine.

Many theories have been propounded to explain the disappearance of the crew, not the least fantastic of which is the giant cuttlefish yarn. Those who spin this tale affect to believe that there are squidlike monsters in the deeper waters of midocean, large enough and bold enough to reach aboard a six hundred ton ship and snatch off fourteen persons one after the other. Personally, I like much better the idea that Sinbad's roc had come back to life and carried the crew off to the Valley of Diamonds on his back.

As in other mysteries, men have turned up from time to time who asserted that they knew the fate of the crew of the *Marie Celeste*, that they were the one and only survivor, that murder and foul crime had been committed on the brigantine and more in the same strain.

In 1913, the *Strand Magazine* (London) printed a tale which has about it some elements of credibility. The article was written by A. Howard Linford, head master of Peterborough Lodge, one of the considerable British

preparatory schools. Mr. Linford specifically disowned responsibility for what he narrated, saying that he had no first hand knowledge. His story was, he said, based on some papers left him in three boxes by an old servant, Abel Fosdyk.

This Fosdyk appears in the Linford narrative as one of the ten members of the crew—the steward in fact. He recounts that the carpenter had built a little platform in the bows, where the child of the captain might play in safety. The thing was referred to as baby's quarterdeck, and upon this structure the child played daily in the sun, while its mother sat beside it, reading or sewing. The good woman had been ill the first part of the trip and was now greatly worried because of the nervous health of her husband, who had suffered a breakdown.

One morning, according to the supposed Fosdyk papers, the captain determined to swim about the ship in his clothes, possibly as the result of a challenge from the mate. Mrs. Briggs tried to dissuade her husband but he was obdurate and she prompted the mate to swim with him. They plunged in and the whole crew, with the commander's wife and child, crowded on the little platform to watch the swimmers. Suddenly there was a collapse and the platform, with all on it fell into the sea. Just then the breeze freshened and the brigantine, with sail set, rapidly ran away from the swimmers and the hopeless strugglers in the water. Fosdyk alone managed to cling to the platform and was washed to the African shore, where he was restored to health by some friendly blacks. He reached Algiers and in 1874 Marseilles. Later on he got to London and was employed by Mr. Linford's father.

Here is a tale that is on its face within the realm of possibility. We may believe it if we like, without risking the suspicious glances of our better balanced brothers, but——

Would an experienced mariner, even in a nervous state, have gone swimming hundreds of miles from land, leaving his vessel with sail set and expecting, even in a calm, to keep pace with her? Would the helmsman have left his post under such circumstances to stand on the baby's quarterdeck and gape? Would the captain and mate have got up without finishing their breakfast to engage in such folly? Finally, why did this Abel Fosdyk not immediately report the story on his return to Algiers or at least at

Marseilles, when there was a great hue and cry still in the air and sure information would have been rewarded? Or why did he not tell the story in the succeeding years, when the newspapers again and again revived the mystery and sought to solve it? Why did he leave papers to be published by another after his death?

My answer is that the mystery of the *Marie Celeste* is no nearer solution since the so-called Fosdyk papers were published. Moreover, I cannot find that worthy's name on the list of the mystery ship's crew.

A more credible explanation has recently been put forth by a writer in the *New York Times*, who says that the whole case rested upon a conspiracy. The captain and crew of the *Marie Celeste* had agreed with the personnel of another ship, that the brigantine be deserted in the region where she was found, her men to put off in a longboat which had previously been supplied by the conspirators in order that none of the *Marie Celeste*'s boats should be missing. The other vessel was to come along presently, pick up the derelict and collect the prize money, while the owners were to profit by the insurance. The deserting crew was to get its share of the proceeds and then disappear.

There are objections to this explanation also. Would a set of sailors and a captain, the latter with his wife and little girl, venture upon the sea in an open boat some hundreds of miles from land? Would the captain have taken his wife and child on the voyage with him if such a trick had been planned? And why was no member of the crew ever discovered in the course of the feverish search or through the persistent curiosity that followed? On the other hand, such tricks have been worked by mariners, and men who set out to commit crimes often attempt and accomplish the perilous and seemingly impossible. The doubts are by no means dispelled by this theory but here is at least a rational version of the affair.

The World War added two mysteries of the sea to the long roster that stand out with a special and tormenting character. The war had hardly opened when the British navy set out to destroy a small number of German cruisers that lay at various stations in the Atlantic and Pacific. There was von Spee's

squadron which sent Admiral Cradock and his ships to the bottom at the battle of Coronel and was subsequently destroyed by a force of British off the Falkland Islands. There was the *Emden*, that made the Pacific and Indian oceans a torment for Allied shipping for month after month, until she was overtaken, beaten and beached. Finally, there was the *Karlsruhe*.

This modern light cruiser, completed only the year before the war began, did exactly what she was designed for—commerce raiding. With her light armament of twelve 4.1 inch guns and her great speed (25.5 knots official, 27.6 according to the British reckoning) she was a scout vessel and destroyer of merchantmen. Since there was no considerable German fleet at sea to scout for, she became, within a few hot weeks, the terror of Allied shipping in the Atlantic. One vessel after another fell to her hunting pouch, while crews taken off the captured or sunken merchantmen began to arrive at American, West Indian and South American ports.

These refugees told, one and all, the same story. There would be a smudge of smoke on the horizon and within minutes the long slender German cruiser would come churning up out of the distance with the speed of an express train, firing a shot across the bows and signalling for the surrender of the trader. The prize crew came aboard, always acting with the most punctilious politeness and treating crew and passengers with apologetic kindness. If the vessel was old and slow, her coal was taken, the useful parts of her cargo transferred, her crew and passengers removed to safety and the craft sent to the bottom with bombs or by opening the sea cocks. If, on the other hand, the captured ship was modern and swift, she was manned from the cruiser, loaded with coal and other needed supplies, crowded with the captives and made to form an escort. At one time the cruiser is said to have had six such vessels in her train, at another four. When there got to be too many passengers and other captives, the least worthy of the vessels was detached and ordered to steam to a given port, being allowed just enough coal to get there.

As early as October 4, 1914, two months after the opening of hostilities, it was announced that the *Karlsruhe* had captured thirteen British merchantmen in the Atlantic, including four hundred prisoners. She did much better than that before she was through and the chances are she had then already put about twenty ships out of business, for this was a conservative announcement from the British Admiralty, which let it be

known soon afterwards that all of seventy British war vessels were hunting the *Karlsruhe* and her sister raider, the *Emden*.

Shipping in the Atlantic was in a perilous way and excitement was high among newspaper readers ashore, who watched the game of hide and seek with all the interest of spectators at some magnificent sporting event. Nor was the sympathy all against the German, for the odds were too heavy. The wildest rumors were floating in by every craft that reached port from the Southern Atlantic, by radio and by cable. On October 27, a Ward Line boat came into New York with the report that she had observed a night battle off the Virginia Capes between the German raider and British men-of-war. On November 3 came the report that the *Karlsruhe* had captured a big Lamport and Holt liner off the coast of Brazil as late as October 26. On November 10 an officer of a British freighter captured by the raider reached Edinburgh and told the story that the *Karlsruhe* was using Bocas Reef, off the north Brazilian coast, as a base.

Then, as suddenly as they had begun, the forays of the modern corsair ceased. The first belief was, of course, that the pursuing British had found her and sent her to Davy Jones. But as the weeks went by without any announcement to that effect, doubts crept in. Soon the British government, without making a formal declaration, revealed the untruth of this report by keeping its searching vessels at sea. It was the theory that the *Karlsruhe* had run up the Amazon or the Orinoco for repairs and rest. The expectation was that she would soon be at her old tricks again.

The battle and sinking story persisted in the British press, the wish being evidently father to the thought. On January, 12, 1915, for instance, the Montreal *Gazette* published an unverified (and afterwards disproved) report from a correspondent at Grenada, British West Indies, giving a detailed description of a four hour battle in which the raider was destroyed. This story was allegedly verified by the washing ashore of wreckage and the finding of sailors' corpses. All moonshine.

On January 21, an American steamer captain announced having sighted the *Karlsruhe* off Porto Rico. On other dates in January and February she was also falsely reported off La Guayra, the Canary Islands, Port au Prince and other places. On March 17, the Brooklyn *Eagle* published a tale to the effect that the hulk of the raider lay off the Grenadines, a little string of islets that

stretch north from Grenada in the Windwards. This report said there had been no battle. The cruiser had been self-wrecked or broken up in a storm. Again wreckage was said to have been found, but here once more was falsehood.

On March 18, the *Stifts-Tidende* of Copenhagen reported that the *Karlsruhe* had been blown up by an internal explosion one evening as the officers and men were having tea. One half of the wreck sank immediately, the report went on to say, while the other floated for some time, enabling between 150 and 200 of the crew to be rescued by one of the accompanying auxiliaries. The survivors, it was added, had been sworn to secrecy before reaching port—why this, no one can guess.

The following day, the *National Tidende* published corroboration from a German merchant captain then in Denmark, to the effect that the “crew of the *Karlsruhe* had been brought home early in December, 1914, by the German liner, *Rio Negro*, one of the *Karlsruhe*’s escort ships.”

Somewhat later, a Brooklyn man, wintering at Nassau, in the Bahamas, reported finding the raider’s motor pinnace on the shore of Abaco Island, north of Nassau.

To this there is little to add. Admiral von Tirpitz, then the head of the German navy, says in his memoirs just this and no more:

“The commander of the *Karlsruhe*, Captain Köhler, never dreamt of taking advantage of the permission to make his way homeward; working with the auxiliary vessels in the Atlantic, surrounded by the English cruisers, but relying on his superior speed, he sought ever further successes, until he was destroyed with his ship by an explosion, the probable cause of which was some unstable explosive brought aboard.”

It is obvious from this that the *Karlsruhe* was given the option of returning home, having gained enough glory and sunk enough ships to satisfy a dozen admirals. But the main fact to be gleaned from Tirpit’s statement is that an internal explosion was the thing officially accepted by the head of the German admiralty as the cause of her disappearance. And this is the most likely of all the theories that have been or can be proposed. But, that said, we are still a long way from any satisfaction of our deeper curiosity. Where

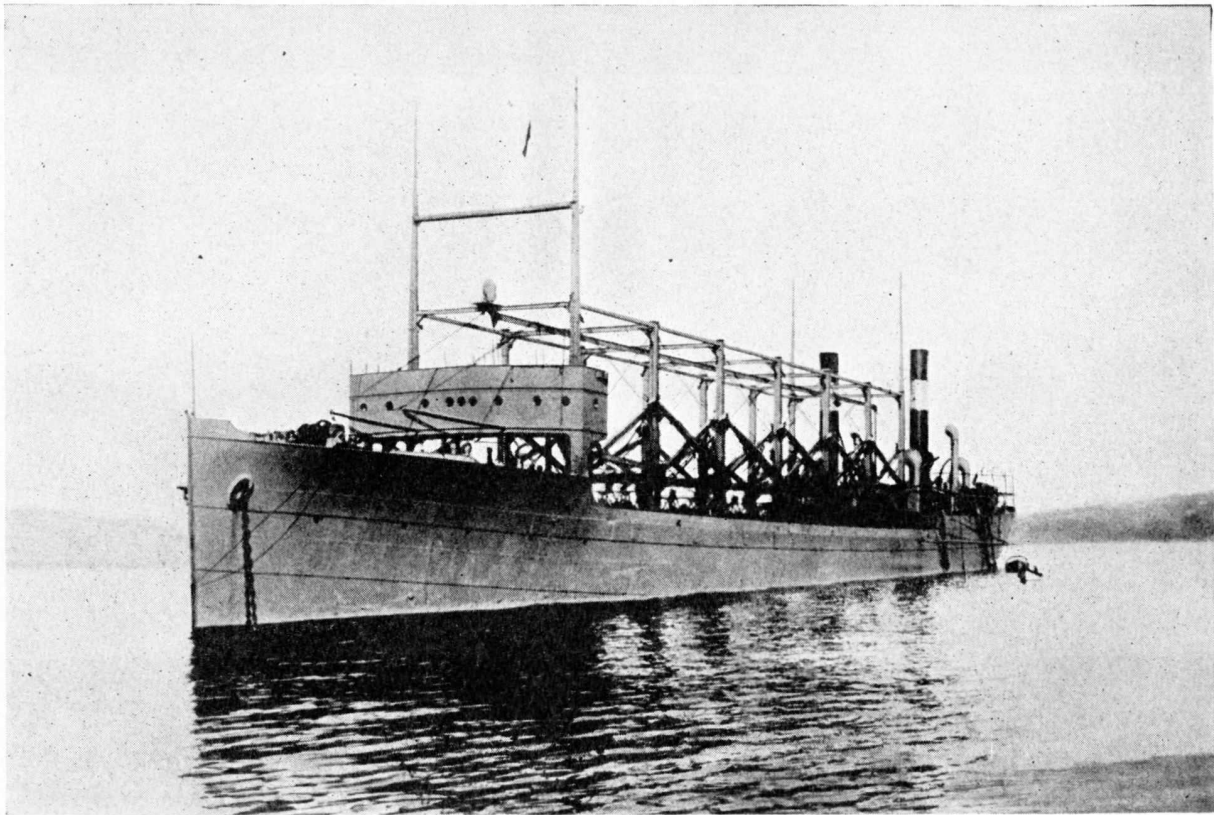
and when did the explosion take place? Under what circumstances? Did any escape and return to Germany to tell the tale?

To these queries there are no positive answers. If the *Karlsruhe* was, as so often stated, accompanied by one or more auxiliaries or coaling ships, it seems incredible that all the crew can have been lost and quite beyond imagination that there was not even a distant witnessing of the accident. Yet this seems to have been the case. In spite of the report that a large part of the famous raider's crew got safely home after the supposed explosion, I have searched and scouted through the German press and the German book lists for an account of the affair—all in vain. Not only that, but I am assured by reliable correspondents of the American press in Germany that nothing credible or authoritative has appeared. We have von Mücke's book "The Emden," published in the United States as early as 1917, and previously in Germany. We have the exploits of the *Moewe*, and we have the lesser adventures of the popular von Luckner and his craft. But of the famous *Karlsruhe* we have nothing at all, save rumors and gossip.

The conclusion must be that the ship did break up somewhere in the deepest ocean, as the result of an explosion, while she was altogether unattended. She must have gone down with all her men, for not even the reports of finding bits of her wreckage have ever been verified. The mystery of her end is still much discussed among seafaring men and William McFee, in one of his tales, suggests that she lay hid up one of the South American rivers and came to grief there.

Even more fantastic than this, however, is the story of the great United States collier *Cyclops*. This vessel, of nineteen thousand tons displacement, five hundred and eighteen feet long, of sixty-five foot beam and twenty-seven foot draught, with a cargo capacity of twelve thousand five hundred tons, was built by the Cramps in Philadelphia in 1910. She was designed to coal the first-line fighting ships of our fleet while at sea and under way, by means of traveling cables from her arm-like booms. She had frequently accompanied our battleships abroad, had transported the marines to Cuba and the refugees from Vera Cruz to Galveston in April 1914. On a trip to

Kiel in 1911, she was wonderingly examined by the German naval critics and builders, who declared her to be a marvel of design and structure.



Wide World.

~~ U. S. S. *CYCLOPS* ~~

On March 4, 1918, the *Cyclops* sailed from Barbados for an unnamed Atlantic port (Norfolk, as it proved), with a crew of 221 and 57 passengers, including Alfred L. Moreau Gottschalk, United States Consul General at Rio de Janeiro. She was due to arrive on March 13. When that date had come and nothing had been heard from her, it was announced that one of her two engines had been injured and she was proceeding slowly with the other engine compounded. But on April 14 the news came out in the press that the great ship was a month overdue and totally unaccounted for.

For a whole month the story had been veiled under the censorship while the Navy Department had been making every conceivable effort to find the ship or some evidence of her fate. There had been no news through her radio equipment since her departure from Barbados. There had been no heavy weather in that vicinity. She had been steaming in the well-traveled lane of

ships passing between North and South America, yet not a vessel had spoken her, heard her radio call or seen her at any distance. Destroyers had been searching the whole Gulf, Caribbean, North and South Atlantic regions for three frantic weeks. They had not found so much as a life preserver belonging to the missing ship.

The public mind immediately jumped to the conclusion that a German submarine had done this dirty piece of business, if an attack on an enemy naval vessel in time of war may be so listed. Alas, there were no German submarines so far from their home bases at that time or any proximate period. None had been reported by other vessels and the German admiralty has long since confirmed the understood fact that there was none abroad. A floating mine was next suspected, but the lower West Indies are a long distance from any mine field then in existence and a ship of the size of the *Cyclops*, even if mined, probably would have had time to use her radio, lower some boats and put some of her people afloat. At the very least, she must have left some flotsam to reach the beaches of the archipelago with its tragic meanings.

The mystery was soon complicated. On May 6 a British steamer from Brazil brought news that two weeks after the due date of the *Cyclops* but still two weeks before her disappearance was announced, an advertisement had been published in a Portuguese newspaper at Rio announcing requiem mass for the repose of the soul of A. L. M. Gottschalk "lost when the *Cyclops* was sunk at sea." Efforts were made by the secret agents of the American and Brazilian governments to discover the identity of the persons responsible for the advertisement, but nothing of worth was ever discovered. The notice was signed with the names of several prominent Brazilians, all of whom denied that they had the least knowledge of the matter. The rector of the church denied that any arrangement had been made for the mass and said he had not known Gottschalk. Some chose to believe that the advertisement had been inserted by German secret agents for the purpose of notifying the large number of Germans in Brazil that the Fatherland was still active in American waters.

A rumor having no substance whatever was to the effect that the crew of the ship had revolted, overcome the officers and converted the ship into a German raider. A companion tale said the ship had sailed for Germany to deliver her cargo of manganese to the enemy, by whom this valuable metal

was sorely needed. The only foundation for this rumor was the fact that the *Cyclops* was indeed carrying a load of manganese ore to the United States.

It was not until August 30, 1918, that Secretary of the Navy Josephus Daniels announced that the ship was officially recorded as lost. At that time he notified the relatives of the officers, crew and passengers. More than three months later, on December 9th, Mr. Daniels supplemented this official notice with the statement, given to the newspaper correspondents, that “no reasonable explanation” of the *Cyclops* case could be given. And here the official news ends. At this writing, inquiry at the official source in Washington brings the answer that nothing has since been learned to alter the then issued statement.

The *Cyclops* case naturally excited and disturbed the public mind, with the result of an unusual crop of fancies, lies, false alarms and hoaxes. On May 8, 1923, for instance, Miss Dorothy Walker of Pittsburgh reported that she had found a bottle at Atlantic City containing the message “*Cyclops* wrecked at Sea.—H.” This note was written on a piece of note paper torn from a memorandum book and was yellowed with age. The bottle was tightly corked and closed with sealing wax—a substance which shipwrecked sailors do not have in their pockets at the moment of peril.

Other such messages were found from time to time. One floated ashore at Velasco, Tex., also in a bottle. It read:

“U. S. S. *Cyclops*, torpedoed April 7, 1918, Lat. 46.25, Long. 35.11. All on board when German submarine fired on us. Lifeboats going to pieces. No one to be left to tell the tale.”

The position indicated is midway between Hatteras and the Azores, where the *Cyclops* had no business and probably never was. It was found after the war, as already suggested, that no German submarine had been in any so distant region at the time. We may accordingly look upon this bottle as another flagon of disordered fancy, another press from the old “*spurlos versenkt*” madness.

Finally, in their search for something that might explain this dark and baffling affair, the hunters came upon a suggestive fact. The commander of the *Cyclops* was Lieutenant-Commander George W. Worley. It now came to light—and it struck many persons like a revelation—that this man was

really G. W. Wichtman, that he was born a German; ergo, that he was the man responsible for this disaster to our navy. It proved true that Wichtman-Worley was a German by birth, but he had been brought to the United States as a child and had spent twenty-six years in the American navy. No one in official position suspected him, but the professional Hun *strafers* insisted that this was the typical act of a German, no matter how long separated from his native land, how little acquainted with it or how long and faithfully attached to the service of his adopted country. It is only fair to the memory of a blameless officer to say that Lieutenant-Commander Worley could not have done such a complete job had he wished to and that his record is officially without the least blemish.

We are left then, to look for more satisfactory explanations of the fate of the big collier. One possibility is that the manganese developed dangerous gases in the hold and caused a terrific explosion, which blew the ship out of the water without warning, killed almost all on board and so wrecked the boats that none could reach land. The only trouble with this is that a nineteen thousand ton ship, when destroyed by an explosion, is certain to leave a great mass of surface wreckage, which will drift ashore sooner or later or be observed by passing vessels in any travelled lane. It happens that vessels sent out by the Navy Department visited every ness and cove and bay along the coast from Brazil to Hatteras, every island in the West Indies and every quarter of the circling seas without ever finding so much as a splinter belonging to the collier. Fishermen and boatmen in all the great region were questioned, encouraged with promises of reward and sent seeking, but they, too, found never a spar or scrap of all that great ship.

This also seems to dispose of the possibility of a disaster at the hands of a German raider or submarine. Besides, to emphasize the matter once more, the German records show that there is no possibility of anything of this sort. The suspicion has been officially and categorically denied and there is no reason for concealment now.

There remains one further possibility, which probably conceals the truth. The *Cyclops*, like her sister ships, the *Neptune* and *Jupiter*, was topheavy. She carried, like them, six big steel derricks on a superstructure fifty feet from her main deck. This great weight aloft made it dangerous for the ship to roll. Indeed she could not roll, like other heavy vessels, very far without capsizing. We have but to suppose that with her one crippled engine she ran

into heavy weather or perhaps a tidal wave, that she heeled over suddenly, her cargo shifted and her heavy top turned her upside down, all in a few seconds. In that event there would have been no time for using the wireless, no chance to launch any boats. Also, with everything battened and tied down, ship-shape for a naval vessel travelling in time of war, especially if the weather was a little heavy, there is the strong possibility that nothing could have been loose to float free. In this manner the whole big ship with all her parts and all who rode upon her may have been dumped into the sea and carried to the depths. One of the floating mines dropped off our Southern Coast in the previous year by the U 121 may have done the fatal rocking, it is true.

There is no better explanation, and I have reason to know that an upset of this sort is the theory held by naval builders and naval officials generally. But certainly there is none and a satisfying answer is not likely to come from the graveyard of the deep.

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